THE DOCTRINE OF INCORPORATION REVISITED

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I. INTRODUCTION

The case of *R v Jones (Margaret)*[1] in 2006 was the first occasion on which the House of Lords has been called upon to examine in any depth the shibboleth that customary international law is part of the law of England and Wales – what Lord Denning MR in *Trendtex Trading Corporation v Central Bank of Nigeria* referred to as the doctrine of incorporation.[2] In *Jones (Margaret)*, where the issue was whether the crime of aggression known to customary international law was a crime under English law in the absence of a statute to this effect, Lord Bingham[3] was willing to accept, as had the Crown, the 'general truth' of the appellants' core contention, for which there was 'old and high authority',[4] that customary international law is part of the law of England and Wales, even if he hesitated to embrace the proposition 'in quite the unqualified terms in which it has often been stated', sympathising as he did with Brierly's view that customary international law 'is not a part, but is one of the sources, of English law'.[5] (Lord Hoffman preferred to 'say nothing about the reception into English law of rules of international law which may affect rights and duties in civil law',[6] an issue Lord Mance also thought unnecessary to address.[7]) Pointing to Blackstone's examples of violation of safe-conducts, infringement of the rights of ambassadors and piracy *jure gentium*, as well as, he thought it 'at least arguable', war crimes,[8] Lord Bingham accepted 'that a crime recognised in customary international law may be

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[1] [2006] UKHL 16; [2007] 1 AC 136.

[2] [1977] QB 529, 554. Reference to the 'doctrine of incorporation' as such does not appear prior to this in the English case-law, although Lord Atkin in *Chung Chi Cheung v The King* [1939] AC 160, 167-8 speaks of the English courts' treating rules of customary international law 'as incorporated into the domestic law'. The label does, however, appear in pre-*Trendtex* academic writings: see eg E D Dickinson, 'Changing Concepts and the Doctrine of Incorporation' (1932) 26 *American Journal of International Law* 239; H Lauterpacht, 'Is International Law a Part of the Law of England?' (1939) 25 *Transactions of the Grotius Society* 51; J G Starke, *An Introduction to International Law* (8th edn, Butterworths, London, 1977), 89-94. Lauterpacht, ibid, refers synonymously to the doctrine of 'adoption', taking his cue from the verb used by Blackstone when, as discussed below, he states at W Blackstone, *Commentaries on the Laws of England*, book IV, chap 5, 67, that 'the law of nations (wherever any question arises which is properly the object of it's [*sic*] jurisdiction) is here adopted in it's full extent by the common law, and is held to be part of the law of the land'. (The edition referred to here is the four-volume University of Chicago Press facsimile of the First Edition of 1765-1769 (University of Chicago Press, Chicago, 1979).) See also D P O'Connell, *International Law* (2nd edn, Stevens & Sons, London, 1970), vol I, 49-50, albeit with a difference of emphasis.

[3] Lords Rodger, Carswell and Mance agreed, the last adding a few paragraphs of his own. The same three Lords also agreed with Lord Hoffmann.

[4] [2007] 1 AC 136, 155, para 11, citing *Triquet v Bath* (1764) 3 Burr 1478, 1481; Blackstone, above n 2, book IV, chap 5, 67; *Duke of Brunswick v King of Hanover* (1844) 6 Beav 1, 51-2; *The Emperor of Austria v Day* (1861) 2 Giff 628, 678; *Chung Chi Cheung v The King* [1939] AC 160, 167-8; *Trendtex Trading Corporation v Central Bank of Nigeria* [1977] QB 529, 554; and *J H Rayner (Mincing Lane) Ltd v Department of Trade and Industry* [1989] Ch 72, 207.

[5] [2007] 1 AC 136, 155, para 11, citing J L Brierly, 'International Law in England' (1935) 51 *Law Quarterly Review* 24, 31.

[6] [2007] 1 AC 136, 170, para 59.

[7] [2007] 1 AC 136, 179, para 100.

[8] [2007] 1 AC 136, 158, paras 20-2, quote at 22. See also [2007] 1 AC 136, 179, para 101 (Lord Mance).

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assimilated into the domestic criminal law of this country'.[9] But this did not follow automatically:[10] 'a crime recognised as such in customary international law (such as the crime of aggression) may', his Lordship stated, 'but need not, become part of the domestic law of England and Wales without the need for any domestic statute'.[11] Lord Bingham's reading of the authorities led him to conclude 'that "customary international law is applicable in the English courts only where the constitution permits"'.[12] On this last basis, he held that the crime of aggression was not a crime under English law: first, it was up to Parliament, not the courts, to create new crimes;[13] secondly, the courts' slowness to review the exercise of prerogative powers over the conduct of foreign affairs and the deployment of the armed forces and their slowness to adjudicate upon transactions between sovereign States on the international plane was to be taken into account '[i]n considering whether the customary international law crime of aggression has been, or should be, tacitly assimilated into [English] domestic law'.[14] Lords Hoffmann and Mance came to the same conclusion for essentially the same reasons.

Jones (Margaret) is not the only recent case in which the doctrine of incorporation has been invoked by counsel and/or the court. There have been at least seventeen others since 1999 alone.[15] This apparent enthusiasm stands in marked contrast to their Lordships' colder eye in *Jones (Margaret)*, which was perhaps foreshadowed in the briefest of statements in *R (European Roma Rights Centre) v Immigration Officer at Prague Airport*, where the failure to prove the existence of the customary international rule of refugee law at issue made it, in Lord Bingham's view, unnecessary to address the question of 'the extent to which and the manner in which international law is or may become part of the common law'.[16] Not dissimilarly, in *R (Marchiori) v Environment Agency*, Laws LJ, recalling counsel's submission 'that it is trite law that the law of nations is part of the law of England', remarked that 'there are nice conceptual questions as to what is precisely meant by this'.[17]

In his judgment in *In re McKerr* in 2004, Lord Steyn concluded a digression on the possible role of the doctrine of incorporation in the case before their Lordships with the observation that '[t]he impact of evolving customary international law on our domestic legal

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[9] [2007] 1 AC 136, 159, para 23.

[10] [2007] 1 AC 136, 159, para 23. See, similarly, [2007] 1 AC 136, 179, para 101 (Lord Mance).

[11] [2007] 1 AC 136, 161, para 27. See, similarly, [2007] 1 AC 136, 179, para 101 (Lord Mance).

[12] [2007] 1 AC 136, 160, para 23, quoting the present author, 'Customary International Crimes in English Courts' (2001) 72 *British Yearbook of International Law* 293, 335.

[13] [2007] 1 AC 136, 160-2, paras 23-9. See, similarly, [2007] 1 AC 136, 170-1, paras 60-2 (Lord Hoffmann) and 179, para 101 (Lord Mance).

[14] [2007] 1 AC 136, 163, para 30. See also [2007] 1 AC 136, 171-2, paras 63-7 (Lord Hoffmann).

[15] See *R v Metropolitan Stipendiary Magistrate, Ex parte Pinochet Ugarte (No 1)* [2000] 1 AC 61 and *R v Metropolitan Stipendiary Magistrate, Ex parte Pinochet Ugarte (No 3)* [2000] 1 AC 147; *Holland v Lampen-Wolfe* [2000] 1 WLR 1573 (insofar as the customary international law of State immunity was applied as common law); *Hutchinson v Newbury Magistrates' Court* (2000) 122 ILR 499; *R (Marchiori) v Environment Agency* [2002] EWCA Civ 3; (2002) 127 ILR 574; *R (Abbasi) v Secretary of State for Foreign and Commonwealth Affairs* [2002] EWCA Civ 1598; (2002) 126 ILR 685; *R (Campaign for Nuclear Disarmament) v Prime Minister* [2002] EWHC 2777 (Admin); (2002) 126 ILR 727; *R v Lyons* [2002] UKHL 44; [2003] 1 AC 976; *Chagos Islanders v Attorney General and Her Majesty's British Indian Ocean Territory Commissioner* [2003] EWHC 2222, unreported, 9 October 2003, QBD, Ouseley J; *R (Manson) v Bow Street Magistrates' Court* [2003] EWHC 2720 (Admin), unreported and judgment not made public, 15 October 2003, QBD (DC), judgment as approved by the court obtained from Smith Bernal Wordwave Limited (official shorthand writers to the court); *Tatchell v Mugabe* (2004) 136 ILR 572; *Re Mofaz* (2004) 128 ILR 709; *In re McKerr* [2004] UKHL 12; [2004] 1 WLR 807; *R (European Roma Rights Centre) v Immigration Officer at Prague Airport* [2004] UKHL 55; [2005] 2 AC 1; *Re Bo Xilai* (2005) 128 ILR 713; *A and others v Secretary of State for the Home Department (No 2)* [2005] UKHL 71; [2006] 2 AC 221 (see counsel's submission at 237); *R (Mohamed) v Secretary of State for Foreign and Commonwealth Affairs* [2008] EWHC 2048, unreported, 21 August 2008, QBD (DC); *R (Al-Saadoon) and another v Secretary of State for Defence* [2009] EWCA Civ 7, unreported, 21 January 2009, CA (Civ Div).

[16] [2004] UKHL 55; [2005] 2 AC 1, 39, para 28. Lord Hope, Baroness Hale and Lord Carswell were in full agreement with Lord Bingham on the refugee-law questions in the case, and Lord Steyn ([2005] 2 AC 1, 45, para 43) thought there was 'no answer' to Lord Bingham's reasoning in this respect.

[17] [2002] EWCA Civ 3; (2002) 127 ILR 620, 644, para 43, referring also to 'the principle, whatever its precise reach, that the law of nations is part of the law of England'.

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system is a subject of increasing importance'.[18] And so it is. In this light, now seems an opportune time to revisit the place of customary international law in English law and English judicial decision-making.[19]

II. THE DOCTRINE AS STATED

A. Prefatory clarification

What has come to be known as the doctrine of incorporation is taken to state that customary international law is automatically part of the law of England and Wales, without the need for legislative intervention. In other words, rules of customary international law are taken *ipso facto* to be rules of common law. In reliance on this doctrine, one or other party to a case has frequently sought to rely on a rule of customary international law as a rule of common law capable of direct application by an English court, in the manner of any other rule of common law.[20] The doctrine of incorporation stands in opposition to what Lord Denning MR in *Trendtex* labelled the doctrine of transformation,[21] the theoretically competing view that rules of customary international law, like rules in treaties to which the UK is party, do not become part of English law unless and until Parliament enacts them.[22] The English courts have adhered since the eighteenth century to the doctrine of incorporation.

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[18] [2004] UKHL 12; [2004] 1 WLR 807, 824, para 52.

[19] Each generation seems to feel the need to engage in this exercise afresh. See eg J Westlake, 'Is International Law a Part of the Law of England?' (1906) 22 *Law Quarterly Review* 14; Lauterpacht, above n 2; J G Collier, 'Is International Law Really Part of the Law of England?' (1989) 38 *International & Comparative Law Quarterly* 924.

[20] By way of more-or-less random introductory example, in the application to the Bow Street Magistrates' Court which lay at the heart of *R (Manson) v Bow Street Magistrates' Court* [2003] EWHC 2720 (Admin), the applicant sought the issue of summonses against the Prime Minister, the Secretary of State for Foreign and Commonwealth Affairs and the Secretary of State for Defence in respect of their alleged commission of crimes against peace, as recognized by customary international law and therefore, it was submitted, by the common law of England. Not dissimilarly, the defendants in *R v Jones (Margaret)* [2006] UKHL 16; [2007] 1 AC 136—charged under, variously, section 1(1) of the Criminal Law Act 1977 and section 3(b) of the Criminal Damage Act 1971 (conspiracy to cause criminal damage) and section 68(1) of the Criminal Justice and Public Order Act 1994 (aggravated trespass)—argued that crimes against peace (*sub nom*. the crime of aggression), as recognized by customary international law, constituted common-law crimes, and thus provided them with defences under, variously, section 3(1) of the Criminal Law Act 1967 (use of reasonable force to prevent a crime) and section 68(2) of the Criminal Justice and Public Order Act 1994 (aggravated trespass relating only to disruption, etc of activity not involving the commission of an offence). See, similarly, *Hutchinson v Newbury Magistrates' Court* (2000) 122 ILR 499. In *R (European Roma Rights Centre) v Immigration Officer at Prague Airport* [2004] UKHL 55; [2005] 2 AC 1, the applicant argued that customary international law provided that 'if a national of country A, wishing to travel to country B to claim asylum, applies in country A to officials of country B, he may not be denied leave to enter country B without appropriate enquiry into the merits of his asylum claim' ([2005] 2 AC 1, 38, para 26); and that since customary international law was part of the common law, this rule served to render unlawful the actions of the UK's immigration officer at Prague airport. Many other examples are considered below at Parts III and IV.

[21] Prior reference to 'transformation' in this context can be found in Lauterpacht, above n 2, 60, 64, 65, 75, 76, 84 and 86. O'Connell, above n 2, vol I, 49, speaks explicitly of a 'transformation doctrine'.

[22] The doctrine of transformation, which at its simplest states that statute is required to turn a rule of customary international law into a rule of English law, is often stated additionally to provide that rules of customary international law do not become part of English law 'except in so far as they have been already adopted and made part of our law by the decisions of the judges', in the words of Lord Denning MR in *Trendtex Trading Corporation v Central Bank of Nigeria* [1977] QB 529, 553. To the extent that this further statement could be taken to mean that the courts must await a prior judicial decision which adopts and makes the customary international rule part of the law of England, it can be dismissed as self-defeatingly circular: a first judicial adoption into English law has to come sometime. On the other hand, a different understanding of the doctrine of 'judicial transformation' (or 'judicial adoption'), which—at least insofar as the gist of the inquiry is whether legislation is required before a rule derived from customary international law can be relied on in the English courts—can equally and more usefully be characterized as a variant of the doctrine of incorporation, is considered below at Part IV.A. On a different and purely terminological point, note that when Parliament enacts *treaty*-based international rules into domestic law, it is said, somewhat confusingly, to have 'incorporated' the treaty. In Lord Denning MR's terminology, we would say that Parliament 'transforms' a treaty.

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In more general terms, English law has never subscribed to a Manichaean antinomy between itself and international law. In the English courts, international law is not *res inter alios acta* but rather a body of law known to English law of which the court may properly take judicial notice, so that it has long been the case that international law is pleaded in the English courts as law and that the court is presumed to know its content. (This is in contrast with the position in relation to foreign national law, which is pleaded as fact and on which, therefore, evidence may be led.[23]) But parties and judges have traditionally felt no compulsion to cite the doctrine of incorporation to justify having regard in the English courts to customary international law *quâ* international law – and, it might be added, to craft common-law conflicts rules,[24] to construe statutes[25] and so on[26] by unabashed reference to it. The reason for this is simple: that international law is treated as law in the English courts is a proposition distinct from the doctrine of incorporation.[27] It is a proposition applicable as much to treaties, which most certainly do not form part of English law in the absence of statutory enactment,[28] as it is to customary international law; and it is a proposition relevant to the consideration of rules of international law as rules of international law – that is, as rules applicable on the international plane. In contrast, the doctrine of incorporation, which is limited in its application to rules of customary international law, goes to reliance on these rules as rules of English law.

B. The origin of the doctrine

The statement that customary international law is part of English law is traceable to Lord Mansfield CJ's account in *Triquet v Bath*[29] in 1764 of Lord Talbot CJ's judgment of

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[23] See eg *Trendtex Trading Corporation v Central Bank of Nigeria* [1977] QB 529, 569 (Stephenson LJ), citing for support *The Cristina* [1938] AC 485, 497 (Lord Macmillan): '[R]ules of international law … must be in some sense "proved", and they are not proved in English courts by expert evidence like foreign law: they are "proved" by taking judicial notice of "international treaties and conventions, authoritative textbooks, practice and judicial decisions" of other courts in other countries which show that they have "attained the position of general acceptance by civilised nations"' (reference omitted). See also *Halsbury's Laws of England* (4th edn, reissue, 2002), vol 17(1), para 565 and vol 18(2), para 601; Lauterpacht, above n 2, 59; J L Brierly, *The Law of Nations. An Introduction to the International Law of Peace* (4th edn, Clarendon Press, Oxford, 1949), 77; O'Connell, above n 2, vol I, 53; I A Hunter, 'Proving Foreign and International Law in the Courts of England and Wales' (1978) 18 *Virginia Journal of International Law* 665, 674 and 685-6; F A Mann, *Foreign Affairs in English Courts* (Clarendon Press, Oxford, 1986), 126; Collier, above n 19, 935; R Jennings & A Watts (eds), *Oppenheim's International Law. Volume I: Peace* (9th edn, Longman, London, 1992), 57; I Brownlie, *Principles of Public International Law* (7th edn, Oxford University Press, Oxford, 2008), 41.

[24] See eg *Wolff v Oxholm* (1817) 6 M & S 92, 99-106; *Oppenheimer v Cattermole* [1976] 1 AC 249, 278 (Lord Cross); *Kuwait Airways Corporation v Iraqi Airways Company (Nos 4 and 5)* [2002] UKHL 19; [2002] 2 AC 883; *Société Eram Shipping Company Limited v Compagnie Internationale de Navigation* [2003] UKHL 30; [2004] 1 AC 260, 283-4, paras 54-5 (Lord Hoffmann) and 290 and 298, paras 80 and 109 (Lord Millett). In the words of Mann, 'when they develop their conflicts rules, English judges frequently adhere to … public international law': F A Mann, 'International Delinquencies before Municipal Courts' (1954) 70 *Law Quarterly Review* 181, 185 n 14.

[25] See the canon of construction recognized in *R v Keyn* (1876) 2 Ex D 63, 85 (Sir Robert Phillimore) and 210 (Lord Cockburn CJ); and, more recently, in *Salomon v Commissioners of Customs and Excise* [1967] 2 QB 116, 143 (Diplock LJ) and *Alcom Ltd v Republic of Colombia* [1984] AC 580, 588 (Sir John Donaldson MR, the expression 'the general principles of international law' referring in this context to rules of customary international law). See also, in a related but distinct vein, the use made of (customary) international law by Lord Rodger in *R (Al-Skeini) v Secretary of State for Defence* [2007] UKHL 26; [2008] 1 AC 153, 193, 194 and 195, paras 46, 49 and 54. Consider too Lord Hoffmann's statement in *R v Lyons* [2002] UKHL 44; [2003] 1 AC 976, 992 which extended what his Lordship called the 'strong presumption in favour of interpreting English law … in a way which does not place the United Kingdom in breach of an international obligation' to encompass the common law.

[26] Consider eg *Buck v Attorney-General* [1965] Ch 745, 770-2 (Diplock LJ). See also [1965] Ch 745, 768 (Harman LJ) and 773-4 (Russell LJ).

[27] That said, the two are not, in the final analysis, unrelated, as explained below at Parts IV.A and VI.

[28] This rule is so well established that in *In re McKerr* [2004] UKL 12; [2004] 1 WLR 807, 826, para 63, Lord Hoffmann stated that 'it should no longer be necessary to cite authority for the proposition that the Convention [in question], as an international treaty, is not part of English domestic law'.

[29] (1764) 3 Burr 1478.

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1736 in *Barbuit*'s case.[30] Lord Mansfield CJ, quoting passages from *Barbuit* not actually found in the judgment as reported,[31] recalls:

> Lord Talbot declared a clear opinion—'That the law of nations, in its full extent was part of the law of England.' ...
>
> I was counsel in this case; and have a full note of it.
>
> I remember, too, Lord Hardwicke's declaring his opinion to the same effect; and denying that Lord Chief Justice Holt ever had any doubt as to the law of nations being part of the law of England, upon the occasion of the arrest of the Russian Ambassador.
>
> Mr Blackstone's principles are right ...[32]

(Blackstone appeared in *Triquet* as plaintiff's counsel.) Lord Mansfield CJ's recollection in *Triquet* was strictly obiter, since the case, like *Barbuit*'s case before it,[33] turned on the construction of an Act of Parliament, 7 Anne c 12, also known as the Diplomatic Privileges Act 1708.[34] Lord Mansfield CJ was quick to add, however, that 'the Act was not occasioned by any doubt "whether the law of nations, particularly the part relative to public ministers, were not part of the law of England; and the infraction, criminal"'.[35] A year after *Triquet v Bath*, in *Lockwood v Coysgarne*, his Lordship reiterated 'that the Statute of 7 Ann. was only declaratory of the law of nations, and that the law of nations was in full force in these kingdoms'.[36] He reprised the motif two years later in *Heathfield v Chilton*, where he stated that '[t]he privileges of public ministers and their retinues depend on the law of nations; which is part of the common law of England'.[37] His Lordship added that '[t]he law of nations

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[30] (1736) Cases t Talbot 281.

[31] The absence is noted by Stephenson LJ in *Trendtex Trading Corporation v Central Bank of Nigeria* [1978] QB 529, 567. A footnote to the final line of the judgment does contain the phrase 'the law of nations (which in its fullest extent was and formed part of the law of *England*)', but this is artefactual, added by Forrester, the reporter of the 'Cases in Equity, temp Ld Talbot': see Cases t Talbot 281, 283. Adair has suggested that what Forrester reported was Lord Mansfield CJ's recollection of *Barbuit*'s case, rather than Lord Talbot CJ's actual words: E R Adair, *The Exterritoriality of Ambassadors in the Sixteenth and Seventeenth Centuries* (Longmans, Green & Co, London, 1929), 239; E R Adair, 'The Law of Nations and the Common Law of England: A Study of 7 Anne cap. 12' (1928) 2 *Cambridge Historical Journal* 290, 296. Lauterpacht sees 'no reason to assume [this]': Lauterpacht, above n 2, 79 n (q). But Dickinson sees Adair's suggestion as 'confirmed by the fact that [the footnote in question] is found neither in the first edition of the Talbot decisions, published in 1741, nor in the second edition of 1753, but appears for the first time, insofar as we have been able to determine, in the London edition of 1792': E D Dickinson, 'L'Interprétation et l'application du droit international dans les pays anglo-américains', 40 *Recueil des Cours* (1932-II) 305, 339 n 1, present author's translation.

[32] 3 Burr 1478, 1481.

[33] Lord Talbot CJ was not called on in *Barbuit* to determine the relationship between the law of nations and the law of England *in abstracto*. The case turned on 'whether the defendant [was] such a person as 7 *Anne*, *cap* 10 [*sic*, read '12'] describes', as was expressly 'declaratory of the antient universal *jus gentium*': see Cases t Talbot 281, 282.

[34] The long title is 'An Act for preserving the Privileges of Ambassadors and other publick Ministers of Foreign Princes and States'. The Act was passed in urgent response to the arrest, manhandling and brief detention, by properly accredited officers of justice, of the Russian ambassador to Great Britain in execution of a writ relating to debts owed by him to certain merchants. The preamble records: 'Whereas several turbulent and disorderly persons having in a most outrageous Manner insulted the Person of His Excellency Andrew Artemonowitz Matueof Ambassador Extraordinary of his Czarish Majesty Emperor of Great Russia Her Majesties [*sic*] good Friend and Ally by arresting him and taking him by Violence out of his Coach in the publick Street and detaining him in Custody for several Hours in Contempt of the Protection granted by Her Majesty contrary to the Law of Nations and in Prejudice of the Rights and Privileges which Ambassadors and other publick Ministers authorized and received as such have at all Times been thereby possessed of and ought to be kept sacred and inviolable …' Section 3 of the Act provides: '[A]ll Writs and Processes that shall at any Time hereafter be sued forth or prosecuted whereby the Person of any Ambassador or publick Minister of any foreign Prince or State authorized and received as such by Her Majesty Her Heirs or Successors or the Domestick or Domestick Servant of any such Ambassador or other publick Minister may be arrested or imprisoned or his or their Goods or Chattels may be distrained seized or attached shall be deemed and adjudged to be utterly null and void to all Intents Constructions and Purposes whatsoever.' Section 4 made it a criminal offence to initiate the proceedings referred to in section 3, perpetrators being deemed 'Violators of the Law of Nations and Disturbers of the publick Repose'.

[35] 3 Burr 1478, 1480. M'Kean CJ expressed a similar view in the early US case of *Respublica v De Longchamps*, 1 US (1 Dall) 111, 117 (Court of Oyer and Terminer, Philadelphia, 1784).

[36] (1765) 3 Burr 1676, 1678.

[37] (1767) 4 Burr 2015, 2016. The case was another under 7 Anne c 12.

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will be carried as far in England, as any where'.[38] He later took the point for granted in *Clarke v Cretico*.[39]

An equally influential early statement of the place occupied in English law by the law of nations is found in the 1760s in Chapter 5 ('Offences against the Law of Nations') of Book IV of Blackstone's *Commentaries on the Laws of England*. Blackstone writes:

> In arbitrary states [the law of nations], whenever it contradicts or is not provided for by the municipal law of the country, is enforced by the royal power: but since in England no royal power can introduce a new law, or suspend the execution of the old, therefore the law of nations (wherever any question arises which is properly the object of it's [*sic*] jurisdiction) is here adopted in it's full extent by the common law, and is held to be part of the law of the land. And those acts of parliament, which have from time to time been made to enforce this universal law, or to facilitate the execution of its decisions, are not to be considered as introductive of any new rule, but merely as declaratory of the old fundamental constitutions of the kingdom; without which it must cease to be part of the civilized world.[40]

Turning to specifics, Blackstone states that '[t]he principal offences against the law of nations, animadverted on as such by the municipal laws of England, are of three kinds: 1. Violation of safe-conducts; 2. Infringement of the rights of embassadors [*sic*]; and 3. Piracy'.[41] 'As to the rights of embassadors, which are ... established by the law of nations', Blackstone avers that 'the common law of England recognizes them in their full extent, by immediately stopping all legal process, sued out through the ignorance or rashness of individuals, which may intrench upon the immunities of a foreign minister or any of his train'.[42]

The assertions by Lord Mansfield CJ, Blackstone and, if he ever actually uttered the words ascribed to him, Lord Talbot CJ that the law of nations was adopted in its full extent[43] by the common law and held to be part of the law of England were in fact baseless.[44] Prior to the Civil War and the later Glorious Revolution, the relationship between international law and English law 'had not begun to be considered by the common lawyers'.[45] Leaving aside the ancient maritime law applied by the civil-law Admiralty courts, '[t]he rules of international law were regarded as matters which concerned the Crown, and fell within its wide prerogative in relation to foreign affairs'.[46] In other words, prior to the post-1689

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[38] 4 Burr 2015, 2016.

[39] (1808) 1 Taunt 106. This also fell to be determined under 7 Anne c 12.

[40] Blackstone, above n 2, book IV, chap 5, 67. Blackstone summarizes his chapter on offences against the law of nations as an account of 'the principal cases, in which the statute law of England interposes, to aid and enforce the law of nations, as a part of the common law; by inflicting an adequate punishment upon offences against that universal law, committed by private persons': ibid, 73.

[41] Ibid, 68. Blackstone's label 'offence against the law of nations' treated as identical what were actually two distinct legal phenomena: see the discussion below at nn 143 and 145.

[42] Ibid, 70, emphasis omitted.

[43] It is important to distinguish in this regard between those rules of the sixteenth- to eighteenth-century law of nations pertinent to relations between States (what today we would call public international law) and those rules of the law of nations, within the broad meaning then accorded the term, which pertained to relations between individuals, most notably the law merchant: as regards the latter, which did not *per se* fall within the Crown's prerogative in respect of foreign affairs, see the discussion in the following paragraph below, including in n 55.

[44] Referring to that part of the law of nations pertaining to relations between States, Crawford speaks of 'the historically untenable claim that "international law was part of the law of England"': J Crawford, 'Public International Law in Twentieth-century England', in J Beatson & R Zimmermann (eds), *Jurists Uprooted. German-speaking Émigré Lawyers in Twentieth-century Britain* (Oxford University Press, Oxford, 2004), 681, 686. Holdsworth similarly describes Lord Mansfield CJ and Blackstone's assertions as 'historically incorrect': W S Holdsworth, *A History of English Law* (Methuen, London, 1923-66), vol X, 373. Adair is more damning still, characterising Lord Mansfield CJ's dictum in *Heathfield v Chilton* that the law of nations is part of the common law of England, affirming and rendering more directly what he had said in *Triquet v Bath*, as 'all nonsense so far as the seventeenth and eighteenth centuries are concerned': Adair, *Exterritoriality*, above n 31, 88. See also ibid, 238 and Adair, 'The Law of Nations', above n 31, 295-6 and 297, the latter calling Lord Mansfield CJ's statement 'radically unsound'.

[45] W S Holdsworth, 'The Relation of English Law to International Law' (1941-42) 26 *Minnesota Law Review* 141, 141. See also Holdsworth, above n 44, vol XIV, 23.

[46] Holdsworth, above n 45, 141. See also Holdsworth, above n 44, vol XIV, 23.

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constitutional dispensation, any rules of international law not within the jurisdiction of the Admiralty[47] were enforced in England 'by prerogative action, not by the ordinary courts or the common law'.[48] Nor is there any evidence to suggest that the relationship between international law and the common law had been raised in the common-law courts between 1688 and *Barbuit*'s case in 1736. As to specifics, there is no indication whatsoever that the common-law courts recognised the immunities of ambassadors prior to the passage of 7 Anne c 12[49] – a point freely admitted by Blackstone himself.[50] Even less (if less than nought is possible) did they treat the violation of these immunities as criminal before the same Act made them so.[51] As for the other two 'offences against the law of nations' identified by Blackstone, namely violations of safe-conducts and piracy, neither was triable in the ordinary common-law courts or, indeed, under the common law; rather, in accordance with respective special procedures laid down in Acts cited by Blackstone himself, the first, abolished by

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[47] '[T]hat part of the law of England which is directed to the enforcement of international obligations, and the regulation of the rights of foreigners [was] … [u]p to the [nineteenth] century … a very meagre branch of English law; and this is due to the fact that it was a branch of law which fell outside the purview of the ordinary courts. … [I]n the Middles Ages it was regarded as falling within the jurisdiction of the admiral, the chancellor, or special officials. More especially it fell, as a branch of maritime law, under the jurisdiction of the admiral. … [T]he peculiar history of the Admiralty jurisdiction in England for a long time prevented the development of such branches of law.': Holdsworth, above n 44, vol II, 474.

[48] Adair, 'The Law of Nations', above n 31, 294. See also Adair, *Exterritoriality*, above n 31, 239, 241, 242 and 243. Lauterpacht, above n 2, 68 and 70 concedes the point, yet claims ibid, 68 that '[t]he substance of most of the available evidence points to the fact that principles of international law, especially with regard to diplomatic immunities, were recognized and given effect by English law', arguing ibid, 70 that '[t]he law relating to the royal prerogative was and is part of the law of England'. He concludes ibid that '[a]ny criticism of Blackstone's view by reference to the fact that the relevant portions of the Law of Nations were enforced by the royal prerogative and not by the common law courts must be regarded as being based on a controversial technicality'. But he later admits ibid, 79-80: 'It is possible that at the beginning of the eighteenth century international law was not part of the common law; it is possible that Blackstone and Lord Mansfield in 1765 [*sic*] and Lord Talbot in 1737 [*sic*] were mistaken in assuming that this was the position in the seventeenth and in the preceding centuries.'

[49] Holdsworth takes the view that '[t]he statute of 1708, which dealt with the immunities of ambassadors, though said by Lord Mansfield and others to be only declaratory of the common law, really introduced this principle of international law into the common law ...': Holdsworth, above n 45, 149. See also Holdsworth, above n 44, vol XIV, 31. He speaks of 'the historically incorrect view that the statute was merely in affirmance of a common law rule which had received and admitted the binding force of the rules of international law': ibid, 52. See also ibid, 62. Adair, 'The Law of Nations', above n 31, 295 makes the same point even more strikingly: 'The statute was specifically passed because international law was not part of the common law of England, because its breach, therefore, could not be legally prevented [after the Glorious Revolution put paid to prerogative interference with the courts] unless it was incorporated in the law of England by act of Parliament or by long-continued action of the ordinary courts. It was avowedly declaratory, but it was declaratory not of the common law, but of international law and of the custom of the English government in certain international questions, and in these questions the statute gave the government just that legal support which the common law could not provide.' See also Adair, *Exterritoriality*, above n 31, 238. *Cf contra* Lauterpacht, above n 2, 68-70.

[50] See Blackstone, above n 2, book I, chap 7, 247: 'And the truth is, we find no traces in our lawbooks of allowing any privilege to embassadors or their domestics, even in civil suits, previous to the reign of queen Anne …' Blackstone recounts, ibid, 247-8 how Queen Anne informed the Czar of Russia, on the occasion of his ambassador's arrest and mistreatment in 1708, '"that the law of England had not yet protected embassadors from the payment of their lawful debts; that therefore the arrest was no offence by the laws; and that she could inflict no punishment upon any, the meanest, of her subjects, unless warranted by the law of the land"' (reference omitted). He concludes, ibid, 248, reference omitted: 'And, in consequence of this statute [viz 7 Anne c 12], thus enforcing the law of nations, these privileges are now usually allowed in the courts of common law.'

[51] The denial by Lord Mansfield CJ in *Triquet v Bath* of any doubt on the part of the Court of Queen's Bench, in the celebrated case of the Russian ambassador, as to whether violations of the rights of ambassadors were criminal under the law of England is simply wishful thinking, and is contradicted by Blackstone, ibid, book I, chap 7, 247-8. Those responsible for the insult to the ambassador were convicted by the jury of the fact of having arrested and detained him, but whether this constituted a criminal offence was never determined. See *Case of Andrew Artemonowitz Mattueof, Ambassador of Muscovy* (1709) 10 Mod 5, 5 n (a). Indeed, the inability of the English courts to convict the perpetrators of a criminal offence fuelled the dispute between Russia and Great Britain: see C de Martens (ed), *Causes célèbres du droit des gens* (2nd edn, Brockhaus, Leipzig, 1858), vol I, 86-96. Holdsworth, above n 45, 149 draws the unequivocal conclusion that 7 Anne c 12 'for the first time provided for penalties' for breach of diplomatic immunity. See also Holdsworth, above n 44, vol XIV, 31; Adair, 'The Law of Nations', above n 31, 294-7 and *Exterritoriality*, above n 31, 87-8, 238, 240 and 241. Even Lauterpacht agrees: see Lauterpacht, above n 2, 69.

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Blackstone's time, had been triable under statute, while the second was tried under the species of civil law applied by the Admiralty courts.[52]

In reality, Blackstone and Lord Mansfield CJ's statements are more in the way of jusnaturalist professions of faith: both the law of nations and the common law of England proceeded from universal tenets of right reason, they asserted, so that the two bodies of law naturally coincided on coincident subject-matters.[53] Peremptory statements such as those in *Triquet v Bath* and subsequent cases are also typical of Lord Mansfield CJ's energetic, expansive and distinctly pre-popular democratic[54] vision of the 'law-declaring' role of the English judge. It pays too to appreciate that the term 'the law of nations' as used in Lord Mansfield CJ and Blackstone's day meant something significantly different from its use after the mid-nineteenth century at the latest and from the use of the term 'public international law' today. The seventeenth- and eighteenth-century law of nations represented a mélange of rules governing relations between States, rules governing transactions spanning more than one State's jurisdiction between individuals of different nationalities, such as maritime law and the law merchant, and (to the extent that these differed from the immediately foregoing) rules of what we would now call private international law regulating conflicts between different national systems of law.[55] By the mid-nineteenth century, however, the law of nations had become almost exclusively a body of rules between States; and while exceptions have

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[52] See the discussion below at Part III.A.3.

[53] See also eg C M Picciotto, *The Relation of International Law to the Law of England and of the United States of America* (McBride, Nast & Co, London, 1915), 75-6, para 41 and 107, para 66; H Triepel, 'Les rapports entre le droit interne et le droit international', 1 *Recueil des Cours* (1923) 77, 88-9; Dickinson, above n 2, 253 and above n 31, 336 and 344; Lauterpacht, above n 2, 67-8; Brierly, above n 23, 77-8; I A Shearer, 'The Relationship between International Law and Domestic Law', in B R Opeskin & D R Rothwell (eds), *International Law and Australian Federalism* (Melbourne University Press, Melbourne, 1997), 34, 36; M Lobban, 'Custom, common law reasoning and the law of nations in the nineteenth century', in A Perreau-Saussine & J B Murphy (eds), *The Nature of Customary Law. Legal, Historical and Philosophical Perspectives* (Cambridge University Press, Cambridge, 2007), 256, 264-5. As William Murray, Solicitor-General, Mansfield—in a report of 18 January 1753 by the Committee appointed by His Britannic Majesty to reply to the complaints of Frederick II of Prussia as to certain captures of Prussian vessels made by British ships during the war with France and Spain—described the law of nations as 'founded upon justice, equity, convenience, and the reason of the thing, and confirmed by long usage': see *The Zamora* [1916] 2 AC 77, 94. For his part, Blackstone, above n 2, book I, intro, sec 2, 42-3 writes: 'Upon these two foundations, the law of nature and the law of revelation, depend all human laws; ... human laws are only declaratory of, and act in subordination to [these].' To these foundations Blackstone adds 'a third kind of law ... called "the law of nations"; which ... depends entirely upon the rules of natural law, or upon mutual compacts, treaties, leagues, and agreements between several communities'. See also ibid, book IV, chap 5, 66: 'The law of nations is a system of rules, deducible by natural reason, and established by universal consent among the civilized inhabitants of the world …'

[54] Although by Mansfield's day the constitutional dispensation ushered in by the Glorious Revolution had limited the power of the monarchy vis-à-vis Parliament, the latter was not yet a body genuinely representative of the population. See similarly, in relation to Blackstone, P Sales & J Clement, 'International Law in Domestic Courts: The Developing Framework' (2008) 124 *Law Quarterly Review* 388, 415: '[H]e was writing at a time before the full development of democratic legal theory in the 19th and 20th centuries, and before the full development of credible democratic credentials of Parliament with the expansion of the franchise over that period.'

[55] See *Sosa v Alvarez-Machain*, 542 US 692, 743 (2004). See also eg H Triepel, *Droit international et droit interne* (R Brunet trans, Pédone, Paris, 1920), 138-9, especially 139 n 1; Lauterpacht, above n 2, 52; E D Dickinson, 'The Law of Nations as Part of the National Law of the United States' (1952) 101 *University of Pennsylvania Law Review* 26, 26-9; M Rheinstein, 'The Constitutional Bases of Jurisdiction' (1955) 22 *University of Chicago Law Review* 775, 804-8; M Akehurst, 'Jurisdiction in International Law' (1972-73) 46 *British Yearbook of International Law* 145, 212-4; Hunter, above n 23, 675; S Jay, 'The Status of the Law of Nations in Early American Law' (1989) 42 *Vanderbilt Law Review* 819, 821-2. Blackstone characterizes the law merchant as 'a branch of the law of nations' recognized by the common law, observing that 'in civil transactions and questions of property between the subjects of different States, the law of nations has much scope and extent, as adopted by the law of England': Blackstone, above n 2, book IV, chap 5, 67. See also eg *Mogadara v Holt* (1691) 1 Show KB 317, 318 (Eyres J); *Scrimshire v Scrimshire* (1752) 2 Hag Con 395, 420 (Sir Edward Simpson). For maritime law as part of the law of nations, see eg *Luke v Lyde* (1759) 2 Burr 882, 887 (Lord Mansfield CJ). As regards rules of private international law, see eg *Roach v Garvan* (1748) 1 Ves Sen 157, 159 (Lord Hardwicke LC); *Scrimshire v Scrimshire* (1752) 2 Hag Con 395, 416-7, 419, 421 and 422 (Sir Edward Simpson); *Robinson v Bland* (1760) 1 Black W 256, 258 (Lord Mansfield CJ). For a good example of the admixture of public and private international law in this earlier law of nations, see dicta in *Madrazo v Willes* (1820) 3 B & Ald 353.

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proliferated over time, modern public international law remains for the most part an inter-State law.

Any debate, however, is academic, given that it is the reception of Lord Mansfield CJ and Blackstone's views that counts, and this reception was unquestioning, at least to the extent that the question was whether statute was *per se* required before a rule of customary international law could become a rule of English law.

C. The reception of the doctrine

In the early nineteenth-century case of *Viveash v Becker*,[56] Lord Ellenborough CJ took it as axiomatic that the law of nations as to diplomatic immunity, although reflected in 7 Anne c 12, was otherwise applicable in the English courts without the need for parliamentary intervention. In the event, his Lordship held that the law of nations did not assist the defendant, a mere consul; but he added that, '[i]f we saw clearly that the law of nations was in favour of the privilege, it would be afforded to the defendant'.[57] In 1823, in *Novello v Toogood*, Abbot CJ referred to 'the common law, of which the law of nations must be deemed a part'.[58] The following year, in *De Wütz v Hendricks*, Best CJ went as far as to say that 'the law of nations [was] in all cases of international law ... adopted into the municipal code of every civilized country'.[59] A degree of modesty was restored in *Duke of Brunswick v King of Hanover*, when Lord Langdale MR limited himself to the statement that 'the law of nations, … when ascertained, is to be deemed part of the common law of England'.[60] In 1861, in *The Emperor of Austria v Day and Kossuth*,[61] Sir John Stuart V-C stated that '[a] public right, recognised by the law of nations, is a legal right; because the law of nations is part of the common law of England'.[62] His Lordship cited with approval Blackstone's view—'and', he added, 'it has so always been held in our Courts'—that 'the law of nations, whenever any question arises, which is properly the object of its jurisdiction, is adopted in its full extent by the common law of England, and held to be part of the law of the land'.[63]

The celebrated late nineteenth-century case of *The Queen v Keyn*[64] is often taken as authority for the proposition that customary international law is not part of English law without statutory enactment. But of the thirteen judges and seven-strong majority of the Court for Crown Cases Reserved, only the judgments of Lord Cockburn CJ[65] and Lush J cast doubt on whether the law of nations formed part of the law of England in the absence of legislation, and even then ambiguously. For example, Lord Cockburn CJ states:

> At all events, I am prepared to abide by the distinction taken in the statutes of Richard II between the realm and the sea. For centuries our judicial system in the administration of the criminal law has been divided into two distinct and independent branches, the one having jurisdiction over the land and any sea considered to be within the land; the other over the sea external to the land. No concurrent assent of nations, that a portion of what before was treated as the high sea, and as such common to all the world, shall now be treated as the territory of the local state, can of itself, without the authority of Parliament, convert that which before was in the eye of the law high sea into British territory, and so change the law, or give to the Courts of this country, independently of legislation, a jurisdiction over the foreigner where had it not before.[66]

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[56] (1814) 3 M & S 284.
[57] 3 M & S 284, 298.
[58] (1823) 1 B & C 554, 562. This was another diplomatic immunity case under 7 Anne c 12.
[59] (1824) 2 Bing 314, 315-6.
[60] (1844) 6 Beav 1, 45. On appeal, the House of Lords took it as read that the applicable rule was to be derived from the law of nations: see (1848) 2 HLC 1.
[61] (1861) 2 Giff 628.
[62] 2 Giff 628, 678.
[63] 2 Giff 628, 678.
[64] (1876) 2 Ex D 63.
[65] Pollock B and Field J concurred in a single sentence. Kelly CB 'agree[d] substantially' with both Sir Robert Phillimore and Cockburn CJ: 2 Ex D 63, 151.
[66] 2 Ex D 63, 197-8.

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Lush J states similarly:

> In the reign of Richard II the realm consisted of the land within the body of the counties. All beyond low-water mark was part of the high seas. At that period the three-mile radius [of the territorial sea] had not been thought of. International law, which, upon this subject at least, has grown up since that period, cannot enlarge the area of our municipal law, nor could treaties with all the nations of the world have that effect. That can only be done by Act of Parliament. As no such Act has been passed, it follows that what was out of the realm then is out of the realm now, and what was part of the high seas then is part of the high seas now; and upon the high seas the Admiralty jurisdiction was confined to British ships.[67]

These passages could be read to support the need for statutory enactment of the law of nations. But they equally (and, in the event, actually[68]) support the view that the reception of the law of nations into English law, while possible in principle, is trumped by the constitutional supremacy of Parliament—whose will was embodied in the instant case in 'the statutes of Richard II',[69] which divided the criminal jurisdiction of the English courts between the courts of common law (the realm, viz land) and the courts of the admiral (the sea)—and by the constitutional separation of powers, in accordance with which the jurisdiction of the courts can be enlarged by Parliament alone. The second of these propositions is what the other famous, and frequently misconstrued, dicta of Lord Cockburn CJ in *Keyn* are directed towards.[70] (For what it is worth, in *The Charkieh* three years earlier, Lord Cockburn CJ referred to 'international law, which is part of the municipal law of this country'.[71]) For his part, Lord Coleridge CJ, referring in dissent to the law of nations as 'that collection of usages which civilized states have to agreed to observe in their dealings with one another', affirmed that 'when [appropriate circumstances] arise, the English Courts give effect, as part of English law, to such agreement'.[72]

At the turn of the last century, in *West Rand Central Gold Mining Company v The King*[73] in the Divisional Court of King's Bench, Lord Alverstone CJ, while wary of authors as a source of the law of nations, was in no doubt as to that law's domestic applicability:

> It is quite true that whatever has received the common consent of civilized nations must have received the assent of our country, and that to which we have assented along with other nations in general may properly be called international law, and as such will be acknowledged and applied by our municipal tribunals when legitimate occasion arises for those tribunals to decide questions to which doctrines of international law may be relevant.[74]

His Lordship cited *Barbuit*, *Triquet v Bath* and *Heathfield v Chilton* with approval.[75] He did, however, enter a proviso, namely that the law of nations formed part of the law of England only to the extent that it was not 'contrary to the principles of her laws as declared by her Courts'.[76] Lord Alverstone CJ's words in *West Rand* were quoted and accepted as a correct statement of the law by Bankes LJ in *Commercial and Estates Company of Egypt v Board of Trade*.[77] Three years later, Lord Phillimore in *Engelke v Musmann* referred simply to 'international law, which is part of the common law of this country'.[78]

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[67] 2 Ex D 63, 239.
[68] See the discussion below at Part III.B.2.
[69] The statutes referred to are 13 Rich II st I c 5 and 15 Rich II c 3, considered by his Lordship at 2 Ex D 63, 167-8.
[70] See 2 Ex D 63, 203 and 207-8.
[71] (1872-73) LR 8 QB 197, 199.
[72] 2 Ex D 63, 154.
[73] [1905] 2 KB 391.
[74] [1905] 2 KB 391, 406-7.
[75] [1905] 2 KB 391, 407-8, warning, however, that 'the expressions used by Lord Mansfield ... that the law of nations forms part of the law of England, ought not to be construed so as to include as part of the law of England opinions of text-writers ...'.
[76] [1905] 2 KB 391, 408.
[77] [1925] 1 KB 271, 283.
[78] [1928] AC 433, 449.

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Like *Keyn* in the century before it, the Privy Council case of *Chung Chi Cheung v The King*[79]—strictly speaking not an English authority, but subsequently treated by the courts as effectively such—is sometimes taken to stand for the proposition that customary international law is not part of the law of England until made so by statute. But, like *Keyn*, *Chung Chi Cheung* in fact states something significantly different. A much-quoted dictum of Lord Atkin, delivering the judgment of the Board, reads:

> It must always be remembered that, so far, at any rate, as the Courts of this country are concerned, international law has no validity save in so far as its principles are accepted and adopted by our own domestic law. There is no external power that imposes its rules upon our own code of substantive law and procedure.[80]

But his Lordship goes on immediately to say:

> The Courts acknowledge the existence of a body of rules which nations accept among themselves. On any judicial issue they seek to ascertain what the relevant rule is, and, having found it, they will treat it as incorporated into the domestic law, so far as it is not inconsistent with rules enacted by statutes or finally declared by their tribunals.[81]

Far from denying the incorporation of customary international law, the passage as a whole in fact endorses it, subject to the proviso that statute and finally declared rules of common law are trumps. The statement that 'international law has no validity save in so far as its principles are accepted and adopted by our own domestic law' is clearly not intended to mean that customary international law is not applicable as English law. On the contrary, Lord Atkin is seeking to explain why in fact it is, his reasoning being that customary international law does not force itself upon English law; rather, in his Lordship's view, English law admits customary international law on English law's terms.[82] Not dissimilarly, in *Commercial and Estates Company of Egypt v Board of Trade*, his Lordship (or Atkin LJ, as he then was), in giving effect at English law to the customary international right of angary, states:

> The right of angary of the Sovereign is a right recognized by our municipal law, giving rise to rights and obligations in the full sense. … International law as such can confer no rights cognizable in the municipal courts. It is only in so far as the rules of international law are recognized as included in the rules of the municipal law that they are allowed in the municipal Courts to give rise to rights or obligations. The right of angary therefore is a right recognized by English law …[83]

The year before *Chung Chi Cheung* in *The Cristina*, Lord Atkin had spoken of 'propositions of international law engrafted into our domestic law'.[84]

Any lingering uncertainty over the status of customary international law in English law as there may have been was formally dispelled by the Court of Appeal's decision in *Trendtex Trading Corporation v Central Bank of Nigeria*,[85] where Lord Denning MR subscribed to the view that 'the rules of international law are incorporated into English law automatically and considered to be part of English law unless they are in conflict with an Act of Parliament'.[86] Shaw LJ agreed, declaring that 'the law of nations ... [is] applied in the courts of England'.[87] Like Lord Denning MR, the only limitation his Lordship acknowledged on the applicability of customary international law in English courts was the primacy of statute.[88]

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[79] [1939] AC 160.
[80] [1939] AC 160, 167-8.
[81] [1939] AC 160, 168.
[82] See also the discussion below at Part IV.A.
[83] [1925] 1 KB 271, 295.
[84] [1938] AC 485, 490.
[85] [1977] QB 529.
[86] [1977] QB 529, 553. See also [1977] QB 529, 554: '[T]he rules of international law, as existing from time to time, do form part of our English law.'
[87] [1977] QB 529, 579.
[88] [1977] QB 529, 577 and 578.

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'[T]hat the rules of international law from time to time in force are automatically incorporated into the common law and, subject always to statute, are supreme' was subsequently affirmed by Nourse LJ, dissenting on a separate point, in *J H Rayner (Mincing Lane) v Department of Trade and Industry*.[89] In turn, citing Nourse LJ in *J H Rayner*, Mantell J in *Al-Adsani v Government of Kuwait*[90] 'accepted the proposition that international forms part of the law of this country', subject to the proviso that 'where the clear language of [a] statute is to the contrary ... the statute must prevail'.[91]

Turning to this century, Lord Lloyd referred in *R v Metropolitan Stipendiary Magistrate, Ex parte Pinochet Ugarte (No 1)* to 'the requirements of customary international law, which are observed and enforced by our courts as part of the common law',[92] saying later that 'the common law incorporates the rules of customary international law'.[93] In the subsequent *R v Bow Street Metropolitan Stipendiary Magistrate, Ex parte Pinochet Ugarte (No 3)*, Lord Millet stated plainly that '[c]ustomary international law is part of the common law'.[94] Even more forthrightly, when *Jones (Margaret)* was before the Court of Appeal, Latham LJ (giving the judgment of the court)—having recalled Blackstone,[95] Lord Alverstone CJ in *West Rand*,[96] Lord Denning MR in *Trendtex*[97] and Nourse LJ in *J H Rayner*[98]—declared there to be '[n]o doubt ... that a rule of international law is capable of being incorporated into English law if it is an established rule derived from one or more of the recognised sources, [including] a clear consensus'.[99] Away from the superior courts of record, Judge Workman, Senior District Judge sitting in the Bow Street Magistrates' Court, stated in *Tatchell v Mugabe* that 'international customary law … is embodied in our Common Law'.[100] In the subsequent cases of *Re Mofaz* and *Re Bo Xilai*, he gave effect at common law to the immunities supposedly accorded a serving Minister for Defence and a serving Minister for Commerce and International Trade by customary international law.[101]

It will be recalled, however, that in *R (Marchiori) v Environment Agency*, Laws LJ, recounting the applicant's submission that the law of nations is part of the law of England, observed that 'there are nice conceptual questions as to what is precisely meant by this'.[102] It will also be recalled that in *Jones (Margaret)*, while accepting the 'general truth' of the contention that customary international law is part of the law of England, Lord Bingham was wary of formulating the doctrine of incorporation 'in quite the unqualified terms in which it has often been stated'.[103] Although not needing to determine, and so not determining, the point, his Lordship leant towards Brierly's view that customary international law 'is not a part, but is one of the sources, of English law'[104] – a distinction flagged earlier by Stephenson LJ in *Trendtex*.[105] For their parts, Lords Hoffmann and Mance eschewed any general

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[89] [1989] Ch 72, 207.
[90] (1995) 103 ILR 420.
[91] 103 ILR 420, 428.
[92] [2000] 1 AC 61, 89.
[93] [2000] 1 AC 61, 90, going on to quote from Jennings & Watts, above n 23, 57.
[94] [2000] 1 AC 147, 276.
[95] [2004] EWCA Crim 1981; [2005] QB 259, 270-71, para 19, quoting Blackstone, above n 2, book IV, chap 5, 66-7.
[96] [2005] QB 259, 271, para 20, quoting [1905] 2 KB 391, 406-7.
[97] [2005] QB 259, 271, paras 21-2, quoting [1977] QB 529, 554.
[98] [2005] QB 259, 271-72, para 23, quoting [1989] Ch 72, 207.
[99] [2005] QB 259, 272, para 24.
[100] (2004) 136 ILR 572, 573. The case actually fell under section 20 of the State Immunity Act 1978 (c 33).
[101] See (2004) 128 ILR 709 and (2005) 128 ILR 713 respectively.
[102] [2002] EWCA Civ 3; (2000) 127 ILR 620, 644, para 43, referring also to 'the principle, whatever its precise reach, that the law of nations is part of the law of England'.
[103] [2006] UKHL 16; [2007] 1 AC 136, 155, para 11.
[104] [2007] 1 AC 136, 155, para 11, citing Brierly, above n 5, 31.
[105] See *Trendtex Trading Corporation v Central Bank of Nigeria* [1977] QB 529, 569, referring to 'rules of [customary] international law, whether they be part of our law or a source of our law'.

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statement 'about the reception into English law of rules of international law which may affect rights and duties in civil law'.[106]

III. THE DOCTRINE IN PRACTICE

A. Seldom applied

Since its judicial inception in the eighteenth century, the doctrine of incorporation, as variously formulated, has been accepted many times and without dissent by the English courts as representing an accurate statement of the relationship between customary international law and the common law of England. In the great majority of these cases, however, acceptance of the doctrine has been purely obiter. Despite the plethora of occasions on which the courts have affirmed or not denied that customary international law is part of the common law of England, only in relation to a single area of customary international law has this proposition, whether explicitly advanced or simply assumed, led unambiguously to the international rule's actual application, by the ordinary common-law courts, as a rule of English law. Perhaps just as strikingly, in only two other cases, both of them arising out of the same facts, has the doctrine of incorporation been determinative of the outcome. The examples given by Blackstone and cited by the House of Lords in *Jones (Margaret)* are fallacies, except for the common-law crime of piracy, which instead is historically anomalous and has nothing to do with the doctrine of incorporation. Several other cases sometimes cited as examples of the doctrine in action are also deceptive. As for prize law, this is a wholly sui generis corpus of rules, the applicable law before an English prize court being avowedly international law as such, and not the common law.

Each of these clusters of cases will be looked at in turn.

1. The sole line of established case-law

The single field of consistent practical application of the doctrine of incorporation has been in certain cases involving the procedural immunity of foreign sovereigns and foreign States and their property from the jurisdiction of the English courts,[107] namely cases on the immunity of a foreign sovereign himself or herself prior to the coming into force of section 20 of the State Immunity Act 1978;[108] cases on the immunity of a foreign State, its emanations and officials and the property of a foreign State, especially State vessels, prior to the coming into force of Part I of the State Immunity Act;[109] and cases on the immunity of a foreign State in respect of its armed forces both before and after the advent of the State Immunity Act,[110] section 16(2) of which provides that Part I of the Act does not apply to proceedings relating to anything done by or in relation to the armed forces of a State while present in the United Kingdom. There have also been two criminal cases, which are excluded from the application of Part I of the State Immunity Act by section 16(4), in the Bow Street Magistrates' Court (and thus not of precedential value), one involving the immunity of a foreign Minister for

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[106] [2007] 1 AC 136, 170, para 59 (Lord Hoffmann). See, similarly, [2007] 1 AC 136, 179, para 100 (Lord Mance).

[107] As regards diplomatic immunity, this has been embodied in statute since 7 Anne c 12, passed in 1708.

[108] See *Duke of Brunswick v King of Hanover* (1844) 6 Beav 1, upheld (1848) 2 HLC 1; *De Haber v Queen of Portugal* (1851-1852) 17 QB 196; *Mighell v Sultan of Johore* [1894] 1 QB 149. Consider also the implicit finding in *R v Bow Street Metropolitan Stipendiary Magistrate, Ex parte Pinochet Ugarte (No 3)* [2000] 1 AC 147 that Senator Pinochet enjoyed immunity at common law in respect of acts performed by him as head of State prior to the coming into force of the UK's State Immunity Act 1978.

[109] See eg *The Parliament Belge* (1880) 5 PD 197; *The Cristina* [1938] AC 485; *United States of America and Republic of France v Dollfus Mieg et Cie SA and Bank of England* [1952] 1 AC 582; *Trendtex Trading Corporation v Central Bank of Nigeria* [1977] QB 529; *I° Congreso del Partido* [1983] 1 AC 244.

[110] See eg *Littrell v Government of the United States of America (No 2)* [1995] 1 WLR 82; *Holland v Lampen-Wolfe* [2000] 1 WLR 1573.

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Defence and the other a foreign Minister for Commerce and International Trade.[111] In all these cases, the immunity to which the relevant natural or legal person or property was entitled as a matter of customary international law was given effect by the English courts by way of a common-law rule barring the impleading or prosecution of the former and/or barring execution against them.

2. The two isolated cases

The two stand-alone cases in which the doctrine of incorporation has determined the result are *Commercial and Estates Company of Egypt v Ball*[112] and *Commercial and Estates Company of Egypt v Board of Trade*.[113] These factually complicated cases require some explanation.

Both actions arose after the UK government had, during the First World War, requisitioned a British vessel in a neutral port carrying a cargo of timber belonging to the claimants, nationals of another neutral State. Without the consent and over the protest of the owners, the ship was brought back to the UK, where the timber was requisitioned by the Controller of Timber Supplies on behalf of the Board of Trade in purported application of the Defence of the Realm Regulations, promulgated pursuant to the Defence of the Realm Act 1914.

In 1918, the plaintiffs first brought an action against the Controller of Timber in the High Court, seeking a declaration that the requisition was *ultra vires* and void, along with associated injunctive relief, and a declaration that if the defendant kept the cargo he was obliged to compensate the plaintiffs for its full value. The defendant sought to justify the requisition by reference to the Defence of the Realm Regulations and, alternatively, as an exercise on behalf of the Crown of the royal prerogative in relation to the defence of the realm and of the right of angary, the latter being the right of a belligerent, recognised by customary international law, to requisition the goods of neutrals found within its territory or territory of which it is in military occupation, subject to an obligation to pay full compensation. In *Commercial and Estates Company of Egypt v Ball*, in which no written judgment was handed down, Bailhache J rejected the first of the defendant's arguments but accepted the second. He further held that the right of angary carried with it the right on the part of the owner of the goods to full compensation. Judgment, however, was given for the defendant, since compensation could be payable only by the Crown, rather than by the defendant personally, and the former was not a formal party to the action (this being possible only via a petition of right).[114]

Subsequently the Indemnity Act 1920 was passed, which prohibited proceedings in respect of any act done in good faith and done or purporting to be done in defence of the realm but which provided for the award of compensation via a War Compensation Court. Section 2(1)(b) of the Act provided that persons who had, during the War, incurred direct loss by reason of interference with property of theirs in the UK through the exercise or purported exercise of any prerogative right of the Crown or of any regulation made or purporting to be made under any enactment relating to the defence of the realm were entitled to compensation in respect of their loss. Section 2(2) dealt with how this compensation was to be calculated. Pursuant to subsection (i), where, under any regulation made or purporting to be made under any enactment relating to the defence of the realm, any special principle for assessment of compensation was contained in the regulation, compensation was to be assessed in accordance with that principle. Pursuant to subsection (iii)(a), if the claimant would, apart from the Act, have had a legal right to compensation, the tribunal was to give effect to that right; but in assessing compensation, it was to have regard to the amount of the compensation to which, apart from the Act, the claimant would have been legally entitled, and to the

[111] See *Re Mofaz* (2004) 128 ILR 709 and *Re Bo Xilai* (2005) 128 ILR 713 respectively.
[112] (1920) 36 Times LR 526.
[113] [1925] 1 KB 271.
[114] See 36 Times LR 526.

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existence of a state of war and to all other circumstances relevant to a just assessment of compensation. The claimants sought compensation under the Indemnity Act in the War Compensation Court, whose judgment denying them full compensation they appealed to the Court of Appeal.

In *Commercial and Estates Company of Egypt v Board of Trade*, in the Court of Appeal, Bankes and Atkin LJJ held that the Defence of the Realm Regulations did not apply to the seizure of a neutral's goods brought into the UK against that person's will, so that the special principle for assessment of compensation laid down in the Regulations was inapplicable.[115] But the requisition of the claimants' timber was justified as an exercise of the prerogative right of angary, a prerogative right of the Crown within the meaning of section 2(1)(b) of the Indemnity Act. This right on the part of the Crown gave the claimants a corresponding legal right to compensation 'apart from the Act' for the purposes of section 2(2)(iii)(a), meaning that the court was obliged to give effect to that right and, in doing so, to have regard to the amount of compensation to which the claimants would have been entitled by reference to the right of angary, viz full compensation.

Leaving aside the construction of the Defence of the Realm Regulations, the principal issue for the Court of Appeal was 'whether if the Act had never been passed the claimants would have had a right to compensation enforceable in the Courts of this country in accordance with the municipal law of this country'.[116] In addressing this, Bankes LJ cited the judgment of Lord Parker in *The Zamora*, on appeal before the Privy Council from the Prize Court, where his Lordship discusses the origins of and State practice on the right of angary,[117] a right recognised by customary international law but also recognised as involving an obligation to make full compensation. Bankes LJ then asked whether 'the right thus described by Lord Parker [was] a branch of international law which constitute[d] part of the law of the land'.[118] By way of reply, his Lordship quoted at length from *West Rand*, where Lord Alverstone CJ explained what was meant by the proposition that customary international law forms part of the law of England, before concluding:

> Accepting this as a correct statement of the law it would seem that the Courts of this country, apart from the Indemnity Act, would not have hesitated at the instance of a neutral to have administered the law of angary in its entirety had the neutral taken the proper steps to claim the exercise of their jurisdiction.[119]

The 'right [was] so well established in international law that it form[ed] part of the municipal law of this country'.[120] Bankes LJ earlier referred in passing to the claimants' 'common law right'.[121] For his part, Atkin LJ first stated:

> [T]here is a well ascertained right of a belligerent Sovereign to take possession of the property of neutrals so found within his territory or territory occupied by his forces for the purposes of warfare. This is the right of angary. It appears to me to be well recognized by the conventions of civilized nations, which constitute the body of international law, and it is equally clear that it is only so

[115] Scrutton LJ's dissent centred on this aspect of the case.
[116] [1925] 1 KB 271, 282 (Bankes LJ).
[117] [1925] 1 KB 271, 282, citing [1916] 2 AC 77, 101-2.
[118] [1925] 1 KB 271, 283. In *The Zamora* [1916] 2 AC 77, 106, the Privy Council concluded that '[a] belligerent Power has by international law the right to requisition vessels or goods in the custody of its Prize Court pending a decision of the question whether they should be condemned or released, but such right is subject to certain limitations'. Since the case came on appeal from the Prize Court, where customary international law as such, and not the common law of England, was the applicable law (see below), the Board was not required to inquire into whether the customary right of angary had been received into English law. See *Attorney-General v De Keyser's Royal Hotel Ltd* [1920] AC 508, 564 (Lord Sumner): 'As to the judgment in *The Zamora*, … [w]hat has to be borne in mind is that no issue as to the Royal Prerogative arose for consideration in that case.'
[119] [1925] 1 KB 271, 283.
[120] [1925] 1 KB 271, 284.
[121] [1925] 1 KB 271, 281.

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> recognized on the footing that the Sovereign so exercising this right makes full compensation for the property he so seizes.[122]

His Lordship next considered whether the right of angary was a prerogative right of the Crown for the purposes of section 2(1) of the Indemnity Act, which seemed to him 'to admit of little doubt'.[123] The final inquiry was whether the obligation to pay compensation associated with the right of angary could be enforced only at the international level through the intervention of the affected neutral's State, as argued by the defendant, or whether it gave rise under English law to a right to compensation enforceable at the instance of the former owner in the English courts, as argued by the claimant. In Atkin LJ's view, it was the latter:

> The right of angary of the Sovereign is a right recognized by our municipal law, giving rise to rights and obligations in the full sense. The simplest illustration that can be given is the successful plea of the Timber Controller in the action brought against him by the present claimants [before Bailhache J]. He established his immunity by showing authority from the Crown under the right of angary. If no such power in the Crown was recognized by the municipal law of this country, the defendant would have remained with an undefended liability for conversion of the timber. Once the goods are seized under the right of angary, the property or the right to possession passes from the neutral owner to the Crown by our municipal law. The Crown could enforce in the Courts of this country the ordinary rights coming from that property or possession against any trespasser; and similarly the original owner or his assignee would fail in the municipal Courts to establish his rights against any person dealing with the goods who derived title, or the right of possession, through the Crown.[124]

His Lordship immediately continued:

> International law as such can confer no rights cognizable in the municipal Courts. It is only in so far as the rules of international law are recognized as included in the rules of the municipal law that they are allowed in the municipal Courts to give rise to rights or obligations. The right of angary therefore is a right recognized by English law, and falls within the definition [of the prerogative] of Professor Dicey as a right legally left in the hands of the Crown. Does it give rise to 'a legal right to compensation' in the owner of the goods seized? It is plain that one of the conditions of the right of angary as recognized by international law is that full compensation shall be made to the neutral owner. I see no reason for holding that our municipal law recognizes the right to seize, but rejects the obligation to compensate. … It was contended that the sole right to compensation was the right of the Sovereign of the injured neutral to claim compensation on behalf of his subject. I can see no reason for any such restriction. … No doubt international usage would justify the Sovereign of the neutral owner in claiming on behalf of his subject if fair compensation was withheld. This is usual practice between States and does not depend upon the absence of legal right in the neutral to sue in the municipal Courts of the country where he has been wronged in person or property. It may well be that in some States the municipal law does not recognize the right to compensation, either by denying its existence or by reason of its procedure not admitting process against the Sovereign. In our law legal rights can be put in action against the Sovereign by petition of right, and it was, as I think, rightly conceded by the Attorney-General that apart from the Indemnity Act, if a petition of right could have been brought for compensation in this case, the claimants must be held to have a legal right to compensation.[125]

In this light, the case was remitted to the War Compensation Court to be heard on the footing that the claimants had a legal right to compensation for their timber under the right of angary.

Bankes and Atkin LJJ's respective judgments are straight applications of the doctrine of incorporation.[126] They are significant in that they suggest that the doctrine can give rise at

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[122] [1925] 1 KB 271, 293.
[123] [1925] 1 KB 271, 294.
[124] [1925] 1 KB 271, 295.
[125] [1925] 1 KB 271, 295-6.
[126] See, subsequently, Viscount Radcliffe in *Burmah Oil Co Ltd v Lord Advocate* [1965] AC 75, 123, referring to *The Zamora* (wrongly) and *Commercial Estates Company of Egypt v Board of Trade*: 'Angary, … as those cases made plain, was only a Crown right recognised by our municipal law because it was a belligerent right recognised by international law and there acknowledged to be subject to the condition of providing compensation to the deprived neutral.'

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common law not only to disabilities on the part of the relevant organ of government, as in the immunity cases in relation to the courts, but also to rights or, more accurately, powers – specifically, prerogative powers on the part of the Crown.[127] In this light, the statement that customary international law is part of the common law of England would seem to extend beyond rules of law established by the courts themselves to encompass that 'residue of discretionary or arbitrary authority, which at any given time is legally left in the hands of the Crown',[128] 'out of the ordinary course of the common law',[129] not created but merely declared by the courts.[130]

3. *Three fallacies and an anomaly*

In *Jones (Margaret)*, Lord Mance held that the crimes of piracy, violation of safe-conducts, infringement of the rights of ambassadors and, 'very arguably', war crimes 'have in the past been received and recognised at common law as domestic crimes'.[131] Lord Bingham effectively stated the same.[132] Both of their Lordships took their first three examples from Blackstone, while the example of war crimes was based on the appellants' citation of the case of *Re Sandrock*[133] as representative of the war crimes trials conducted by British forces in the immediate wake of the Second World War. But the reality is that of the offences listed by Lords Mance and Bingham only piracy has ever been tried as a common-law crime, and this for particular historical reasons which have nothing to do with the doctrine of incorporation.

At the international level, the crime of piracy predates international law in its identifiably modern, inter-State form, having its origins in the various medieval bodies of transnational maritime law applied in the different European ports—the Rhodian laws, the

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[127] The *Commercial Estates* litigation is not the only case-law in which the prerogative has been considered in the light of customary international law. *In re Ferdinand, Ex-Tsar of Bulgaria* [1921] 1 Ch 107 turned on whether the Crown enjoyed a prerogative power in time of war to seize the property of enemy nationals. All three members of the Court of Appeal made detailed reference to the position under customary international law. But it was in reliance on Hale's *Pleas of the Crown*, the Year Books and dicta in more recent English authorities that the court held 'that by the common law of England the Crown has the right, if it chooses to exercise it, to seize as forfeited to itself the property of enemies found within the realm at the outbreak of war': [1921] 1 Ch 107, 136 (Warrington LJ). See also [1921] 1 Ch 107, 124 (Lord Sterndale MR) and 143 (Younger LJ). That is, 'the right in question [was] a part of the ancient common law of England': [1921] 1 Ch 107, 138 (Warrington LJ). Warrington LJ seemingly contemplated, by reference to *West Rand*, that the Crown's established prerogative in this regard could be extinguished by a subsequent change in the customary international rule, at least where the UK government had accepted this rule as binding: see [1921] 1 Ch 107, 136 and 138-9. This also seems to have been the purpose for which Younger LJ looked to customary international law, and is the most likely explanation for Lord Sterndale's recourse to the latter: see [1921] 1 Ch 107, 114-5 and 125 respectively. All of their Lordships were, however, firmly of the view that customary international law served instead to support the common-law position.

[128] *Burmah Oil Co Ltd v Lord Advocate* [1965] AC 75, 99 (Lord Reid), 117 (Viscount Radcliffe), 137 (Lord Hodson) and 165 (Lord Upjohn), quoting A V Dicey, *Introduction to the Study of the Law of the Constitution* (10th edn, Macmillan, London, 1959), 424. The same statement, albeit from an earlier edition of Dicey, is quoted with approval in *Attorney-General v De Keyser's Royal Hotel Ltd* [1920] AC 508, 526 (Lord Dunedin); *In re Ferdinand, Ex-Tsar of Bulgaria* [1921] 1 Ch 107, 139 (Warrington LJ); *Council of Civil Service Unions v Minister for the Civil Service* [1985] AC 374, 398 (Lord Fraser); and *R (Bancoult) v Secretary of State for Foreign and Commonwealth Affairs* [2008] UKHL 61; [2008] 3 WLR 955, 977, para 69 (Lord Bingham). See, similarly, *Burmah Oil Co Ltd v Lord Advocate* [1965] AC 75, 148 (Lord Pearce)('the residue of the power of sovereignty that has not been superseded or abridged or supplanted temporarily by the power of the King in Parliament').

[129] Blackstone, above n 2, book 1, chap 7, 232.

[130] 'The prerogative is not, strictly speaking, the product of the common law, but it is defined by common law judges.': S Payne, 'The Royal Prerogative', in M Sunkin & S Payne (eds), *The Nature of the Crown. A Legal and Political Analysis* (Oxford University Press, Oxford, 1999), 77, 106. 'Though these powers were "known to the common law", they should more accurately be understood as having been accommodated within our law.': M Loughlin, 'The State, the Crown and the Law', in Sunkin & Payne, ibid, 33, 64, quoting G H L Le May, *The Victorian Constitution* (Duckworth, London, 1979), 6.

[131] [2006] UKHL 16; [2007] 1 AC 136, 179, para 101. Confusingly, his Lordship almost immediately states that 'crimes under public international law can no longer be, *if they ever were*, the subject of any automatic reception or recognition in domestic law by the courts': [2007] 1 AC 136, 179, para 101, emphasis added.

[132] [2007] 1 AC 136, 158, paras 20-2.

[133] [2007] 1 AC 136, 158, para 22, citing (1945) 13 ILR 297.

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Consolato del Mare, the Wisby (Visby) code, the Lübeck code, the laws of Amalfi, the laws of Trani, the code of Oléron and so on[134]—which eventually coalesced into a maritime law that constituted, by the time of Lord Mansfield CJ's statement in *Luke v Lyde*, 'the general law of nations'.[135] In England, piracy became triable not under the common law but directly under this maritime law, a species of civil law[136] applied by the Admiralty courts.[137] Even when piracy became triable by the idiosyncratic Admiralty Sessions according to a modified common-law procedure, the relevant statute, 28 Hen VIII c 15 of 1536,[138] provided only for its trial and punishment: 'piracy itself remained an offence unknown to the common law and was felony only by the marine law',[139] although by then piracies were described by Sir John Hawles, Solicitor General, as 'crimes against the law of nations'.[140] It was not until the abolition of the Admiralty Sessions in the nineteenth century and the transfer of their exclusive jurisdiction over crimes at sea to the Central Criminal Court[141] that piracy was tried as a common-law crime, and it was tried as such not thanks to the doctrine of incorporation but simply by virtue of the fact that the common law inherited those crimes previously recognised and applied by the Admiralty.[142] It was termed piracy '*jure gentium*' not on account of the view that customary international law was part of the common law of England[143] but because the definition of piracy before the defunct Admiralty Sessions was determined by reference to the law of nations.[144]

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[134] See Holdsworth, above n 44, vol I, 526-8.

[135] (1759) 2 Burr 882, 887.

[136] See, among others, M Hale, 'A Disquisition touching the Jurisdiction of The Common Law and Courts of Admiralty in relation to Things done upon or beyond the Sea, and touching Maritime and Merchant Contracts', in M Prichard & D Yale (eds), *Hale and Fleetwood on Admiralty Jurisdiction* (Selden Society, London, 1993), 1, 58; M Hale, *The History of the Common Law of England* (C M Gray ed, University of Chicago Press, London, 1971), 20 and 23-5; J F Stephen, *A History of the Criminal Law of England* (Macmillan, London, 1883), vol II, 17; Holdsworth, above n 44, vol IV, 272. For the material sources of this law as applied in England, see *The Black Book of the Admiralty* (T Twiss ed, Longman/Trübner, London, 1871-6), vol II, 209-41 and 431-81, vol III and vol IV; Hale, 'Disquisition', ibid, 58-64; Hale, *History*, ibid, 24; Pritchard & Yale, ibid, xxxiii-vi.

[137] Before the mid-fourteenth century, cases of piracy had sometimes been prosecuted at common law. But in 1361 a commission of oyer and terminer issued to, *inter alia*, several justices to try a case of piracy by the common law 'was recalled upon the express ground that by the law of England such offences were triable, not by the common law before justices, but by the maritime law before the admiral': R G Marsden, 'Early Prize Jurisdiction and Prize Law in England' (1909) 24 *English Historical Review* 675, 681. See also the reproduction of the royal revocation of the commission in R G Marsden (ed), *Documents relating to Law and Custom of the Sea* (Navy Records Society, London, 1915-6), vol I, 88. '[N]o record has been found of pirates having been tried at common law' after this: Marsden, 'Early Prize Jurisdiction', ibid, 683. See also R G Marsden (ed), *Select Pleas in the Court of Admiralty. Volume I* (Selden Society, London, 1894), liv, recalling an incident which shows that by 1429 'the criminal jurisdiction of the common law courts in cases of piracy seems to have fallen into desuetude'. Although reference is often made in the literature, in relation to subsequent years, to 'piracy at common law', the label is used in order to distinguish piracy under the maritime law, and ultimately under the law of nations, from piracy within the extended meaning given to it over the years by various statutes. See eg Stephen, above n 136, vol II, 27: 'It must … be observed that there are two kinds of piracy, namely, first, piracy at common law, or (as it is often called) piracy by the law of nations; and secondly, piracy by statute …'

[138] See also, the previous year, 27 Hen VIII c 4.

[139] Prichard & Yale, above n 136, cxlviii. In the words (and spelling) of Hale, 'Disquisition', above n 136, 1, 87, 'pyracy, though it be Capital by the Marine Law, yet the Common Law takes no Notice of [it]'.

[140] *Trial of Joseph Dawson and others* (1696) 13 Howell's St Tr 451, col 477.

[141] See section 22 of 4 & 5 Will IV c 36, affirmed by section 4 of 7 Vict c 2, which conferred Admiralty's criminal jurisdiction on the courts of assize.

[142] 'The criminal jurisdiction of the Admiralty, having been administered by the common law judges, has become part and parcel of the common law ...': Holdsworth, above n 44, vol I, 552.

[143] For example, the doctrine of incorporation is never so much as mentioned in the Privy Council's judgment in *In re Piracy jure gentium* [1934] AC 586, in which the common law of crime of Hong Kong was implicitly treated as consonant with that of England. As it is, it is worth pointing out that—whatever the position under the old pan-European maritime law and perhaps even under the law of nations of Blackstone's time—the crime of piracy, described by Blackstone as an 'offence against the law of nations', is probably not in its modern form what we would today call a crime against (or, more commonly, under) international law. That is, in all likelihood modern international law does not itself prohibit, on pain of punishment, the commission by an individual of piracy. Rather, the better view is that contemporary customary international law posits a special jurisdictional rule permitting each State to apply its municipal criminal law on the basis of universality to conduct amounting to

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Violations of safe-conducts were triable not at common law but pursuant to statute.[145] By 2 Hen V st I c 6, they were deemed to be high treason, triable, if committed at sea, by specially-appointed conservators of truces and safe-conducts in the ports according to the procedure of the maritime law or, if committed within the body of a county, by the local port's conservator and two men learned in the law of the land according to the procedure of the common law. This Act was revived[146] by 29 Hen VI c 2, which extended the power to adjudicate such cases to the Lord Chancellor, sitting with either Chief Justice. But if these Acts survived 14 Edw IV c 4, they were finally repealed by statutes passed under Edward VI and Mary which abolished novel treasons.[147] In short, violations of safe conducts were not as such crimes by Blackstone's day, although 31 Hen VI c 4 still provided for a special civil remedy.

As for violations of the rights of ambassadors, these were punished in Blackstone's day pursuant to statute, namely 7 Anne c 12. They were never punishable at common law.[148]

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piracy, as defined by customary international law itself – in other words, to criminalize piracy wherever and by whomever it is committed: see eg Harvard Law School Research in International Law, 'Jurisdiction with Respect to Crime' (1935) 29 *American Journal of International Law Supplement* 435, 755-6 and 760; Brownlie, above n 23, 306, including n 47; J Crawford & S Olleson, 'The Nature and Forms of International Responsibility' in M Evans (ed), *International Law* (2nd edn, Oxford University Press, Oxford, 2006), 451, 453. See also *The SS 'Lotus'*, PCIJ Rep Series A No 10, 70 (sep op Moore). In short, today there is no substantive crime of piracy under customary international law which could possibly be incorporated into the common law. The crime, although defined by customary international law, is substantively one under municipal law alone.

[144] The position remains the same today, so that, for example, when the UK wished to make sure that the definition of piracy given in the Convention on the Law of the Sea 1982 was reflected in domestic criminal law, the relevant statutory provision, section 26(1) of the Merchant Shipping and Maritime Security Act 1997 (c 28), stipulated that '[f]or the avoidance of doubt it is hereby declared that for the purposes of any proceedings before a court in the United Kingdom in respect of piracy, the provisions of the United Nations Convention on the Law of the Sea 1982 that are set out in Schedule 5 shall be treated as constituting part of the law of nations'.

[145] 'It is to these statutes that we must look for the germs of that part of the law of England which is directed to the enforcement of international obligations, and the regulation of the rights of foreigners.': Holdsworth, above n 44, vol II, 474. As it is, even in the eighteenth century, the violation of safe-conducts granted to foreigners and attacks on foreign ambassadors, both characterized by Blackstone as 'offences against the law of nations', were not what we would today call crimes against or under international law – that is, international law did not itself prohibit, on pain of punishment, their commission by an individual. Any criminalization was under national law alone. Moreover, even in Blackstone's day, violations of safe-conducts and attacks on ambassadors were not 'offences against the law of nations' in the same way that piracy was. What the label referred to in the former context was the criminalization and ultimately punishment under national law of acts constituting a breach of the law of nations by the receiving State, either because they were performed by a servant of the State or because they resulted from what we would now call its failure of due diligence. The receiving State's prosecution of the persons responsible for the breach amounted to a form of reparation to the victim's State. See eg the reference to 'reparation' and the repeated reference to 'satisfaction' in the extended diplomatic correspondence over the attack on the Russian ambassador in 1708, the abortive attempt to prosecute those responsible and the consequent passage of 7 Anne c 12, section 4 of which made the suit or prosecution of an ambassador a criminal offence, in Martens, above n 51, 86-7 and 75, 76, 78, 86, 87, 89, 90, 91, 93, 94 and 95. See also *Triquet v Bath* (1765) 3 Burr 1676, 1480 (Lord Mansfield CJ)('No punishment would have been thought, by [the Czar], an adequate reparation'; 'this Act of Parliament passed, as an apology … from the whole nation'); *Respublica v De Longchamps*, 1 US (1 Dall) 111, 117 (1784)(M'Kean CJ)('no punishment less than death would have been thought by the Czar an adequate reparation for the arrest of his Ambassador'; 'However, the Princes of the world, at this day, are more enlightened, and do not require impracticable nor unreasonable reparations for injuries of this kind.'); *Viveash v Becker* (1814) 3 M & S 284, 291 (Lord Ellenborough CJ)('the Act of Parliament was passed by way of apology, and in order to conciliate the powers offended'). Blackstone, above n 2, book IV, chap 7, 68 writes: '[W]here the individuals of any state violate this general law [viz the law of nations], it is then the interest as well as the duty of the government under which they live, to animadvert upon them with a becoming severity, that the peace of the world may be maintained. … It is … incumbent upon the nation injured, first to demand satisfaction and justice to be done on the offender, by the state to which he belongs …' In modern terms, we would say that such prosecution acquitted the responsible State's obligation to afford satisfaction to the injured State, within the meaning of articles 34 and 37 of the International Law Commission's Articles on Responsibility of States for Internationally Wrongful Acts, annexed to UNGA res 56/83, UN Doc A/RES/56/83, 12 December 2001. In short, as with piracy, in neither case does there exist a substantive offence under customary international law even potentially capable of incorporation into the common law.

[146] It had previously been suspended by 14 Hen VI c 8 and repealed by 20 Hen VI c 11.

[147] See Blackstone, above n 2, book IV, chap 5, 70.

[148] See the discussion above at Part II.B.

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Pace Lords Bingham and Mance, war crimes have never been tried without statute in the common-law courts. As a matter of English law, criminal jurisdiction over the army in time of war, traceable all the way back to the court of the Constable and the Marshal[149] and subsequently exercised by courts-martial, has always constituted a separate criminal jurisdiction,[150] one in which the applicable law was originally civil-law[151] in character (comprising ordinances issued by the king at the start of each war[152]), later partly prerogative and partly statutory,[153] and finally wholly statutory.[154] Jurisdiction over enemy prisoners of war was also originally exercised by the civil-law Constable and Marshal's court,[155] applying the *jus belli* or law of war directly,[156] and later, in rare cases where recourse was had to adjudication, by ad hoc courts composed of officers applying the same. The British military courts sitting in occupied Germany after the Second World War—which, pursuant to a Royal Warrant of 1945,[157] tried enemy war criminals under the customary international law of war crimes—represented a more formalised and regularised species of the last. They were not implanted within the criminal justice system of England and Wales (nor of Scotland or Northern Ireland, for that matter) but were simply designated as 'Military Courts', standing wholly outside the civilian court system, in the same way that the regular courts-martial (from which they were completely distinct) stand outside it;[158] and the law they applied was not

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[149] For the jurisdiction of this court, see 13 Rich II st I c 2, translated at 2 Statutes of the Realm 61: 'To the Constable it pertaineth to have Cognisance ... of War out of the Realm, and also of Things that touch War within the Realm that cannot be determined nor discussed by the Common Law, with other Usages and Customs to the same matters pertaining ...'.

[150] See, generally, W S Holdsworth, 'Martial Law Historically Considered' (1902) 18 *Law Quarterly Review* 117, 119-22; R O'Sullivan (ed), *Military Law and the Supremacy of the Civil Courts* (Stevens & Sons, London, 1921), 1-12; D P O'Connell, 'The Nature of British Military Law' (1963) 19 *Military Law Review* 141; J Stuart-Smith, 'Military Law: Its History, Administration and Practice' (1969) 85 *Law Quarterly Review* 478.

[151] See, among many others, E Coke, *Institutes of the Laws of England* (19th edn, F Hargrave & C Butler eds, Clark *et al*, London, 1832), 391b; Hale, *History*, above n 136, 20 and 27-8; Holdsworth, above n 44, vol IV, 272.

[152] See Hale, *History*, above n 136, 26; M Hale, *The Prerogatives of the King* (D Yale ed, Selden Society, London, 1976), 119-20; Stuart-Smith, above n 150, 479-81. Hale, *Prerogatives*, ibid, 119 notes in the Constable and Marshal's jurisdiction over the army something of an 'intermixture' between this military law, properly so called, and the *jus belli* or law of war. For examples of ordinances issued by the King, see the Ordinances of War made by Richard II at Durham in 1385 and the Ordinances of War made by Henry V at Mantes in 1419, reproduced in *Black Book*, above n 136, vol I, 453-8 and 459-72 respectively. As for procedure, proceedings in the court of the Constable and Marshal 'held anciently the form of common law proceedings, though in later times [the court] hath held the course of summary proceedings according to the civil law', according to Hale, *Prerogatives*, ibid, 120.

[153] See Holdsworth, above n 150, 121-2, on the articles of war promulgated by the king at the commencement of war and the annual Mutiny Act, first passed in 1689, as well as the later Army Act 1881, which did not wholly dispense with the theoretical possibility of prerogative promulgation of articles of war. See also O'Connell, above n 150, 141-7.

[154] See Army Act 1955 (c 18). See also Air Force Act 1955 (c 19) and Naval Discipline Act 1957 (c 53). These Acts will be superseded by the Armed Forces Act 2006 (c 52) when its relevant provisions enter into force. All of this legislation not only provides for specific military offences but also deems the ordinary ('civil') criminal law to be applicable to service personnel wherever they may be, although the charge in the event of a violation of the latter is not an offence against the latter as such but rather (except, under the 1950s Acts, as regards the commission of certain offences in the UK) an offence against the deeming provision of the relevant legislation, viz Army Act 1955, section 70, Air Force Act 1955, section 70; Naval Discipline Act 1957, section 42; Armed Forces Act 2006, section 42. Until very recently, the practice was that service personnel suspected of conduct amounting to a war crime would be charged not with a war crime as such but with murder, manslaughter, assault, etc within the meaning of the ordinary criminal law or with a relevant offence under military law, such as looting, an offence against the civilian population, disgraceful conduct, disobedience to standing orders, disobedience to a lawful command, etc.

[155] See Hale, *History*, above n 136, 26; Holdsworth, above n 44, vol IV, 574 and 577; H E Richards, 'Martial Law' (1902) 18 *Law Quarterly Review* 133, 133.

[156] See Hale, above n 152, 119 and 121, although noting at 120 a degree of intermixture with military law.

[157] Royal Warrant, Regulations for the Trial of War Criminals, 14 June 1945, AO 81/1945, reproduced in War Office, *The Law of War on Land being Part III of the Manual of Military Law* (HMSO, London, 1958), appendix XXV, 347.

[158] In constitutional terms, these military courts were prerogative courts, and thus prohibited from sitting within the realm.

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English law but the 'the laws and usages of war',[159] viz the customary international laws of war, as a sui generis applicable law. Today, leaving aside certain Second World War offences,[160] war crimes are triable under the International Criminal Court Act 2001[161] or the earlier Geneva Conventions Act 1957,[162] as amended by the Geneva Conventions (Amendment) Act 1995.[163]

4. Four deceptive cases

a. De Wütz v Hendricks

Some commentators treat the judgment of Best CJ in the early nineteenth-century case of *De Wütz v Hendricks*[164] as an application of the doctrine of incorporation.[165] But closer examination reveals this not to be so.

The plaintiff, with a view to raising a loan to fund the Greek War of Independence against the Ottomans, lodged with the defendant, a London stockbroker, a power of attorney (which turned out to be a fabrication) purportedly signed by the Exarch of Ravenna. For his part, the defendant, at the former's request, arranged the printing of stamped scrip receipts. The deal for the loan fell through after suspicions were raised as to the truth of the plaintiff's claims, and the defendant refused to return the supposed power of attorney and withheld the scrip receipts. The plaintiff sued in trover for the return of both. At the trial before Best CJ, the jury found for the defendant on the ground that the transaction was a fraud on the part of the plaintiff. The plaintiff moved for a new trial, again before Best CJ, arguing that the fraudulent transaction did not deprive him of his property in the papers.

Best CJ stated:

> It occurred to me at the trial that it was contrary to the law of nations (which in all cases of international law is adopted into the municipal code of every civilized country), for persons in England to enter into engagements to raise money to support the subjects of a government in amity with our own, in hostilities against their government, and that no right of action could arise out of such a transaction. I stated my opinion to the counsel for the Defendant, but he did not ask for a nonsuit, so I permitted the cause to proceed. In consequence of what I said, a note has since been sent me of a case that occurred lately in Chancery, in which the Lord Chancellor is reported to have said that English courts of justice will afford no assistance to persons who set about to raise loans for subjects of the king of Spain to enable them to prosecute a war against that sovereign. Had I been aware that my opinion was supported by such high authority (although the counsel for the Defendant would not take the objection), I should have nonsuited the Plaintiff. On further consideration, I think that my opinion at the trial was right, and on that ground we ought not to grant a new trial.[166]

His Lordship's reference to the case in Chancery before the Lord Chancellor is to *Jones v Garcia del Rio*,[167] decided the year before. In this earlier case, holders of scrip or shares in a loan raised for the benefit of the Peruvian government, to be secured in part by Peruvian government bonds payable to the bearer, sought an injunction, on behalf of themselves and all other subscribers to the loan, compelling the defendant bankers to return their subscriptions.

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[159] Royal Warrant 1945, section 1, cross-referable to sections 2 and 4.

[160] War crimes involving homicide committed in Germany or German-occupied Europe during World War II by persons who were on 8 March 1990 or who became subsequently UK citizens or residents may be tried under the War Crimes Act 1991 (c 13). They are tried not as war crimes *eo nomine* but as murder, manslaughter or culpable homicide within the meaning of English law.

[161] c 17.

[162] c 52.

[163] c 27.

[164] (1824) 2 Bing 314.

[165] See eg Lauterpacht, above n 2, 54-5; Jennings & Watts, above n 23, 57 n 12.

[166] 2 Bing 314, 315-6.

[167] (1823) 1 Turn & R 297. That this is the case referred to by Best CJ in *De Wütz v Hendricks* is made clear at 2 St Tr NS 125, 127 n (a), in an alternative report of the latter case.

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They alleged fraud and misrepresentation and an inability to perfect the security, their argument being that no State of Peru had ever been recognised by His Majesty's government and that no such State existed, Peru remaining a province and dependency of the kingdom of Spain.[168] The injunction was granted *ex parte*, upon which the defendant made motion to dissolve it, submitting *inter alia* that, while it was true that His Majesty's government had not recognised an independent State of Peru, such a State did in fact exist, after the people of Peru had risen in revolution, ousted the Spanish viceroy and established a State of their own. In responding to this argument, Lord Eldon LC had cause to state the following:

> We all know that Peru was part of the dominions of Spain, and that Spain and this country are at peace, and that this country has not acknowledged the government of Peru; I want to know, whether, … if individuals in this country choose to advance their money for the purpose of assisting a colony opposed to its parent state, that parent state being at peace with this country, the Courts of Justice here will assist them to recover their money, and will not leave them to get it as they can? Practically speaking great inconvenience may result from these transactions, for if at any future time the government of this country shall be disposed to say, Peru shall still continue annexed to Spain, these creditors will immediately come to the government and say, do not accede to the arrangement unless Spain will pay us what we have advanced to the colony.[169]

In the event, however, Lord Eldon LC decided the case on a completely different basis, namely that the plaintiffs, having distinct demands, could not file a single bill. '[A]nd upon that ground alone, his Lordship, without again adverting to the question of public policy, dissolved the injunction'.[170] The maxim that the law of nations forms part of the common law of England appears nowhere either in counsel's argument or in the judgment.

On its own, Best CJ's judgment in *De Wütz v Hendricks* is equivocal. What is clear—both from his use of the word 'ought' and his reference to Lord Eldon's dicta in *Jones v Garcia del Rio*, where the issue is expressly characterised as such—is that his Lordship's denial of a right of action was a function of public policy. But his precise reasoning is inscrutable. Best CJ could be saying that because it is contrary to the law of nations[171] *quâ* the law of nations for an individual to fund a revolt against a foreign sovereign in amity with the United Kingdom, an English court should not recognise any cause of action purporting to arise out of such conduct. On this reading, his reference to international law's being adopted into municipal law is either merely by way of justification *ex abundante cautela* for his taking notice of international law at all in the municipal context or is simply gratuitous and literally parenthetical commentary expressive of a mind shaped by eighteenth-century nostrums. Alternatively, his Lordship could be saying that because it is contrary to the law of nations for individuals to support a rebellion against a foreign sovereign at peace with their own, it is contrary to English law to do so, and an English court should not recognise any cause of action purporting to arise out of a breach of English law. On this second reading, Best CJ's invocation of the doctrine of incorporation is part of the ratio of the judgment. Even on the judgment's own terms, however, the second construction is less likely than the first. As a rhetorical matter, his Lordship's nod to the doctrine of incorporation simply does not read like a crucial part of his reasoning. Moreover, it would perhaps be surprising (although by no means out of the question) were the common law of England, a law traditionally governing

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[168] 1 Turn & R 297, 298. Counsel's submissions and the judgment refer consistently to recognition of the government of Peru, when what is clearly meant is the State of Peru. The same goes in relation to Spain.

[169] 1 Turn & R 297, 299-300. It should be noted that of equal, if not greater concern to His Lordship was 'whether, supposing Peru to be so far absolved from the government of Spain that it never can be attached to it again, the King's Courts will interfere at all while the Peruvian government is not acknowledged by the government of this country': 1 Turn & R 297, 299. 'What right have I, as the King's Judge', he asked ibid, 'to interfere upon the subject of a contract with a country which he does not recognize?'

[170] 1 Turn & R 297, 301.

[171] This was probably not, in fact, true at the time. It is certainly not true today. Modern customary international law imposes on individuals no obligation of loyalty to their sovereign. Nor does it prohibit individuals from providing material support to rebels against a foreign sovereign. What it does do is impose on States an obligation of due diligence in relation to acts by individuals directed against the safety of a foreign State or its government – that is, an obligation to take all measures within their power to prevent their territory being used by individuals for acts inimical to this safety.

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relationships between individuals within the realm and the relationship between the English sovereign and her subjects, to concern itself with the relationship between a foreign sovereign and his.

The second construction of *De Wütz v Hendricks* is rendered less likely still by cross-reference to *Jones v Garcia del Rio*, prayed in aid by Best CJ. The statement that the law of nations forms part of the law of the land does not feature at all in the former. Lord Eldon CJ's musings in that case would appear to be directed towards customary international law as customary international law.

All in all, *De Wütz v Hendricks* is better seen as yet one more of the many nineteenth-century cases, most of them proceeding under 7 Anne c 12, in which the maxim that the law of nations is part of the law of England is repeated to no genuinely useful end.

b. The Emperor of Austria v Day and Kossuth

The judgment of Sir John Stuart V-C in the mid-nineteenth-century case of *The Emperor of Austria v Day and Kossuth*[172] is also sometimes taken as a clear example of the doctrine of incorporation in action.[173] But the reality is far more equivocal – even leaving aside the fact that, when the Lord Chancellor and Lords Justice upheld the decision on appeal, they did so on a different ground,[174] and the fact that the alleged right under the law of nations cited by the Vice-Chancellor, the so-called *jus cudendae monetae*, really 'has nothing to do with international law', in the words of defendant's counsel on appeal.[175] In the final analysis, the case does not appear to be one where a rule of customary international law was applied as a rule of common law.

The plaintiff, in his capacity as the king of Hungary and thus representative of the Hungarian State, moved to restrain the defendants, a firm of London printers and the Hungarian nobleman and revolutionary Lajos Kossuth, from counterfeiting Hungarian paper money, and sought the delivery up to be destroyed of counterfeit notes already produced and the plates from which they were printed. He argued that he enjoyed the exclusive right under Hungarian law to issue Hungarian paper money.[176] The account given in the law reports of the submissions of plaintiff's counsel to the Court of Chancery evidences no argument based on the law of nations, let alone on the doctrine of incorporation, although, going on the fact that the doctrine makes its way into the judgment, such an argument seems to have been made. In response, the defendants submitted that the English courts had no jurisdiction to grant relief, since the right sought to be protected was 'a mere public and political right'[177] – that is, either a prerogative right of a foreign sovereign or a political right of his subjects, neither of which could be enforced in an English court.

The Vice-Chancellor granted the relief sought. He first addressed the defendants' argument that the right in question was merely 'public and political':

> If the question merely related to an affair of State it would be a question, not of law, but for mere political discussion. But the regulation of the coin and currency of every State is … a great public

[172] (1861) 2 Giff 628.

[173] See eg Lauterpacht, above n 2, 56; O'Connell, above n 2, vol I, 57-8; Jennings & Watts, above n 23, 57 n 12 ('a striking application of the doctrine').

[174] *The Emperor of Austria v Day and Kossuth* (1861) 3 De G F & J 217. In argument before the Lord Chancellor and Lords Justice, 'counsel for the Plaintiff … entirely repudiated any claim to the injunction on the ground of a mere invasion of any prerogative of the Plaintiff as a reigning sovereign': 3 De G F & J 217, 232.

[175] 3 De G F & J 217, 227. But *cf* 3 De G F & J 217, 251 (Turner LJ). The better view is that the right to stamp coin and print money is a right not under customary international law but under domestic law alone. It is a domestic-law right for the protection of which, however, customary international law lends its support in certain ways. For example, going beyond the usually territorial and nationality-based grounds of prescriptive jurisdiction, customary international law has long permitted a State to criminalize the counterfeiting of its currency by non-nationals based in another State's territory; and the counterfeiting by one State of another's currency with a view to destabilising the latter's economy would constitute an impermissible interference in the domestic affairs of that State, as prohibited by customary international law.

[176] See 2 Giff 628, 628 and 639-41.

[177] 2 Giff 628, 678.

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> right recognised and protected by the law of nations. A public right, recognised by the law of nations, is a legal right; because the law of nations is part of the common law of England.[178]

The last statement was 'supported by unquestionable authority', by which his Lordship meant Blackstone, whose views he faithfully reproduced.[179] He continued:

> To apply these acknowledged principles of the law of nations and law of England to the present case, it appears that the British Parliament, by the Act 11 Geo 4 and 1 Wm 4, c. 66, has enacted that the forgery or counterfeiting the paper money of any foreign sovereign or State is a felony punishable by the law of England. This statute is a legislative recognition of the general right of the sovereign authority in foreign States to the assistance of the laws of this country to protect their rights as to the regulation of their paper money as well as their coin, and to punish, by the law of England, offences against that power.
>
> The friendly relations between civilized countries require, for their safety, the protection by municipal law of an existing sovereign right of the kind recognised by the law of nations. …[180]

His Lordship then turned to the relief sought in the case, which was not itself a criminal prosecution under 11 Geo 4 and 1 Wm 4, c 66 but instead a suit at equity:

> [I]f the avowed and single purpose, for which this property is now in the hands of the Defendant, be a purpose hostile to the Plaintiff's rights, if this Court were to refuse its interference, the refusal would amount to a decision that it has no jurisdiction to protect the legal right of the Plaintiff—a legal right recognised by the law of nations, and, therefore, by the law of England. …
>
> Foreign States at peace with this country have always been held entitled to the assistance of the law of England to vindicate and protect their rights …[181]

Sir John Stuart V-C concluded:

> [W]here, as in the present case, the existing rights of the Plaintiff, as sovereign of Hungary, are recognised by the Crown of England, the relief which he seeks for this cause is for the protection of a legal right of universal public importance against the acts of the Defendants. That protection can only be effectively afforded by the relief prayed for in this suit; and there must be a decree against the Defendants, according to the prayer of the bill.[182]

The decree was thus given.

It is not easy to discern the ratio of Sir John Stuart V-C's judgment; but close reading suggests that his Lordship did not, in fact, apply the putative rule of customary international law at issue, the *jus cudendae monetae*, as a rule of common law. His use of the law of nations is more by way of evidentiary affirmation of the legal nature of the exclusive domestic right of the king of Hungary to issue paper money and by way of legitimation of his Lordship's decision to protect that domestic legal right by means of an equitable remedy at English law.[183] His Lordship's reasoning appears to be as follows: that the king of Hungary's exclusive right under Hungarian law to issue Hungarian currency is indeed a legal and not merely political right is evidenced by the fact that the law of nations recognises it as such – and since the law of nations recognises the right as a legal one, so too should the law of England, the law of nations being part of the common law of England; foreign States at peace with England have always been held entitled to the assistance of the law of England to vindicate and protect their legal rights; *ergo* the king of Hungary should be granted the relief he seeks to vindicate and protect his exclusive right under Hungarian law to issue Hungarian currency. What Sir John Stuart V-C is not saying is that the king of Hungary enjoys the exclusive right under the common law of England to issue Hungarian currency – which, as it

[178] 2 Giff 628, 678.
[179] 2 Giff 628, 678-9.
[180] 2 Giff 628, 679.
[181] 2 Giff 628, 680-1.
[182] 2 Giff 628, 680-1.
[183] See, arguably similarly, 3 De G F & J 217, 251 (Turner LJ).

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is, would be a curious and extremely doubtful proposition.[184] The invocation of the doctrine of incorporation is superfluous at best.

c. The Rose Mary

The 1953 case of *Anglo-Iranian Oil Co Ltd v Jaffrate (The Rose Mary)*[185] was heard not in the English courts but in the Supreme Court of the then Colony of Aden. But to the extent that it proceeded under principles taken directly from English law, and insofar as it was subsequently considered in the English courts,[186] it merits mention. The case involved an action in detinue for delivery up of oil contained in a tanker. Pursuant to a concession agreement of 1933 between the plaintiffs (until 1935, the Anglo-Persian Oil Company) and the government of Persia (after 1935, Iran), the former enjoyed the exclusive right to extract oil in a given area of Iran. In 1951, the government of Iran legislated to expropriate without compensation and to nationalise all property vesting in the plaintiffs by virtue of the 1933 agreement. The plaintiffs' suit was part of a worldwide strategy to resist the nationalization. The legal obstacle in the present case was that, under English common-law conflicts rules, transfer of title to tangible movable property is generally governed by the law of the State where the property was situate at the time of the purported transfer, and, in an application of the foreign act of State doctrine, an English court is generally bound to give effect to a foreign law pertaining to property situate, at the time of the law's passage, within the territory of the foreign State in question. The plaintiffs' challenge to the application in the instant case of the foreign act of State doctrine was summarised by Campbell J:

> The plaintiffs' contention can be based on two grounds: first, that no state can be expected to give effect within its territorial jurisdiction to a foreign law that is contrary to its own public policy or essential principles of morality; and secondly, that a foreign law that is contrary to international law … need not be regarded.[187]

His Lordship accepted that customary international law required an expropriating State to pay compensation to parties whose property was expropriated, and concluded:

> … I am satisfied that, following international law as incorporated in the domestic law of Aden, this court must refuse validity to the Persian Oil Nationalization Law in so far as it relates to nationalized property of the plaintiffs which may come within its territorial jurisdiction.[188]

He held the disputed oil to be the property of the plaintiffs.

Campbell J's reasoning is unclear to the extent that, when recounted as part of the plaintiffs' submission, the principle on which he relies is a negative, essentially discretionary one ('a foreign law that is contrary to international law … need not be regarded'), but when referred to in his own conclusion on the point it is positive and mandatory ('this court must refuse validity'). It is significant, however, that the two relevant passages from English case-law to which his Lordship looks for support—neither of which, it should be noted, invoke the

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[184] Also extremely doubtful is his Lordship's enforcement of a foreign sovereign prerogative – so doubtful, in fact, that when the case went on appeal, counsel for the plaintiff disavowed his Lordship's reasoning: see 3 De G F & J 217, 232. The Lord Chancellor stated obiter that he would have upheld the appeal had it turned on this ground: 3 De G F & J 217, 238. See, similarly, 3 De G F & J 217, 251-2 (Turner LJ).

[185] [1953] 1 WLR 246.

[186] See *In re Claim by Helbert Wagg & Co Ltd* [1956] 1 Ch 323.

[187] [1953] 1 WLR 246 at 253.

[188] [1953] 1 WLR 246, 259. According to Campbell J, this refusal did not run counter to *Luther v Sagor* [1921] 3 KB 532 and *Princess Paley Olga v Weisz* [1929] 1 KB 718, which laid down that an English court was bound to apply a law of a foreign State which purported to confiscate property situate within that State's territory, since those cases related only to the property of the confiscating State's own nationals and therefore did not implicate international law: [1953] 1 WLR 246, 253 and 258. See also the plaintiffs' argument: [1953] 1 WLR 246, 248. Campbell J's reading of *Luther v Sagor* and *Princess Paley Olga v Weisz* was disapproved by Upjohn J in *In re Claim by Helbert Wagg & Co Ltd* [1956] 1 Ch 323, 346-8. As for the doctrine of incorporation, Campbell J had earlier cited Lord Atkin's famous dictum in *Chung Chi Cheung v The King* [1939] AC 160, 168.

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doctrine of incorporation—are couched in the negative.[189] Secondly, his Lordship never makes clear which of the two possible grounds underpinning the plaintiffs' contention he prefers. But although his conclusion would seem to favour the latter alone, the fact that he relies on authorities in which the court is avowedly declining to apply, rather than being compelled not to apply, the foreign law in question and the fact that a third English case he cites has nothing to do with international law but turns purely on English public policy[190] strongly suggest that he sees the two grounds as one and the same – that is, that a foreign law that is contrary to international law, and thereby contrary to domestic public policy, need not be regarded.[191] This is certainly how the principle enunciated in the case has been conceived of since.[192]

Ultimately, it can be seen that *The Rose Mary* has nothing to do with the doctrine of incorporation. Campbell J does not apply the obligation to pay compensation imposed on an expropriating State by customary international law as a rule of common law.[193] Rather, he looks to the former in its quality as a rule of customary international law and, by reference to it, crafts a common-law, public policy-based exception to a common-law conflicts rule. It is telling that in subsequent cases in the English courts in which international law has been invoked as English public policy to justify—either obiter, as in *In re Claim by Helbert Wagg & Co Ltd* and *Oppenheimer v Cattermole*, or by way of ratio, as in *Kuwait Airways Corporation v Iraqi Airways Company (Nos 4 and 5)*—the court's refusal to give effect to foreign law, the doctrine of incorporation has never been so much as mentioned. In this light, reference to the doctrine of incorporation in the *Rose Mary* is otiose.

d. R v Mills

The fourth deceptive case is not from a superior court of record and calls for only the briefest of mentions. In *R v Mills*, an unreported ruling on jurisdiction and abuse of process in

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[189] See [1953] 1 WLR 246, 254, quoting *Wolff v Oxholm* (1817) 6 M & S 92, 106 (Lord Ellenborough)('nor are [the plaintiffs] or we bound to regard' the ordinance in question); and [1953] 1 WLR 246, 255, quoting *In re Fried Krupp AG* [1917] 2 Ch 188, 193 (Younger J)(an ordinance which 'neither [the plaintiffs] nor we are bound to regard').

[190] See [1953] 1 WLR 246, 254, quoting *Kaufman v Gerson* [1904] 1 KB 591, 599-600 (Romer LJ)('to enforce a contract so procured would be to contravene what by the law of this country is deemed an essential moral interest').

[191] See also D P O'Connell, 'A Critique of the Iranian Oil Litigation' (1955) 4 *International & Comparative Law Quarterly* 267, 278, reference omitted: 'In effect these two separate propositions were not separate grounds, but the second was rather a corollary or restatement of the first. The court made reference to *Kaufman v Gerson*, apparently in support of the view that English courts will not give effect to foreign legislation contrary to public policy as it is conceived by them. … From this citation it would seem that the proposition on which Campbell J really based his decision might have been more aptly framed as follows: foreign legislation "not conformable" in its operations "to the usage of nations" is contrary to public policy as understood in English courts, and therefore such legislation need not be recognised.'

[192] See *In re Claim by Helbert Wagg & Co Ltd* [1956] 1 Ch 323, 349 (Upjohn J): 'In my judgment the true limits of the principle that the courts of this country will afford recognition to legislation of foreign States in so far as it affects title to movables in that State at the time of the legislation or contracts governed by the law of that State rests in considerations of international law, or in the scarcely less difficult considerations of public policy as understood in these courts. Ultimately I believe the latter is the governing consideration.' See also *Oppenheimer v Cattermole* [1976] 1 AC 249, 278 (Lord Cross), with whom the other Lords agreed: 'I think—as Upjohn J thought (see *In re Claim by Helbert Wagg & Co Ltd* [1956] Ch 323, 334)—that it is part of the public policy of this country that our courts should give effect to clearly established rules of international law.' As to the Nazi denaturalization law at issue in that case, Lord Cross stated obiter that 'a law of this sort constitutes so grave an infringement of human rights that the courts of this country ought to refuse to recognise it as a law at all' (ibid). The public policy basis for the exception to the foreign act of State doctrine first suggested in *The Rose Mary* was put beyond doubt by the House of Lords in *Kuwait Airways Corporation v Iraqi Airways Company (Nos 4 and 5)* [2002] UKHL 19; [2002] 2 AC 883.

[193] See also O'Connell, above n 191, 279, concluding that Campbell J 'did not, … in fact, apply international law as a rule of decision …'.

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the Croydon Crown Court in 1995,[194] the defendants, who had been arrested on the high seas by HM Customs and Excise, sought a stay of the indictment in reliance on the abuse of process doctrine developed in *R v Horseferry Road Magistrates' Court, Ex parte Bennett*,[195] arguing that their arrest had been in breach of international law. Judge Devonshire held that the actions of the customs officers were in accordance with a State's customary international right of 'hot pursuit', which 'had been incorporated in the Common Law of England'.[196]

Again it can be seen that what the court is really doing here is looking to the relevant rule of customary international law *quâ* customary international law.[197] There was simply no need, in order to refute the defendants' contention that their arrest was in breach of international law, to establish that the UK's right of hot pursuit under customary international law was part of the common law. Judge Devonshire's invocation of the doctrine of incorporation was gratuitous. As it is, it must seriously be doubted whether the common law of England, which, as distinct from the law of Admiralty and from statute, was historically a terrestrial and territorially-limited law, can give rise to rights on the high seas.

5. A sui generis area

Finally, it is worth mentioning, if only to emphasise its sui generis character, one body of law traditionally applied by courts in England in which customary international law has long played a direct part. This is the law of prize, viz the body of rules regulating the capture of foreign vessels by a State, in this case the UK, in the course of declared war. Like the law of piracy, this too originated, prior to the rise of the modern, inter-State law of nations, in the old transnational maritime law applied in the ports of medieval and renaissance Europe, a form of civil, not common law given effect in England by the Admiralty courts.[198] This corpus of rules eventually passed into the law of nations, and English jurisdiction in matters of prize—which came to be exercised by the High Court of Admiralty by virtue of a commission issued by the Crown under the Great Seal at the commencement of each war[199]—was exercised by direct reference to this law of nations: that is, the law of nations, rather than the common law, was the law to be applied by the court.[200] When, via the Naval Prize Act 1864,[201] the High Court of Admiralty was vested with the powers of a permanent Court of

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[194] Noted in W Gilmore, 'Hot Pursuit: The Case of *R v Mills and others*' (1995) 44 *International & Comparative Law Quarterly* 949. Transcript of judgment on file with author, per kind favour of Professor Bill Gilmore and, in turn, the Solicitors' Office, HM Customs and Excise, London.

[195] [1994] 1 AC 942.

[196] Transcript, 9, citing in support *Regina v Sunila and Solayman* (1986) 28 DLR (4th) 450, 459 (Hart JA). See also Gilmore, above n 194, 954.

[197] See, in this light, Transcript, 10: 'I cannot accept the argument that no domestic court has any power to consider and adjudicate on the power to arrest pursuant to a right conferred by international law. The right of "hot pursuit" under which the *Poseidon* was arrested is a power conferred by the general principles of international law [viz customary international law] of which the Geneva Convention [on the High Seas 1958] was merely declaratory. The Court is being asked to adjudicate on the proper application of those powers …' See also Transcript, 22: 'I hold that the *Poseidon* was properly arrested in international waters under the terms of the Geneva Convention and in accordance with the provisions of the international law of the sea.'

[198] Prior to the fourteenth century, prize cases, which were originally treated as a species of proceedings against piracy, 'had been heard sometimes by the Council, and sometimes by the common law courts; but ... their inability to cope with the difficulties caused by the piratical propensities of Englishmen had led to the establishment of a court of Admiralty': Holdsworth, above n 44, vol I, 562. See also Marsden, 'Early Prize Jurisdiction', above n 137.

[199] This system of special commissions meant that the prize court 'became a court almost entirely distinct from the instance court [of Admiralty]': Holdsworth, above n 44, vol I, 564. In *Lindo v Rodney*, reported in a note appended to *Le Caux v Eden* (1781) 2 Dougl 594, 613-20, Lord Mansfield CJ states at 614 that '[t]he whole system of litigation and jurisprudence in the Prize Court, is peculiar to itself: it is no more like the Court of Admiralty than it is to any Court in Westminster-Hall'.

[200] See eg the commission conferring jurisdiction in prize on the Court of Admiralty cited by Lord Mansfield CJ in *Lindo v Rodney*, as indirectly reported at 2 Dougl 613, 614. This authorized and required the Court of Admiralty 'to proceed upon all and all manner of captures, seizures, prizes, and reprisals, of all ships and goods, that are, or shall be, taken; and to hear and determine, according to the course of the Admiralty, and the law of nations'.

[201] 27 & 28 Vict c 25. The High Court continues to enjoy jurisdiction as a prize court pursuant to section 27 of the Supreme Court Act 1981 (c 54).

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Prize independently of any commission issued under the Great Seal, section 55 of the Act kept on foot the court's pre-existing competence to decide cases in accordance with customary international law, a competence unaffected by the substitution by the Judicature Act 1873, as explained by the Judicature Act 1891, of the High Court of Justice for the High Court of Admiralty as the permanent Court of Prize in the UK.[202] Although by this point it was perhaps not inaccurate to talk of an English common law of prize, this was avowedly expressive of the customary international rules on the subject; and although this law was applied by the High Court, it was applied by the Probate, Divorce and Admiralty Division sitting as the Prize Court,[203] with appeals going not to the Court of Appeal and the House of Lords but to the Privy Council.[204] In sum, the case-law of English prize courts cannot, for historical and jurisdictional reasons, be considered indicative of the general relationship between customary international law and the common law.[205] All this said, the application of prize law by English prize courts after 1873 is not irrelevant to certain questions discussed below, and will be referred to when occasion arises.

B. Reasons for not applying

So why is it that there have been so few occasions on which the English courts have actually applied the doctrine of incorporation to give rise to a common-law rule? There is a range of reasons, some of them prosaic. In many instances where the English courts have invoked the maxim that customary international law is part of the law of England, they have not in the event had cause to rely on it on account of the fact that the customary international rule at issue was implemented in statute.[206] In other cases, the rule of customary international law alleged was not established to the satisfaction of the court[207] or the facts of the case fell outside the alleged rule.[208] Three other reasons, however, merit closer consideration.

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[202] The jurisdiction of the High Court of Admiralty was transferred to the newly-created High Court of Justice by the Supreme Court of Judicature Act 1873 (c 66), section 16. But a degree of confusion arose as to whether the transfer included Admiralty's prize jurisdiction. For the avoidance of doubt, section 4 of the Supreme Court of Judicature Act 1891 (c 53) was passed, paragraph (1) of which made it clear that the High Court of Justice was to be considered a prize court within the meaning of the Naval Prize Act 1864.

[203] Supreme Court of Judicature Act 1891, section 4(2).

[204] Supreme Court of Judicature Act 1891, section 4(3).

[205] See, in this light, *Trendtex Trading Corporation v Central Bank of Nigeria* [1977] QB 529, 568, where Stephenson LJ, referring to the view expressed by Sir Samuel Evans P in the First World War prize case of *The Odessa* [1915] P 52, 62 that, when dealing with customary international law, '[p]recedents handed down from earlier days should be treated as guides to lead, and not as shackles to bind', observed insightfully that Sir Samuel 'may have felt a greater freedom in the Prize Court than a judge of a court of common law to let precedents lead him on to the future and not bind him to the past'.

[206] Consider the plethora of diplomatic immunity cases brought under 7 Anne c 12.

[207] See eg *J H Rayner (Mincing Lane) Ltd v Department of Trade and Industry* [1989] Ch 72, 242-9 (Ralph Gibson LJ) and [1990] 2 AC 418, 512-3 (Lord Oliver); *Hutchinson v Newbury Magistrates' Court* (2000) 122 ILR 499, 504-6 (Buxton LJ, delivering the judgment of the court); *R (Marchiori) v Environment Agency* [2002] EWCA Civ 3; (2002) 127 ILR 620, 645-6, paras 46-8 (Laws LJ); *R (Abbasi) v Secretary of State for Foreign and Commonwealth Affairs* [2002] EWCA Civ 1598; (2002) 126 ILR 685, 714, para 69 (Lord Phillips MR, delivering the judgment of the court); *R v Jones (Margaret)* [2004] EWCA Crim 1981; [2005] QB 259, 277, para 43 (Latham LJ)(judgment upheld on different grounds by House of Lords); *R (European Roma Rights Centre) v Immigration Officer at Prague Airport* [2004] UKHL 55; [2005] 2 AC 1, 38, para 27 (Lord Bingham); *R (Mohamed) v Secretary of State for Foreign and Commonwealth Affairs* [2008] EWHC 2048 (Admin), paras 166-9 and 183; *R (Al-Saadoon) and another v Secretary of State for Defence* [2009] EWCA Civ 7, paras 62-3.

[208] See eg *Viveash v Becker* (1814) 3 M & S 284, 291-8 (Lord Ellenborough CJ); *R v Secretary of State for the Home Department, Ex parte Thakrar* [1974] QB 684, 701-2 (Lord Denning MR) and 709-10 (Lawton LJ); *Chagos Islanders v Attorney General and Her Majesty's British Indian Ocean Territory Commissioner* [2003] EWHC 2222, para 382 (Ouseley J). See also *R (Al-Saadoon) and another v Secretary of State for Defence* [2009] EWCA Civ 7, para 70 (insufficient evidence to make out claim, whatever customary position).

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1. Rule of customary international law one between States alone

In *R v Secretary of State for the Home Department, Ex parte Thakrar*, the applicant argued that customary international law obliged a State to accept its nationals expelled from another State and that, as customary international law was part of the law of England, the Secretary of State was obliged to admit him to the UK. The Court of Appeal rejected the submission. Lord Denning MR, after explaining that the customary international rule at issue did not apply to the UK and its former colonies anyway but only to what his Lordship called 'self-contained countries', continued:

> Even in regard to self-contained countries, however, the rule of international law [in question] is only a rule as between two states. It is not a rule as between an individual and a state. The expelling state—if it had a good case—might call upon the home state to receive the person whom it expelled. But the individual could not pray the rule in aid for his own benefit.[209]

Orr LJ came to the same conclusion on the point.[210] Analogous reasoning also underpins a passage from the judgment of Kerr LJ in *J H Rayner (Mincing Lane)*,[211] and traces of it can be found, elided with considerations of justiciability, in Lord Alverstone CJ's judgment in *West Rand*.[212]

2. Constitutional principles

It was stated by Lord Bingham in *Jones (Margaret)* 'that "customary international law is applicable in the English courts only where the constitution permits"'.[213] Constitutional principles have frequently been cited, although often not in so many words, as a reason for not giving effect through a rule of common law to a rule of customary international law. The two constitutional principles implicated in this regard have been the supremacy of Parliament and the separation of powers.

There are consistent and uncontroversial statements throughout the case-law to the effect that a putative rule of common law derived from a rule of customary international law is, like any rule of common law, inapplicable where the content of an unambiguous statutory provision is to the contrary.[214] This is a straightforward function of the doctrine of parliamentary supremacy. By related operation of this doctrine, Parliament can oust the jurisdiction of the courts in relation to rules of common law, including rules giving expression to customary international law. For example, by choosing to put on a legislative footing some rules of customary international law but not others *ejusdem generis*, Parliament can, by implication, displace any residual jurisdiction over the unenacted rules, *quâ* common-law rules, that would otherwise vest in the courts. This was the case in *Viveash v Becker*,[215] where the question before Lord Ellenborough CJ was whether the diplomatic immunity provided for in 7 Anne c 12 was to be read as encompassing consuls. His Lordship '[could] not help thinking that the Act of Parliament which mentions only "embassadors and public ministers" and which was passed at a time when it was an object studiously to comprehend all kinds of public ministers entitled to these privileges, must be considered as declaratory not only of

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[209] [1974] QB 684, 702.
[210] [1974] QB 684, 708-9.
[211] [1989] Ch 72, 184-5. But *cf contra*, on the particular rule in question, [1989] Ch 72, 219-20 (Nourse LJ).
[212] [1905] 2 KB 391, 409-12.
[213] [2006] UKHL 16; [2007] 1 AC 136, 160, para 23, quoting the present author, above n 12, 335.
[214] See *Chung Chi Cheung v The King* [1939] AC 160, 167-8 (Lord Atkin); *Trendtex Trading Corporation v Central Bank of Nigeria* [1977] QB 529, 553 (Lord Denning MR) and 577 and 578 (Shaw LJ); *J H Rayner (Mincing Lane) v Department of Trade and Industry* [1989] Ch 72, 207 (Nourse LJ); *Al-Adsani v Government of Kuwait* (1995) 103 ILR 420, 428 (Mantell J); *Bolkiah v The State of Brunei Darussalam* [2007] UKPC 62, para 29. Despite the implication in some dicta to the converse, the existence of contrary statute goes to the applicability of the common-law rule in the given instance, rather than to its existence in principle – as is the case in relation to any common-law rule. For what it is worth, note that an English prize court is also bound by the will of Parliament as expressed in statute: *The Zamora* [1916] 2 AC 77, 93.
[215] (1814) 3 M & S 284.

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what the law of nations is, but of the extent to which that law is to be carried [in the English courts]'.[216] Nor is this the only way that statute can prevent the courts from giving effect to customary international law by way of common law. In *R v Secretary of State for the Home Department, Ex parte Thakrar*,[217] the applicant, who had been expelled from Uganda and was not a British 'patrial', argued that customary international law obliged the respondent to admit him into the UK in these circumstances. Section 3(1) of the Immigration Act 1971, however, provided that '[e]xcept as otherwise provided by or under this Act, where a person is not a patrial – (a) he shall not enter the United Kingdom unless given leave to do so ...'. Orr LJ stated:

> [I]t is common ground (see *per* Lord Atkin in *Chung Chi Chung v The King* [1939] AC 160, 167-168) that a rule of international law cannot be treated as incorporated into English municipal law where to do so would be inconsistent with the provisions of a statute. In the present case it is, in my judgment, clear beyond any doubt that the right which the applicant claims under international law is in conflict with the opening words of section 3(1) of the Immigration Act 1971 … The Act is there saying that any exception to the rule that a non-patrial requires leave to enter the United Kingdom is to be found in the Act itself or in the regulations made under the Act, and it would plainly, in my judgment, be inconsistent with this provision to recognise any further exception based on international law.[218]

Lawton LJ was of the same view:

> Whatever may be the nature and extent of the rule, I am satisfied that Parliament can decide whether it should be accepted and adopted within the realm; and by implication it has made its decision in the Immigration Act 1971 which regulates all entry into and stay in the United Kingdom. No person has any right of entry which is not given by that Act. Such rights as may be given by public international law to individuals are not rights given by the Act. It follows that they are of no value in municipal law.[219]

The Divisional Court had held the same.[220] Not too dissimilarly, while Mantell J in *Al-Adsani v Government of Kuwait*[221] was prepared for the sake of argument to accept that customary international law could give rise to a common-law tort of 'torture', this was no use to the claimant in the instant case, since the State Immunity Act 1978 made it clear that the Government of Kuwait was immune from the jurisdiction of the English courts in respect of the impugned conduct. The Court of Appeal upheld this decision,[222] and, while the customary international law basis of the tort of torture subsequently alleged in *Jones v Saudi Arabia*[223] was not made explicit, the House of Lords similarly ruled there that the State Immunity Act prevailed.

A combination of parliamentary supremacy and the separation of powers explains the decision in the great nineteenth-century case of *The Queen v Keyn*,[224] which centred on a putative rule of customary international law which would have permitted a coastal State to exercise criminal jurisdiction over a three-mile territorial sea, including over foreigners on board foreign ships within that sea. Taken by some to support the view that customary international law is not applicable in the English courts unless and until Parliament legislates for this, *Keyn* is in fact a straightforward instance of the trial court's procedural incompetence, which in turn reflects constitutional principle. The necessary background to the case is somewhat involved. Original jurisdiction in England and Wales over indictable offences committed on land derives from the commissions of oyer and terminer and gaol delivery, common-law jurisdictions exercised in the past by the courts of assize and quarter

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[216] 3 M & S 284, 298.
[217] [1974] 1 QB 684.
[218] [1974] 1 QB 684, 708.
[219] [1974] 1 QB 684, 710.
[220] [1974] QB 684, 690-2 (Lord Widgery CJ), with whom May and Bridge JJ agreed.
[221] (1995) 103 ILR 420.
[222] (1996) 107 ILR 536.
[223] [2006] UKHL 26; [2007] 1 AC 270.
[224] (1876) 2 Ex D 63.

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sessions. Original jurisdiction over crimes at sea derives from the Admiralty courts. Both common law and Admiralty jurisdiction over crimes were extensions of royal power. With parliamentary victory in the Civil War and the evolution of the constitution to reflect the sovereignty of the Crown in Parliament, the criminal justice dispensed by the royal courts came to be viewed with some suspicion.[225] The Glorious Revolution and the Bill of Rights entrenched this stance. Common law and Admiralty jurisdiction over crimes, where not truncated, was not permitted to exceed its existing limits. Reflecting the nascent separation of powers between legislature and judiciary, Parliament alone was entitled to extend the jurisdiction of the English criminal courts. Only Parliament, too, could rightfully create new criminal courts *stricto sensu*. Now, when the Central Criminal Court was created by an Act of 1834, it was vested by Parliament with Admiralty's exclusive jurisdiction over crimes at sea.[226] The prisoner in *Keyn*, a foreigner, had been convicted at trial in the Central Criminal Court of murder committed on board a foreign ship. The question put to the Court for Crown Cases Reserved was whether the Central Criminal Court had jurisdiction to try the prisoner as charged.[227] The answer arrived at by seven of the thirteen judges was that it did not. The only common ratio was that the criminal jurisdiction of Admiralty, conferred by statute unaltered on the Central Criminal Court, had never extended to crimes committed by foreigners on foreign ships,[228] 'and no assent on the part of foreign nations to the exercise of dominion and jurisdiction over these waters [could], without an Act of Parliament, confer on the admiral or any other judge of this country a larger jurisdiction than he possessed before'.[229] 'How', Lord Cockburn CJ asked, 'when exercising the functions of a British judge, can [the Admiral], or those acting in substitution for him, assume a jurisdiction which heretofore he did not possess, unless authorized by statute?'[230] 'Every such usurped exercise of judicial power [was]', according to his Lordship, 'in the highest degree unconstitutional.'[231]

Similarly, the scope of the power conferred on an administrative decision-maker by a statute is limited by the terms of that statute, and this was significant in *R (Marchiori) v Environment Agency*,[232] where the applicant sought to rely on the doctrine of incorporation.

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[225] It is no coincidence that one of the first legislative acts of the Long Parliament had been to abolish the infamous Court of Star Chamber, a prerogative court detested for its criminal jurisdiction.

[226] See section 22 of 4 & 5 Will IV c 36, affirmed by section 4 of 7 Vict c 2, the Act which conferred Admiralty's criminal jurisdiction on the courts of assize.

[227] 2 Ex D 63, 64.

[228] See, in this regard, the detailed analysis of the ratio of the case conducted in G Marston, *The Marginal Seabed: United Kingdom Legal Practice* (Clarendon Press, Oxford, 1981), 136-7, which concludes: 'On this analysis, the *ratio decidendi* of *R v Keyn* is confined to the extent, *ratione materiae*, of the Admiral's power of adjudication ...'. Of the dissentients in *Keyn*, Lindley J, conceding at 2 Ex D 63, 98 that 'the jurisdiction contended for by the Crown has never been exercised', explained simply that 'no case appears ever to have arisen for its exercise'. Amphlett JA, noting similarly at 124 'that no precedent can be found for the exercise by the Court of Admiralty of criminal jurisdiction over a foreigner on board a foreign vessel', reminded the Court that '[s]uch a case must be rare, and very probably was never under the consideration of the Court before'. Nor, it should be added, could the criminal jurisdiction of the courts of common law, which was historically limited to the realm (ie land), extend to offences by foreigners on foreign ships.

[229] 2 Ex D 63, 229 (Lord Cockburn CJ).

[230] 2 Ex D 63, 230-1.

[231] 2 Ex D 63, 231. Consider also, in this light, the passages from the judgments of Lord Cockburn CJ and Lush J quoted above at Part II.C. See too 2 Ex D 63, 203 (Lord Cockburn CJ): 'Nor, in my opinion, would the clearest proof of unanimous assent on the part of other nations be sufficient to authorize the tribunals of this country to apply, without an Act of Parliament, what would practically amount to a new law. In doing so we should be unjustifiably usurping the province of the legislature. The assent of nations is doubtless sufficient to give the power of parliamentary legislation in a matter otherwise within the sphere of international law; but it would be powerless to confer without such legislation a jurisdiction beyond and unknown to the law, such as that now insisted on, a jurisdiction over foreigners in foreign ships on a portion of the high seas.' See also 2 Ex D 63, 68 (Sir Robert Phillimore), not deciding the issue: 'It is, indeed, a most grave question whether, if this statement of international law is correct, nevertheless an Act of Parliament would not be required to empower the Court to exercise jurisdiction …' In the wake of *Keyn*, the jurisdiction of the Central Criminal Court was extended by legislation over a three-mile territorial sea, although the preamble to the Territorial Waters Jurisdiction Act 1878 (c 73) asserted the immemoriality of the new dispensation.

[232] [2002] EWCA Civ 3; (2002) 127 ILR 620.

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She sought judicial review of the legality of authorizations granted by the respondent, under section 13(1) of the Radioactive Substances Act 1993, to contractors to the Ministry of Defence to permit them to discharge radioactive waste from military installations in England at which Trident nuclear warheads were manufactured. She submitted that the respondent had applied in a legally impermissible manner the 'justification principle' laid down in article 6(a) of Council Directive 80/836/Euratom, made pursuant to the EURATOM Treaty, Chapter III, Title 2—viz that 'every activity resulting in exposure to ionizing radiation [be] justified by the advantages which it produces'—by characterising the UK's nuclear defence programme as an advantage for the purposes of the principle. The applicant argued that customary international law, as elucidated by the International Court of Justice in its advisory opinion in *Legality of the Threat or Use of Nuclear Weapons*,[233] required the respondent to treat the Trident nuclear deterrent as a detriment, not an advantage, since the law of nations was part of the law of England and a condition of the respondent's *vires* was compliance with the relevant prevailing general law. In the Court of Appeal, Laws LJ (with whom Thorpe LJ and Morland J agreed) held that, even if the Trident nuclear programme were unlawful under international law (which the ICJ's advisory opinion showed, in fact, not to be the case), the appeal would still have failed, since the respondent's relevant functions were conferred on it and limited by the Radioactive Substances Act: the respondent was 'neither the author nor the judge of any policy of national defence', and 'it would be far beyond the scope of the provision made by [the Act] for the respondent to embark upon the least consideration of it'.[234]

The doctrine of the separation of powers primarily explains the decision in *West Rand*.[235] In that case, a gold mining company brought a petition of right against the Crown seeking the return of gold taken from its mine prior to the outbreak of the Anglo-Boer War by officials acting on behalf of the government of the subsequently-conquered South African Republic. The claimant argued that customary international law provided that the sovereign of a conquering State was liable for the obligations of the conquered State; that customary international law formed part of the law of England; and that therefore rights and obligations binding upon the former South African Republic could be enforced against the Crown in the English courts. Lord Alverstone CJ, delivering the judgment of the Divisional Court of King's Bench, expressed doubt as to whether the international rule argued for existed; but, even if it did, it was 'inconsistent with the law as recognised for many years in the English courts':

> [I]t is sufficient for us to cite the language of Lord Mansfield in *Campbell v Hall* in a passage the authority of which has, so far as we know, never been called in question: 'It is left by the Constitution to the King's authority to grant or refuse a capitulation. ... If he receives the inhabitants under his protection and grants them their property he has a power to fix such terms and conditions as he thinks proper. He is entrusted with making the treaty of peace; he may yield up the conquest or retain it upon what terms he pleases. These powers no man ever disputed, neither has it hitherto been controverted that the King might change part or the whole of the law or political form of government of a conquered dominion.'[236]

The matter was thus non-justiciable, since 'matters which fall properly to be determined by the Crown by treaty or as an act of State are not subject to the jurisdiction of the municipal Courts, and … rights supposed to be acquired thereunder cannot be enforced by such Courts'.[237]

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[233] [1996] ICJ Rep 226, especially at 257, paras 78-9.

[234] 127 ILR 620, 646, para 48.

[235] [1905] 2 KB 391.

[236] [1905] 2 KB 391, 406.

[237] [1905] 2 KB 391, 408-9. See also, not dissimilarly, the Privy Council case of *Cook v Sprigg* [1899] 1 AC 572. An action was brought under the Crown Liabilities Act 1888 (Cape Colony) by which the plaintiffs sought to enforce against the Crown concessions granted to them by the paramount chief of Pondoland prior to the chief's cession of Pondoland to the United Kingdom, after which the territory was annexed to the Cape Colony. It was argued, *inter alia*, that customary international law imposed an obligation on a State which accepts territory by way of cession to respect private property within that territory. While the maxim that customary international law is part of the law of land does not feature as such in the report's account of counsel's submission or in the judgment, counsel for the plaintiffs did cite *Triquet v Bath* in support of his argument '[a]s to obligations resulting

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Under the Westminster constitutional dispensation, the power to enter into treaties is a prerogative of the Crown, while the power to legislate for the rights and obligations of individuals under English law is the province of Parliament. One upshot of this delineation of powers is that a treaty to which the UK is party cannot have effect in English law unless Parliament enacts legislation to implement its provisions.[238] In certain cases, this can in turn pose an obstacle to the incorporation into the common law of rules of customary international law. In *R v Lyons*,[239] the applicants, whose respective convictions had been held by the European Court of Human Rights (ECtHR) to have involved a violation of their right to fair trial under the then-unincorporated European Convention on Human Rights (ECHR), argued that the UK (and thus, they submitted, the court as an organ of State) was bound under customary international law by the secondary obligation to make restitution (*restitutio in integrum*) for its internationally wrongful act,[240] which in the present case meant quashing their convictions. The House of Lords rejected the argument as one whose 'foundations rest[ed] upon sand', being as it was 'nothing more than an attempt to give direct domestic effect to an international treaty'[241] in violation of the separation of powers. Lord Hoffman, with whom most of the other Lords agreed, explained:

> The obligation to make restitution ... is in the present case ancillary to a treaty obligation. It is infringement of the treaty obligation … that is said to give rise to the obligation to make restitution. [Counsel for the applicants] himself described it as a secondary obligation in the sense used by Lord Diplock in *Photo Production Ltd v Securicor Transport Ltd* [1980] AC 827, 848-849. But if there is no enforceable primary obligation, how can its breach give rise to an enforceable secondary obligation?[242]

Analogous reasoning is found in the judgment of Lord Oliver in *J H Rayner (Mincing Lane)*, where the claimants sought to rely on an alleged rule of customary international law that where States, by means of treaty (in this case, the Sixth International Tin Agreement) brought into being an international organization (here, the International Tin Council) which was intended to engage in commercial transactions, the member States were secondarily liable for the organization's debts to third parties. To this Lord Oliver replied:

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from international law … being enforceable in municipal courts': see [1899] 1 AC 572, 576. In response, the Board stated at [1899] 1 AC 572, 578: 'It is a well-established principle of law that the transactions of independent States between each other are governed by other laws than those which municipal courts administer. It is no answer to say that by the ordinary principles of international law private property is respected by the sovereign which accepts the cession and assumes the duties and legal obligations of the former sovereign with respect to such private property within the ceded territory. All that can be properly meant by such a proposition is that according to the well-understood rules of international law a change of sovereignty by cession ought not to affect private property, but no municipal tribunal has authority to enforce such an obligation. And if there is an express or well-understood bargain between the ceding potentate and the Government to which the cession is made that private property shall be respected, that is only a bargain which can be enforced by sovereign against sovereign in the ordinary course of diplomatic pressure.' (It might be observed, by way of aside, that the Privy Council here conflates two distinct forms of non-justiciability, namely the non-justiciability of the prerogative acts of the Crown, which is surely what was at issue in the instant case, and the non-justiciability of pure questions of international law between sovereign States. *Cf*, in this light, Holdsworth, above n 44, vol XIV, 34, in line with the approach taken by the Board, and, *contra*, Stephen, above n 136, vol II, 65, prefiguring the modern approach.) Note that, in the distinct context of prize law, the Crown by tradition expressly submitted to the jurisdiction of the Prize Court in the prize rules promulgated at the commencement of war. See *The Zamora* [1916] 2 AC 77, 91: 'In the first place, all those matters upon which the Court is authorized to proceed are, or arise out of, acts done by the sovereign power in right of war. It follows that the King must, directly or indirectly, be a party to all proceedings in a Court of Prize. In such a Court his position is in fact the same as in the ordinary Courts of the realm upon a petition of right which has been duly fiated. Rights based on sovereignty are waived and the Crown for most purposes accepts the position of an ordinary litigant.' See also [1916] 2 AC 77, 92: 'The acts of a belligerent Power in right of war are not justiciable in its own Courts unless such Power, as a matter of grace, submit to their jurisdiction.'

[238] In *In re McKerr* [2004] UKHL 12; [2004] 1 WLR 807, 826, para 63, Lord Hoffmann stated that 'it should no longer be necessary to cite authority for [this] proposition'.

[239] [2003] 1 AC 976.

[240] See Articles on Responsibility of States for Internationally Wrongful Acts, above n 145, arts 34 and 35.

[241] [2002] UKHL 44; [2003] 1 AC 976, 995, para 39 (Lord Hoffman).

[242] [2003] 1 AC 976, 995, para 39 (Lord Hoffman).

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> Now assuming that such a rule could be established, I can see that it might be said that it forms part of English law … [But i]f such a rule exists, it is at highest a rule of construction, and however the matter is looked at, the question of liability or no liability stems from an unincorporated treaty which, without legislation, can neither create nor destroy rights under domestic law.[243]

Most of the other Lords agreed with his Lordship.[244]

The constitutional separation of powers between the executive and Parliament, between the courts and Parliament and between the courts and the executive lay at the heart of the Lords' decision *Jones (Margaret)* that the customary international crime of aggression was not a crime at common law.[245] Lord Bingham agreed with Sir Franklin Berman that '[i]nasmuch as the reception of customary international law into English law takes place under common law, and inasmuch as the development of new customary international law remains very much the consequence of international behaviour by the Executive, in which neither the Legislature nor the Courts, nor any other branch of the constitution, need have played any part, it would be odd if the Executive could, by means of that kind, acting in concert with other States, amend or modify specifically the *criminal* law, with all the consequences that flow for the liberty of the individual and rights of personal property'.[246] As it was, since *Knuller (Publishing, Printing and Promotions) Ltd v Director of Public Prosecutions*,[247] in which the House of Lords surrendered its common-law power to create crimes, statute was now the sole source of new criminal offences;[248] and a raft of Acts showed that, when domestic effect was sought to be given to crimes under customary international law, the practice was to legislate.[249] (In the latter regard, Lord Bingham noted that Parliament had consciously opted not to legislate for the crime of aggression during the passage of the International Criminal Court Act 2001.[250]) All this reflected 'what has become an important democratic principle in this country: that it is for those representing the people of the country in Parliament, not the executive and not the judges, to decide what conduct should be treated as lying so far outside the bounds of what is acceptable in our society as to attract criminal

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[243] *J H Rayner (Mincing Lane) Ltd v Department of Trade and Industry* [1990] 2 AC 418, 512.

[244] See also, directly on point, [1990] 2 AC 418, 480 (Lord Templeman).

[245] The ruling in *Jones (Margaret)* that statute is required before a crime under customary international law can become a crime under English law was prefigured in *Hutchinson v Newbury Magistrates' Court* (2002) 122 ILR 499, 506 (Buxton LJ, delivering the judgment of the court)('impossible to reconcile [the claimant's] contention with the debate in *Pinochet (No 3)* which concluded, illuminatingly subject to the specific dissent on this point by Lord Millett, that although State torture had long been an international crime …, it was only with the passing of Section 134 of the Criminal Justice Act 1998 that the English criminal courts acquired jurisdiction over "international", that is to say extra-territorial torture'); and in paragraph 4 (no explanation being given) of the Divisional Court's judgment in *R (Manson) v Bow Street Magistrates' Court* [2003] EWHC 2720 Admin, unreported and judgment not made public, judgment as approved by the court obtained from Smith Bernal Wordwave Limited, official shorthand writers to the court. The incorporation argument was not in fact put to the Lords in *R v Bow Street Metropolitan Stipendiary Magistrate, Ex parte Pinochet Ugarte (No 3)* [2000] 1 AC 147. Lord Millet nonetheless expressed the view that a crime under customary international law was automatically a crime under the common law, although his Lordship did not press the point, since the other Lords apparently considered that statutory authority was required 'before our courts can exercise extraterritorial criminal jurisdiction even in respect of crimes of universal jurisdiction': [2000] 1 AC 147, 276. In this light, the reason for the other Lords' insistence on statute seems to have been the extraterritorial jurisdictional element, rather than anything to do with the relationship between customary international crimes and the common law. This is how *Pinochet (No 3)* was read in *R v Jones (Margaret)* [2004] EWCA Crim 1981; [2005] QB 259, 275, para 38 by the Court of Appeal, which, in a ruling overturned by the House of Lords (upholding the Court of Appeal's decision on other grounds), held that a crime under customary international law was 'capable of being incorporated into English law so as to create a crime punishable in domestic law': [2005] QB 259, 273, para 30.

[246] [2006] UKHL 16; [2007] 1 AC 136, 160, para 23, original emphasis, quoting F Berman, 'Jurisdiction: The State', in P Capps, M Evans & S Konstantinidis (eds), *Asserting Jurisdiction: International and European Legal Perspectives* (Hart, Oxford, 2003), 3, 11. 'There [were], besides, powerful reasons of political accountability, regularity and legal certainty for saying that the power to create crimes should now be regarded as reserved exclusively to Parliament, by Statute.': ibid.

[247] [1973] AC 435.

[248] [2007] 1 AC 136, 161-2, para 28.

[249] [2007] 1 AC 136, 162, para 28.

[250] [2007] 1 AC 136, 162, para 28.

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penalties'.[251] Lord Hoffman also invoked 'the democratic principle', deferred to by the courts since *Knuller*[252] and equally applicable to the incorporation into domestic law of crimes under international law,[253] 'that it is nowadays for Parliament and Parliament alone to decide whether conduct not previously regarded as criminal should be made an offence'.[254] New domestic offences should, his Lordship said, 'be debated in Parliament, defined in a statute and come into force on a prescribed date', 'not creep into existence as a result of an international consensus to which only the executive of this country is a party'.[255] Lord Mance agreed that the courts' power to recognise new crimes did not survive *Knuller*: the creation and regulation of crimes was, in a modern parliamentary democracy, 'a matter *par excellence* for Parliament to debate and legislate'.[256] 'Even crimes under public international law [could] no longer be, if they ever were, the subject of any automatic reception or recognition in domestic law by the courts.'[257] In the opinion of Lord Bingham, and in a qualification peculiar to his Lordship's judgment alone, one needed very compelling reasons to depart from this principle.[258] In the case of aggression, the compelling reasons were to the contrary, among them the courts' slowness to review the exercise of prerogative powers over the conduct of foreign affairs and the deployment of the armed forces.[259] These were not issues of justiciability; rather, they were factors to be taken into account '[i]n considering whether the customary international law crime of aggression has been, or should be, tacitly assimilated into [English] domestic law'.[260] Lord Hoffmann similarly took the view that, since aggression was 'a crime in which the principal is always the state itself',[261] the liability of individuals being 'in a sense secondary', the prosecution of aggression in the domestic courts would, in the absence of statutory authority, be 'inconsistent with a fundamental principle of [the] constitution',[262] in that 'the making of war and peace and the disposition of the armed forces has always been regarded as a discretionary power of the Crown into the exercise of which the courts will not inquire'.[263] His Lordship thought that to say that these matters are not justiciable 'may be simply another way of putting the same point'.[264] But he did not accept the implication that one could start by determining whether aggression is a crime under English law and then proceed to consider whether the issues it raises are justiciable: the 'discretionary nature or non-justiciability of the power to make war' was 'simply one of the reasons why aggression is not a crime in domestic law'.[265]

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[251] [2007] 1 AC 136, 162, para 29.
[252] [2007] 1 AC 136, 171, para 61.
[253] [2007] 1 AC 136, 171, para 62.
[254] [2007] 1 AC 136, 170, para 60.
[255] [2007] 1 AC 136, 171, para 62.
[256] [2007] 1 AC 136, 179, para 101.
[257] [2007] 1 AC 136, 179, para 101.
[258] [2007] 1 AC 136, 162, para 29. It is, with respect, hard to see how any such departure could be reconciled with the constitutional principles emphasized by his Lordship and by Lords Hoffmann and Mance. In the later case of *R (Gentle) v Prime Minister* [2008] UKHL 20; [2008] 2 WLR 879, 896, para 49, Baroness Hale summarized *Jones (Margaret)* without reference to Lord Bingham's qualification: the case stood for the proposition that '[c]rimes under customary international law are not automatically incorporated into domestic law and it is no longer open to the courts to recognise new common law crimes'.
[259] [2007] 1 AC 136, 162-3, para 30. His Lordship also referred in support of his argument to the courts' slowness to adjudicate upon transactions between sovereign States on the international plane.
[260] [2007] 1 AC 136, 163, para 30. In *R (Gentle) v Prime Minister* [2008] UKHL 20; [2008] 2 WLR 879, 885, para 8, in the different context of the ECHR, Lord Bingham subsequently stated: '[I]n deciding whether a right exists it is relevant to consider what exercise of the right would entail. Thus the restraint traditionally shown by the courts in ruling on what has been called high policy—peace and war, the making of treaties, the conduct of foreign relations—does tend to militate against the existence of the right: *R v Jones (Margaret)* [2006] UKHL 16, [2007] 1 AC 136, paras 30, 65-67.'
[261] See also [2007] 1 AC 136, 180, para 103 (Lord Mance).
[262] [2007] 1 AC 136, 171, para 63.
[263] [2007] 1 AC 136, 172, para 65.
[264] [2007] 1 AC 136, 172, para 67.
[265] [2007] 1 AC 136, 172, para 67.

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3. *Other common-law principles and rules*

In *West Rand*, Lord Alverstone CJ, accepting that customary international law formed part of the law of England, added the proviso that this was only to the extent that it was not 'contrary to the principles of her laws as declared by her Courts'.[266] Lord Atkin in *Chung Chi Cheung* similarly recognised that the English courts will treat customary international law as incorporated into English law only 'so far as it is not inconsistent with rules … finally declared by their tribunals'.[267] Some of these judicially-enunciated principles and rules are of a constitutional import, as seen already. But others are not.

An example of how the latter, more prosaic common-law principles and rules have prevented the reception into the common law, at least in the form argued for, of a rule of customary international law is Ouseley J's judgment in the Queen's Bench Division in *Chagos Islanders v Attorney General and Her Majesty's British Indian Ocean Territory Commissioner*,[268] where his Lordship rejected a claim for damages based, in reliance on the doctrine of incorporation, on the UK's alleged breach of the customary international human right not to be exiled from one's home State. His Lordship reasoned that, even if one were to accept the hypothetical possibility that a customary international human right could be recognised as a common-law human right, there was no reason why the breach of a common-law human right would give rise to an action in damages. This would, Ouseley J said, be 'no more and no less than a particular example of a tort for unlawful administrative acts', and the House of Lords had made it 'clear for many years that an *ultra vires* act does not of itself give rise to tortious liability'.[269] In short, even if an English court accepted, on the basis of the doctrine of incorporation, that an individual had a right as a matter of common law not to be exiled, this 'provide[d] no reason for a tort to be created'.[270] Any such remedy as may exist would be strictly by way of judicial review.[271]

An earlier example comes from the appeal to the Lord Chancellor and Lords Justice in *The Emperor of Austria v Day and Kossuth* in 1861, an appeal dismissed on grounds different from those on which the Court of Chancery had based its decision at first instance. Purely obiter, Turner LJ considered the argument put at first instance by the plaintiff, in his capacity as king of Hungary, in an action to restrain the defendants from counterfeiting Hungarian paper money and for the delivery up of the notes already produced and the plates from which they were printed. His Lordship accepted the plaintiff's contention 'that the right of coining money, the *jus cudendae monetae*, was universally acknowledged to be a prerogative of sovereigns vested in them for the benefit of their subjects—that this right extended no less to the creation of paper money than to the stamping of coin—that it was acknowledged by all nations and recognized by international law, and that, international law being part of the law of England, [the] Court would interfere in favour of the rights recognized by and founded upon it'.[272] His Lordship, however, continued:

> [B]ut the argument failed to satisfy my mind that this Court can or ought to interfere in aid of the prerogatives of a foreign sovereign. The prerogative rights of sovereigns seem to me, as at present advised, to stand very much upon the same footing as acts of State and matters of that description, with which the municipal Courts of this country do not and cannot interfere. Such acts and matters are recognized by international law no less than the prerogative rights of sovereigns; but the municipal Courts of this country have disclaimed all right to interfere with respect to them. … The same reasoning which applies to the prerogative rights of sovereigns seems to me to apply also to

[266] [1905] 2 KB 391, 408.
[267] [1939] AC 160, 167-8.
[268] [2003] EWHC 2222.
[269] [2003] EWHC 2222, para 378, citing in support of this well-established proposition *Three Rivers DC v Bank of England (No 3)* [2003] 2 AC 1, 190 (Lord Steyn), citing in turn *X (Minors) v Bedfordshire CC* [1995] 2 AC 633.
[270] [2003] EWHC 2222, para 379. His Lordship seemingly left the door slightly ajar by pointing out that the claimants had put forward no reason why the aforementioned principle should not apply in the instant case. But it is difficult to see what reasons could compellingly be adduced.
[271] [2003] EWHC 2222, para 379.
[272] (1861) 3 De G F & J 217, 251.

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> the political rights of nations; and so far, therefore, as this bill is founded upon the prerogative rights of the Plaintiff, or upon the political rights of his subjects, my present opinion, speaking with all respect of [*sic*] what fell from the Vice-Chancellor in the course of his judgment, is against the decree which he has made.[273]

In short, even if the alleged rule of customary international law was in principle capable of incorporation into the common law,[274] established case-law prevented its enforcement by an English court.[275]

IV. THE DOCTRINE AS MORE ACCURATELY CONCEIVED

A. An act of discerning judicial lawmaking

As has been seen above, it is only in certain immunity cases and in two cases on the right of angary and its concomitant obligation to pay compensation that a rule of customary international law has actually been applied or conclusively recognised by the English courts as part of English law. The point to be made now is that, if one stops to think about it, were customary international law truly *automatically part* of the common law, it could not have been applied at common law even in these cases. Something subtly different must explain what the courts are doing.

Take first the immunity cases, considering by way of preface the nature of the entity bound by the relevant international obligation.

By and large,[276] international obligations direct the conduct of States, and international law conceives of the State as a legal person wholly distinct from the several branches of government and from the individual officers and agents which together constitute its domestic legal and political reality and which, as a function of its constitution, carry out its business.[277] If we were to draw the analogy with company law, there exists a form of corporate veil.[278] Putting it simply and adapting it to the present context, in those situations

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[273] 3 De G F & J 217, 251-2.

[274] On closer analysis, it is not clear that this is, in fact, what his Lordship was suggesting by his reference to the doctrine of incorporation. As with Sir John Stuart V-C at first instance, it is arguable that Turner LJ's invocation of customary international law and the doctrine of incorporation was more by way of legitimation of the English court's hypothetical intervention to support a right vesting in the king under Hungarian law.

[275] Like the question of contrary statute, this is an example going to the application of the putative common-law rule, rather than to its existence as such.

[276] The exceptions are those obligations aimed at international organizations and those directed towards the conduct of individuals, the latter being the province of international criminal law. There are also certain obligations under international humanitarian law, namely those applicable during non-international armed conflict, that are binding on non-State insurgent groups, although this remains disputed by some writers.

[277] See eg paragraph (6) of the International Law Commission's commentary to article 2 of its Articles on Responsibility of States for Internationally Wrongful Acts: *International Law Commission, Report on the work of its fifty-third session (23 April-1 June and 2 July-10 August 2001)*, UN Doc A/56/10, 71: 'Under many legal systems, the State organs consist of different legal persons (ministries or other legal entities), which are regarded as having distinct rights and obligations for which they alone can be sued and are responsible. For the purposes of the international law of State responsibility the position is different. The State is treated as a unity, consistent with its recognition as a single legal person in international law.' See also J Combacau & S Sur, *Droit international public* (4ème édn, Montchrestien, Paris, 1999), 221, present author's translation: 'The State is a legal person. It is in this capacity that international law thinks of it and treats it. … Personality implies first of all that the legal order which recognizes it conceives of the State as a corporate entity, separate from the elements that comprise it. … [T]he State … is held to be a body distinct from its constitutive elements …' In Oppenheim's straightforward words, 'States only, and neither their Courts nor officials ..., are subjects of International Law': L Oppenheim, *International Law. A Treatise* (2nd edn, Longmans, Green & Co, London, 1912), vol II, 554, para 434. See also D Anzilotti, *Cours de droit international* (G Gidel trans, first published 1929, Editions Panthéon-Assas, Paris, 1999), 122-3; W E Beckett, 'Les questions d'intérêt générale au point de vue juridique dans la jurisprudence de la Cour Permanente de Justice Internationale', 39 *Recueil des Cours* (1932-I) 131, 155; G G Fitzmaurice, 'The General Principles of International Law Considered from the Standpoint of the Rule of Law', 92 *Recueil des Cours* (1957-II) 1, 74-8 and 87-8; Sales & Clement, above n 54, 415 n 126.

[278] 'The state … is a so-called juristic person, or, what amounts to the same, a corporation': H Kelsen, *Principles of International Law* (Rinehart & Co, New York, 1952), 100. See also Combacau & Sur, above n 277, 221; Crawford & Olleson, above n 143, 460.

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where customary international law imposes an obligation, only the United Kingdom as such, and not the Crown[279] or Parliament or the courts,[280] is bound by it.[281] As a consequence, a rule to the effect that customary international law is automatically part of the common law is of no help to a claimant seeking to argue that the Crown or the courts are compelled to adopt a particular course of action, since the only entity bound by the putative common-law rule (and this only for the sake of argument, since the statement speaks to its own impossibility[282]) is the United Kingdom.

Acknowledgment of the hurdle posed by the indivisibility of the State as a subject of international law is glimpsed in *Lyons*, where the House of Lords dismissed as a 'fallacy'[283] the argument that the court, as an organ of State, was bound to give effect to the UK's customary international obligation to make restitution (*restitutio in integrum*) for an internationally wrongful act. Lord Hoffmann, with whom most of the other Lords agreed, stated:

> International law does not normally take account of the internal distribution of powers within a state. It is the duty of the state to comply with international law, whatever may be the organs which have the power to do so. And likewise, a [rule of international law] may be infringed by the actions of the Crown, Parliament or the courts. From the point of view of international law, it ordinarily does not matter.[284]

Lord Millet touched on the same point.[285]

In the immunity cases, the rule of customary international law in question—that each State is obliged to ensure that the organs, individual officials and property of a foreign State are immune from the jurisdiction of its courts—is a rule binding on the United Kingdom, not on the English courts. As such, if we were to give effect to a rule which says that customary international law is automatically part of the common law, the result would simply be (and

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[279] Note that the Crown, which, when referred to in this context, 'personifies the executive government of the country' (*British Broadcasting Corporation v Johns (Inspector of Taxes)* [1965] Ch 32, 79 (Diplock LJ)), is not coextensive with the State as an international legal person, since the organs of the State comprise not just the executive but also the legislature and the judiciary: see eg Articles on Responsibility of States for Internationally Wrongful Acts, above n 145, article 4(1). Even more to the point, the aggregation of these organs still does not equate to the State as such, the latter being a purely formal legal abstraction which is greater than the sum of its parts. In the words of Kelsen, above n 278, 100, '[a]s a juristic person the state is the personification of a social order, constituting the community we call "state"'. The attribution to the State of the conduct of its various organs and officials is simply a pragmatic recognition of 'the elementary fact that the State cannot act of itself', and 'is necessarily a normative operation': *International Law Commission, Report on the work of its fifty-third session*, above n 277, 35, paras (5) and (6) respectively. See also, generally, Beckett, above n 277, 155; Kelsen, ibid, 107; Fitzmaurice, above n 277, 87-8; Combacau & Sur, above n 277, 221; Crawford & Olleson, above n 143, 460; M Shaw, *International Law* (6th edn, Cambridge University Press, Cambridge, 2008), 786. Conversely, in English law, when the word 'State' is found in legislation, '[i]t does not mean [only] the Government or the Executive': *Chandler v Director of Public Prosecutions* [1964] AC 763, 790 (Lord Reid). 'Perhaps the country or the realm are as good synonyms as one can find', and Lord Reid for one was 'prepared to accept the organised community as coming as near to a definition as one can get': ibid.

[280] See also Oppenheim, above n 277, vol I, 26-7, para 21; F A Mann, 'The Consequences of an International Wrong in International and National Law' (1976-77) 48 *British Yearbook of International Law* 1, 48, citation omitted: 'The decisive question is not (as it has been wholly unjustifiably put in Germany) whether … public international law imposes upon the municipal judge the duty to [give effect to its rules]. That question was rightly answered in the negative, but misses the point altogether, for *ex hypothesi* public international law which, as a rule, addresses the State provides no answer.'

[281] See, generally, Triepel, above n 55, 120; Anzilotti, above n 277, 469 and 471-2.

[282] It goes almost without saying that the United Kingdom is not bound by the common law of England.

[283] [2002] UKHL 44; [2003] 1 AC 976, 995, para 40 (Lord Hoffman).

[284] [2003] 1 AC 976, 995, para 40. Conversely, in *In re McKerr* [2004] UKHL 12; [2004] 1 WLR 807, 826, para 63, Lord Hoffmann, emphasising the differences between the domestic rights enforceable under the Human Rights Act and the international rights enforceable under the ECHR, stated that the former 'are available against specific public authorities, not the United Kingdom as a state'.

[285] [2003] 1 AC 976, 1011, para 105. The full text of the passages from the respective judgments of Lords Hoffmann and Millet excerpted here are somewhat confusing in their elision of two distinct arguments: the first, that international law binds the State as such, and not any of its domestic constitutional organs; the second, that the British constitution's separation of powers and parliamentary supremacy place restrictions on the doctrine of incorporation.

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this is impossible) that the United Kingdom was bound by an English common-law rule to the same effect as the customary international rule. To posit that the English courts themselves are bound by this common-law rule would amount to holding X to account for the breach by Y of an obligation owed by Y. So in the immunity cases, where the latter was indeed posited, more must be going on than meets the eye.

In reality, what is happening in the immunity cases is that the courts are taking a rule of customary international law binding on the United Kingdom, but at the same time a rule which, in terms of its structural logic, lends itself readily to application by the English courts, and turning it into a rule of common law directed towards and binding on those courts.[286] This was effectively acknowledged by Lord Wright in *The Cristina*, where his Lordship explained that the rule of State immunity at issue '[was] binding on the municipal Courts of this country in the sense and to the extent that it has been received and enforced by these Courts'.[287] In other words, there is an additional link in the chain of logic, and that link is an active, albeit unstated and perhaps even unselfconscious judicial mediation between the international and domestic legal spheres, an act of judicial lawmaking in which the court translates—in the sense of renders into another language—the customary international rule binding on the United Kingdom into a common-law rule binding on the relevant branch of government, in this case the courts. In short, the model is one not of automatic incorporation but of what Capps, coming at the question from a different angle, has termed 'judicial transformation'[288] or what O'Connell calls 'judicial adoption'.[289] Putting it another way, Lord Bingham's instinct in *Jones (Margaret)* was unerring: as others have said before[290] (including Brierly, whom his Lordship quoted[291]), customary international law is a source, rather than a part, of the common law of England, and a legitimate source, all other things being equal – indeed, a source that, all other things again being equal, an English court must,[292] as a matter of common law,[293] endeavour to draw upon when occasion arises. What Lord Denning MR in *Trendtex* referred to as the doctrine of incorporation[294] is in reality a statement to the effect

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[286] See Triepel, above n 55, 110-1 and 144-5; Anzilotti, above n 277, 61-3.

[287] [1938] AC 485, 502.

[288] P Capps, 'The court as gatekeeper: customary international law in English courts' (2007) 70 *Modern Law Review* 458, 464. See also, using the language of 'transformation', Anzilotti, above n 277, 62-3.

[289] O'Connell, above n 2, vol I, 49-50. See also, using the language of 'adoption', Triepel, above n 55, 144-52; Oppenheim, above n 277, vol I, 26-7, para 21; Picciotto, above n 53, 106, para 65; Sales & Clement, above n 54, 388.

[290] Picciotto, above n 53, 105-6, para 65; Collier, above n 19, 935; Sales & Clement, above n 54, 413. See also, from a historical point of view, Dickinson, above n 2, 260; Holdsworth, above n 45, 147 and 150-1 and above n 44, vol XIV, 32; Lobban, above n 53, 256-7 and 277-8. See too, to the same effect but not using the word 'source', Triepel, above n 55, 110-1 and 144-5; Oppenheim, above n 277, vol I, 26-7, para 21; Anzilotti, above n 277, 61-3; Mann, above n 23, 121-3 and 124.

[291] Brierly, above n 5, 31, quoted in part at [2007] 1 AC 136, 155, para 11.

[292] See Westlake, above n 19, 26 (the statement being limited to rights under customary international law pertaining to individuals); Lauterpacht, above n 2, 79 and 81; O'Connell, above n 2, vol I, 50-1; Starke, above n 2, 92; G Sawer, 'Australian Constitutional Law in Relation to International Relations and International Law', in K W Ryan (ed), *International Law in Australia* (2nd edn, Law Book Co, Sydney, 1984), 35, 51. See also, more cautiously, Mann, above n 23, 121 ('may and probably must'); P J Duffy, 'English Law and the European Convention on Human Rights' (1980) 29 *International & Comparative Law Quarterly* 585, 599 ('may and should').

[293] See the discussion three paragraphs hence below.

[294] There is no compelling need to discard the label, which, apart from being arbitrary anyway, serves usefully to distinguish English law's relationship with customary international law from its relationship with treaty, where parliamentary intervention is generally required before a rule of international law becomes one of English law. Lord Atkin uses the term 'incorporated' in *Chung Chi Cheung*, even though the model he endorses is actually one of judicial transformation or judicial adoption: see [1939] AC 160, 167-8. Among scholars, Brierly, above n 23, 78-9 characterises the approach taken by Lord Atkin in *Chung Chi Cheung* as a manifestation of what he expressly terms the doctrine of incorporation. The same goes for Starke, above n 2, 91-2. Lauterpacht, above n 2, 77-84 treats not only Lord Atkin's statement in *Chung Chi Cheung* but also the statements of Lords Atkin and Wright in *The Cristina* [1938] AC 485, 490 (Lord Atkin) and 502 (Lord Wright) and the words of Atkin LJ, as he then was, in *Commercial Estates Company of Egypt* [1925] 1 KB 271, 295 as applications of what he too explicitly refers to as the doctrine of incorporation or, synonymously, adoption. Mann, above n 23, 120-3, while acknowledging 'a purely theoretical difference of opinion or, perhaps one should say, of formulation' (ibid, 122), also treats Lord

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that the English courts, where appropriate, may and must create rules of common law by reference to rules of customary international law. It is a licence and a direction to the judge to look, where relevant, to a rule of customary international law operative on the international plane and, in appropriate circumstances, to coin in near enough its image a rule of common law applicable in an English court.

The same goes, *mutatis mutandis*, for the right of angary and its associated obligation to pay compensation as given effect at common law in the *Commercial Estates Company of Egypt* litigation. Just as with obligations, so too with rights is it is the case that international law regulates the conduct of the United Kingdom and not of the Crown, Parliament or the courts. The customary international right of angary thus vests in the United Kingdom as such, not in the Crown, and if customary international law were automatically part of the common law of England, the English common-law right of angary would equally vest in the United Kingdom – an incoherent proposition. What happened in the *Commercial Estates Company of Egypt* cases, rather, is that the court looked to the customary international right of angary and fashioned—or, in the context of a prerogative power, it is perhaps better to say 'creatively recognised' via the common law—a domestic power modelled on it, vesting in what the court perceived to be the relevant branch of government. It is in this light that we can read the passage of Atkin LJ's judgment in *Commercial Estates Company of Egypt v Board of Trade* where his Lordship states:

> International law as such can confer no rights cognizable in the municipal Courts. It is only in so far as the rules of international law are recognized as included in the rules of the municipal law that they are allowed in the municipal Courts to give rise to rights or obligations. [295]

In short, the model is that of judicial transformation or judicial adoption. This is also the case with the customary international obligation to pay compensation that is the concomitant of the right of angary: licensed and charged, as it were, by the doctrine of incorporation, the court took an international obligation binding on the United Kingdom and transposed it—in the sense of rewriting it in a different musical key—into a common-law obligation binding on the Crown.

It pays to emphasise at this point that the terms 'incorporation' (as conceptualised here), 'transformation', 'adoption', 'translation', 'transposition' and the like are no more than metaphors for what is actually going on, and, like many metaphors, they tend to obscure as much as they promise to enlighten. All that really happens when an English court applies the doctrine of incorporation is that, mindful of the operation on the international plane of a relevant rule of customary international law, the judge enunciates an as-near-as-possible-analogous common-law rule. Incorporation has nothing to do with the metaphysical unity of customary international law and the common law. The former is not immanent in the latter. Nor is the act of incorporation some sort of quasi-alchemical transmutation of the customary international rule into a common-law one. The customary international rule serves merely as the 'historical or persuasive source'[296] of the common-law rule: inspired, as it were, by customary international law, the court lays down the common-law rule in the usual way.

Atkin's various dicta and those of Lord Wright as statements of the doctrine of incorporation. Indeed, he states ibid, 121 that '[i]t is in [the Atkin and Wright] sense (and cannot have been in any other sense)' that Lord Mansfield CJ and Blackstone spoke of the law of nations being part of the common law of England. (In this last he is seemingly joined by Oppenheim, who cites Blackstone, above n 2, book IV, chap 5, along with Westlake, above n 19, and *West Rand*, as illustrations of his model of adoption: see Oppenheim, above n 277, vol I, 26, para 21.) For his part, Brownlie, above n 23, 44 describes Lord Atkin's dictum in *Chung Chi Cheung* as 'by no means incompatible with the principle of incorporation'. Cunningham goes so far as to call this dictum the 'classic formulation' of the doctrine of incorporation: A J Cunningham, 'The European Convention on Human Rights, Customary International Law and the Constitution' (1994) 43 *International & Comparative Law Quarterly* 537, 547. And in a case-note on *Trendtex*, Crawford (1976-77) 48 *British Yearbook of International Law* 353, 358 suggests that '[p]robably the *dicta* which have been regarded as embodying the "doctrine of [judicial] transformation" have been … qualifying rather than displacing the basic principle that international law is part of the law of England'.

[295] [1925] 1 KB 271, 295.

[296] Sawer, above n 292, 50, emphasis omitted.

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It is also important to stress that the source of the court's duty, *ceteris paribus*, to incorporate a rule of customary international law is not the relevant customary international rule itself, whether *quâ* customary international law or *quâ* common law, since, as has already been said, this rule is binding on the UK alone, not on the English courts. Rather, the obligation is a freestanding common-law one, imposed on the courts by the courts themselves through their enunciation and consistent affirmation of the doctrine of incorporation.[297] To the extent that the word 'must' is never used in the various judicial formulations of the doctrine of incorporation, the mandatory nature of this common-law rule is not as explicit as it could be. But there is no indication in any of the various judicial iterations of the doctrine that, absent persuasive arguments against incorporation, an English court would be at liberty not to give effect at common law to a relevant rule of customary international law.[298] The obligatory nature of the common-law rule is also inherent in the repeated characterization of customary international law as a part—or, as preferred by Lord Bingham in *Jones (Margaret)* and as suggested here, a source—of the common law: if the former is a part or equally a source of the latter, it follows that, in the absence of satisfactory reasons to the contrary, the court must give effect to it, since a court is not free for no or no satisfactory reason to decline to have recourse to a part or source of its applicable law when the latter is relevant to the determination of the case before it. The mandatory common-law rule is reinforced, independently of the doctrine of incorporation, by the entrenched proposition that in the English courts international law is treated as law, the argument being that it is in the nature of legal reasoning and the judicial function to give effect to law.[299] One important upshot of the basis of the mandatory rule in the common law, rather than in international law, is that the obligation to give effect at common law to a rule of customary international law is independent of whether the latter is itself mandatory: the obligation on the English court applies equally to customary international rules which merely permit the UK to adopt a course of conduct.[300]

Most crucially, it is essential to underline that the judicial interposition that is the reality of incorporation is not mechanical. It involves discernment of what is appropriate and what is not.[301] Its outcome in a given case depends on the court's discriminating assessment of a range of factors born out by the case-law. The courts have declined to give effect at common law to a customary international rule of a purely State-to-State character, as distinct from a rule providing for the rights of individuals as against a State. They have decided

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[297] See Lauterpacht, above n 2, 79 (excepting cases of overriding statute and of at least certain contrary rules of common law): 'Courts treat the relevant rules of international law as incorporated into the domestic law because they are bound to do so … by virtue of an established rule which bids them to act in that way. It is a rule of law … that the courts acknowledge the existence and the applicability of the relevant rules of international law. The courts themselves have engrafted that mandatory rule upon the common law.'

[298] See O'Connell, above n 2, vol I, 50; Starke, above n 2, 92; Sawer, above n 292, 51; Mason, 'International Law as a Source of Domestic Law', in Opeskin & Rothwell, above n 53, 210, 214.

[299] See, in this light, Mann, above n 280, 48: 'Where … transformation of customary international law occurs, the judge will implement it in pursuance of the principle of effectiveness, ie so that within the national system of law the international rule can most effectively be worked out and the court can reach results most closely conforming to the international rule.'

[300] *R v Keyn* is sometimes explained by reference to the distinction between mandatory and permissive rules of customary international law: see eg Jennings & Watts, above n 23, 57. But the explanation is based on a misreading.

[301] See O'Connell, above n 2, vol I, 50-1: 'The outcome is … no[t] the automatic application of rules of international law on every occasion. Rather it is that international law is channelled with municipal law as guiding the judicial process. Whenever appropriate, the norms of international law will govern the decision. When not appropriate they will not.' See also *Nulyarimma v Thompson* (1999) 165 ALR 621, 629-30, paras 25-6 (Full Federal Court of Australia, Wilcox J): '[I]t is difficult to make a general statement covering all the diverse rules of international customary law. It is one thing, it seems to me, for courts of a particular country to be prepared to treat a civil law rule like the doctrine of foreign sovereign immunity as part of its domestic law, whether because it is accepted by those courts as being "incorporated" in that law or because it has been "transformed" by judicial act. It is another thing to say that a norm of international law criminalising conduct that is not made punishable by the domestic law entitles a domestic court to try and punish an offender against that law. … Perhaps this is only another way of saying that domestic courts face a policy issue in deciding whether to recognise and enforce a rule of international law.'

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against crafting a common-law rule from customary international law where to do so would have run counter to a competing, indeed overriding constitutional principle. They have likewise refused to apply at common law a customary international rule on the ground that it would have contradicted some basic principle or rule of the common law itself.

In sum, the reception into English law of a rule of customary international law does not follow automatically. Even less is customary international law immanent in the common law. Rather, to adapt the words of Lord Bingham in *Jones (Margaret)*, 'a [rule] recognised as such in customary international law … may but need not, become part of the domestic law of England and Wales without the need for any domestic statute';[302] or, in the modified words of Lord Mance in the same case, not all rules of customary international law 'must or should be received and recognised as domestic law [rules]'.[303] This is precisely what was meant by Lord Atkin in *Chung Chi Cheung* when he said:

> It must always be remembered that, so far, at any rate, as the Courts of this country are concerned, international law has no validity save in so far as its principles are accepted and adopted by our own domestic law. There is no external power that imposes its rules upon our own code of substantive law and procedure.[304]

Taken out of context, the first sentence could be misleading: it would be an exaggeration to say that international law 'has no validity' in the English courts until those courts have chosen to receive it. As outlined already, this brand of stark dualism has never been the way of English law. To the extent that the determination of a point of domestic law calls for it, the courts may rightly have regard to international law as international law, be it custom or treaty.[305] Rather, Lord Atkin's statement is directed towards how and when a rule of customary international law can be relied on as a rule of English law, and in this context it is spot on. Indeed, in *Thakrar*, only a few years before *Trendtex*, Lord Denning MR himself not only paraphrased but agreed with Lord Atkin to the effect that 'rules of international law only become part of our law in so far as they are accepted and adopted by us'.[306] The incorporation of customary international law is an act of judicial lawmaking in which, as the immunity and angary cases show, a common-law court is, in the absence of persuasive contraindications, empowered and even directed to engage.

B. Considerations relevant to the appropriateness of incorporation

As already seen, the case-law suggests that whether incorporation is contraindicated in a given case depends on at least three considerations.[307] These will now be considered in more detail.

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[302] [2006] UKHL 16; [2007] 1 AC 136, 161, para 27. In practice, as stated above, there would seem, according to their Lordships' analysis, no circumstances in which a customary international crime could today become part of English law without statute.

[303] [2007] 1 AC 136, 179, para 101.

[304] [1939] AC 160, 167-8. See, similarly, *Chow Hung Ching v The King* (1948) 77 CLR 449, 462 (High Court of Australia, Latham CJ), references omitted: 'International law is not as such part of the law of Australia (*Chung Chi Cheung v The King* …), but a universally recognized principle of international law would be applied by our courts: *West Rand Central Gold Mining Co v The King*.' See also (1948) 77 CLR 449, 477 (Dixon J): '[T]he theory of *Blackstone* (*Commentaries*, (1809), vol 4, p 67) that "the law of nations (whenever any question arises which is properly the object of its jurisdiction) is here adopted in its full extent by the common law, and is held to be a part of the law of the land" is now regarded as without foundation. The true view, it is held, is "that international law is not a part, but is one of the sources, of English law" (Article by Prof *J L Brierly* on International Law in England, (1935), 51 *Law Quarterly Review*, p 31.).'

[305] As regards treaty, see *R (Campaign for Nuclear Disarmament) v Prime Minister* [2002] EWHC 2777 (Admin); (2002) 126 ILR 727, 744, para 36 and 749, para 47 (Simon Brown LJ), endorsed in *Republic of Ecuador v Occidental Exploration and Production Co* [2005] EWCA Civ 1116; [2006] QB 432, 456-7, para 31 (Mance LJ).

[306] [1974] QB 694, 701.

[307] Crawford, above n 294, 358 argues that '[t]he vice in the proposition that a clearly established rule of [customary] international law is not part of the law of England unless adopted as such *by the courts* is that no criteria are provided by which the courts are to decide whether or not to adopt a particular rule' (emphasis added). Similarly, Sales and Clement suggest, above n 54, 417 that '[t]he task now facing the courts in the United

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1. *Is the rule of customary international law structurally amenable to domestic application?*

The first consideration is the extent to which the relevant customary international rule lends itself as a structural matter to application by a domestic court – in other words, the logical ease or naturalness with which the court would be able to transform the rule from one operative on the international plane to one applicable in the English courts.[308] The foremost question in this regard is whether the rule of customary international law is one of a strictly State-to-State character or whether it implicates the rights of individuals.[309] This is the point made at its clearest by Lord Denning MR in *R v Secretary of State for the Home Department, Ex parte Thakrar*.[310]

Take first individual rights, and specifically human rights. While the transposition is not seamless given the indivisibility of the State as an international legal person,[311] it does no violence to the structural logic of the rule to transform a customary international human right, an individual right opposable as against the State on the international plane, into a common-law human right opposable as against whichever organ of State is in a position to cause that State to breach it. In the event of the breach of a customary international human right, international law itself envisages that an individual can have a remedy against the State at the international level; in this light, even though as a formal matter it involves piercing the veil of the State as a subject of international law, no conceptual contortions are required for the common law to envisage that the individual can have a remedy against the organ of State in whose conduct the international breach in practice consists, at least where that organ forms part of the executive and is thus in principle amenable to judicial review.

The vast majority of international rules, however, provide not for individual rights but for the rights and obligations of States vis-à-vis each other. In the event of the breach of these rules, international law does not envisage anything other than a State-to-State remedy, and from here it is more of a conceptual leap to a common-law rule capable of enforcement by a court. The implication seemingly to be drawn from Lord Denning MR and Orr LJ in *Thakrar* and from Kerr LJ in *J H Rayner* is that this is a leap too far.

That said, there is at least one body of international rules of a strictly State-to-State character which lend themselves readily to domestic application. These are the rules on the various immunities from the jurisdiction of foreign courts to which States are entitled. Although a State-to-State right, the right of a State to see that its organs and officials and its property are accorded immunity (within the bounds of the relevant international rules) from

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Kingdom is to articulate a set of criteria by reference to which relevant rules of CIL can be identified as properly applicable by those courts'. It is submitted that the courts have already, albeit unsystematically, gone quite some way towards enunciating such criteria.

[308] While it is not clear, this seems to be what Brownlie is referring to when he states that 'the courts still have to ascertain the … effect [of rules of customary international law] *within the municipal sphere*': Brownlie, above n 23, 41-2, original emphasis. Crawford and Edeson speak of 'the need for clear and satisfactory evidence that the customary rule … is capable, according to its terms, of having direct legal effects as part of municipal law': J Crawford & W R Edeson, 'International Law and Australian Law', in Ryan, above n 292, 71, 73, including n 12. Shearer, above n 53, 43 states that 'the automatic incorporation doctrine is limited to those rules of international law that are … susceptible of direct application in domestic law without the need for adaptation or choice of means', and although it is never actually the case that a rule of international law is susceptible of direct application without the need for adaptation, the thrust of the statement is accurate. Consider also Westlake, above n 19, 14-5 and 16-7.

[309] In principle, the *obligations* of individuals can also be implicated by a rule of customary international law. But at present the only sphere of international law that imposes obligations on individuals (by and large negative obligations, ie prohibitions) is international criminal law, and it will be recalled that the House of Lords held in *Jones (Margaret)* that today, for constitutional reasons, crimes under customary international law do not give rise to novel common-law crimes.

[310] See also the other judicial statements to similar effect cited above at Part III.B.1.

[311] Note that the indivisibility issue does not arise in the context of crimes recognized by customary international law, where it is not a State's but an individual's obligations that are in issue. But recall again the Lords' ruling in *Jones (Margaret)* in relation to novel common-law crimes based on customary international law.

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the jurisdiction of another State's courts envisages both specified beneficiaries[312] and the specific foreign State organ implicated by the right. From here it is only a short distance to a common-law rule, enforceable in the courts, entitling a specified beneficiary to the procedural immunity in question (subject, of course, to its waiver by the beneficiary's State). Putting it another way, if a foreign State is entitled under customary international law to see that its various organs and officials and its property enjoy immunity from the jurisdiction of the courts of the UK, it is a natural progression to say that a foreign State is entitled under the common law to see that its various organs and officials and its property enjoy immunity from the jurisdiction of the English courts.

In this regard, the Court of Appeal's decision in *Commercial Estates Company of Egypt v Board of Trade* is less straightforward. While the customary international right of angary involves a concomitant obligation to compensate, international law neither provides the owner of the requisitioned goods with an individual right to compensation as against the requisitioning State—in other words, the requisitioning State's obligation is owed strictly towards the owner's State of nationality—nor specifically envisages that the owner shall enjoy such a right in that State's courts. The latter is in contrast to the customary law of prize, which, although by the mid-nineteenth century a body of rules as between States, itself foresaw and indeed mandated that, in certain situations, a private shipowner would be entitled to a remedy in a State's prize courts for that State's violation of the customary international rules on taking in prize. From here it was an unproblematic proposition for an English prize court to give effect to a private right of action against the Crown, whose warship it would have been that took the prize[313] (and which expressly submitted, via prize rules promulgated at the outbreak of war, to the court's exercise of jurisdiction over its relevant acts of State). The leap from the UK's customary international obligation, when exercising the right of angary, to compensate the owner of the goods to the owner's common-law right to compensation from the Crown is somewhat greater. That said, the international obligation to compensate, owed to the owner's State of nationality, does foresee a specified beneficiary, viz the owner, even if it does not prescribe that the latter is entitled to a remedy in the courts of the requisitioning State. In short, the logical leap is not too daunting.

2. Is the proposed common-law rule contraindicated by constitutional principle?

The second consideration is whether the conversion of the relevant customary international rule into a judicially enforceable rule of common law is contraindicated by the constitutional principles of the supremacy of Parliament or the separation of powers, as has transpired in numerous cases.[314]

3. Is the proposed common-law rule contraindicated by the common law itself?

To constitutional considerations can be added, finally, whether the recognition of the rule of common law derived from customary international law would run counter to some rule or principle of the common law itself as finally declared by the courts.[315] A prime example of this restriction, recognised by Lord Alverstone CJ in *West Rand* and by Lord Atkin in *Chung Chi Cheung*, is Ouseley J's judgment in *Chagos Islanders*.

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[312] The word is not used here in the sense in which it is used in the English law of equity.

[313] The Declaration respecting Maritime Law, Paris, 16 April 1856 (entered into force same day), 46 BFSP (1855-1856) 26-7, which was in fact a treaty, provided in article 1 that '[p]rivateering is, and remains, abolished'.

[314] See the discussion above at Part III.B.2. See also, albeit arguing explicitly normatively, Sales & Clement, above n 54, 414: '[D]omestic constitutional law operates as a filter governing the extent to which the domestic courts should recognise norms taken from CIL and treat them as forming part of the common law and hence as directly enforceable in domestic law.'

[315] See the discussion above at Part III.B.3.

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C. The settled cases in light of the doctrine as more accurately conceived

How, then, does the doctrine of incorporation as understood here measure up against those few cases, namely the immunity and angary cases, in which a rule of customary international law has successfully been relied on in the English courts as a rule of common law or, in the context of the prerogative right of angary, as a power recognised by the common law? One would hope well, given that the doctrine as conceptualised and systematised in this article represents little other than a distillation and reconciliation of the authorities and first principles. But the fit cannot be taken for granted. In this light, it may be useful to hold the cases up to the doctrine as conceived here. The starting point of the analysis is that the passage from a customary international obligation binding on the United Kingdom to a common-law duty binding on the courts, or from a customary international right vesting in the United Kingdom to a common-law power vesting in the Crown, is an act of judicial lawmaking, the appropriateness of which depends on a weighing of the three considerations sketched out above.

Starting with the immunity cases, the first factor to be taken into account is that the customary international rules on immunities lend themselves readily to application by a domestic court: they expressly envisage the availability to specified beneficiaries of a procedural defence in the various courts of the United Kingdom, in this case England and Wales. Next, as regards the constitutional implications of common-law immunities, it is arguable that a decision as fundamental to the rule of law as the exempting of certain natural and legal persons from judicial process is a decision more appropriately taken by Parliament, which, unlike the courts, enjoys a democratic mandate and, to a greater extent than the courts, has the logistical and procedural wherewithal to engage in the requisite consultation and debate on relevant policy questions. In this light, it is debateable whether reliance on the doctrine of incorporation is defensible in the context of immunities. If the issue were to arise for the first time today, the courts might hesitate. But the historical reality is that the reception into the common law of the customary international law on immunities happened long ago, when the English courts had a more robust approach to their lawmaking powers. Indeed, it is not by chance that the first avowed invocation of the doctrine of incorporation in the context of immunities, in *Triquet v Bath*, was by the activist Lord Mansfield CJ.[316] As it is, regardless of the origins of this line of authority, the fact is that Parliament in the past saw nothing wrong with leaving the question of foreign immunities to the courts, which, after all, were traditionally the custodians of their own process. The reason the legislature eventually intervened by means of the State Immunity Act 1978 was the constitutional necessity to do so in order to give domestic effect to the European Convention on State Immunity 1972, a treaty designed to establish a common Council of Europe regime on the matter. Moreover, sections 16(2) and 16(4) of the State Immunity Act, respectively excluding from the Act's purview proceedings relating to anything done by or in relation to the armed forces of a foreign State while present in the United Kingdom and criminal proceedings, manifest Parliament's equanimity with the prospect that questions of State immunity in proceedings excluded from the scope of the Act should continue to be left to the courts. In this light, the application of the doctrine of incorporation to give effect via the common law to the customary international law of immunities is defensible as a constitutional matter, although perhaps not ideal. Finally, no rule or principle of the common law itself militates against the incorporation of the immunities recognised by customary international law. Overall, then, the doctrine of incorporation as explained here is consistent with the immunity cases.

Turning to the angary cases, it is necessary to tease apart the customary international right of angary as such from the associated obligation to pay reparation to the owner of the requisitioned goods. Starting with the first, in terms of the amenability of the right of angary to application by an English court, the international right vesting in the UK to requisition the property of the nationals of neutral States translates easily into a domestic power vesting in the Crown to requisition the property of the nationals of neutral States. As for the

[316] See above at Part II.B.

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constitutional considerations, on the other hand, it is highly questionable whether the courts can, via the doctrine of incorporation, add to 'the remaining portion of the Crown's original authority'.[317] That said, the recognition of a common-law power of angary can plausibly be characterised as no more than the elucidation of a particular aspect of the Crown's traditional prerogative in respect of the defence of the realm in wartime,[318] which has long been held to include the power to requisition property.[319] Indeed, this is how the parties argued the point in the *Commercial Estates Company of Egypt* cases;[320] and when inquiring in *Commercial Estates Company of Egypt v Board of Trade* into whether the right of angary was 'a prerogative right of His Majesty' within the meaning of the Indemnity Act 1920, Atkin LJ, holding that this could 'admit of little doubt', emphasised that the phrase 'ha[d] to be construed as occurring in an Act passed in 1920 in respect of acts done … for the defence of the realm'.[321] Alternatively, the view expressed by Viscount Radcliffe in the post-Second World War case of *Burmah Oil Co Ltd v Lord Advocate* was that the assertion of the right of angary, as given effect at common law in *Commercial Estates Company of Egypt v Board of Trade*, 'was in fact an aspect of the Crown's [prerogative in respect of] foreign relations'.[322] Either way, in the words of Lord Reid in *Burmah Oil*, 'there is nothing novel in the idea that a prerogative right to take property carries with it an obligation to pay compensation'.[323] So incorporation would seem tolerable from a constitutional angle. Finally, no rule or principle of the common law itself is implicated. Taking all three considerations together, then, the judicial recognition in the *Commercial Estates Company of Egypt* cases of a prerogative right of angary derived from customary international law is acceptable. It was certainly not challenged when referred to in the House of Lords in *Burmah Oil*.[324] But what of the court's parallel recognition in the *Commercial Estates* cases of a common-law right to compensation on the part of the owner of the requisitioned goods? While a non-negligible leap of logic is required to go from this customary international rule to the common-law one, the leap is

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[317] Dicey, above n 128, 425. In the famous words of Diplock LJ, 'it is 350 years and a civil war too late for the Queen's courts to broaden the prerogative': *British Broadcasting Corporation v Johns (Inspector of Taxes)* [1965] Ch 32, 79. See also *R (Bancoult) v Secretary of State for Foreign and Commonwealth Affairs* [2008] UKHL 61; [2008] 3 WLR 955, 977, para 69 (Lord Bingham).

[318] 'Although the source of the royal prerogative is not the common law, it is the common law that declares what the royal prerogative is …': Payne, above n 130, 79. Moreover, 'it [is] generally accepted that … it [is] the judiciary's duty to determine the boundaries of prerogative powers …': Loughlin, above n 130, 64. In short, the courts 'ha[ve] jurisdiction to decide what [are] the nature and the limits of the prerogative powers of the Crown …': W Wade, 'The Crown, Ministers and Officials: Legal Status and Liability', in Sunkin & Payne, above n 130, 23, 29. They 'can determine whether the prerogative power exists [and] what is its extent …': S A de Smith, *Judicial Review of Executive Action* (3rd edn, Stevens & Sons, London, 1973), 253. See also *Council of Civil Service Unions v Minister for the Civil Service* [1985] AC 374, 398 (Lord Fraser); *R (Bancoult) v Secretary of State for Foreign and Commonwealth Affairs* [2008] UKHL 61; [2008] 3 WLR 955, 977, para 69 (Lord Bingham).

[319] See *Rex v Hampden* (1637) 3 St Tr 826 (the '*Ship Money*' case); *In re a Petition of Right* [1915] 3 KB 649; *Attorney-General v De Keyser's Royal Hotel Ltd* [1920] AC 508; *Crown of Leon (Owners) v Lords Commissioner of the Admiralty* [1921] 1 KB 595.

[320] See defendant's counsel in *Commercial Estates Company of Egypt v Ball* (1920) 36 Times LR 526, 527 ('in the exercise of the Royal Prerogative for the Defence of the Realm, and of the right of angary') and claimants' counsel in *Commercial Estates Company of Egypt v Board of Trade* [1925] 1 KB 271, 274 ('The prerogative rights of the Crown include the right of angary, which enables the Crown to seize the property of neutrals within its jurisdiction in time of war for the defence of the realm …').

[321] [1925] 1 KB 271, 294. Similarly, when addressing whether the common law 'recognize[d] the right to seize, but rejected the obligation to compensate', his Lordship observed: 'So to hold would be to impute to our law a remarkable distinction between its treatment of those subject to British law and neutrals not so subject. In the former case municipal law by a series of statutes, if not by the common law, provides for compensation either in full or with some restrictions when the subject's property is taken for the defence of the realm. … It would indeed be remarkable if our law granted compensation to subjects who had a direct interest in the defence of the realm and denied it to neutrals whose goods were here against their will.'

[322] [1965] AC 75, 123.

[323] [1965] AC 75, 102. Lord Reid continued that this 'has apparently always been recognised with regard to the prerogative rights of purveyance and angary': ibid. Given that the prerogative right of angary was recognized for the first time in the *Commercial Estates Company of Egypt* litigation, his Lordship's use of the word 'always' is, in this respect, an overstatement.

[324] See [1965] AC 75, 102 (Lord Reid) and 123 (Viscount Radcliffe).

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arguably not prohibitive. No constitutional principles are implicated by the judicial recognition of a common-law right to compensation on the part of the owner of the goods. Nor does any rule or principle of the common law stand in the way: prior to 1947, the procedure for claiming such compensation in the event that it was withheld would have been an action in unjust enrichment by way of petition of right; and with the abolition of the petition of right in 1947,[325] an unjust enrichment claim could now be brought against the Crown in the ordinary way.

D. The doctrine as more accurately conceived applied to three further questions

So what can the doctrine of incorporation as conceived here tell us about those cases in which reliance on it to ground an action or defence remains something of an open question? The first such case is an action for judicial review to overturn a decision to go to war in circumstances in which the UK would stand in breach of the customary international prohibition on the unlawful use of armed force by one State against another. The second is reliance on a customary international human right as the common-law basis for an application for judicial review of executive conduct. The last is an action in tort for the violation of a customary rule of either international human rights law or international criminal law.

1. The prohibition on the use of force

In *R (Campaign for Nuclear Disarmament) v Prime Minister*,[326] the applicant—seeking to establish, against the backdrop of the UK's military build-up along Iraq's southern border in late 2002, that the English courts had jurisdiction to interpret United Nations Security Council resolution 1441 (2002)[327]—argued as follows: the prohibition on the unlawful[328] use of force by one State against another was a rule of customary international law, and customary international law formed part of the law of England; the use of force not in self-defence was unlawful unless authorised by the Security Council, and resolution 1441 did not provide such authorisation; *ergo*, an application for an advisory declaration from the Administrative Court aimed at preventing a breach of customary international law fell within the court's common-law supervisory jurisdiction. But in the Divisional Court, Simon Brown LJ, with whom Maurice Kay and Richards JJ agreed, ruled that the English courts did not have jurisdiction to interpret resolution 1441, stating:

> All of the cases relied upon by the applicants in which the court has pronounced upon some issue of international law are cases where it has been necessary to do so in order to determine rights and obligations under domestic law. … [But] there is in the present case no point of reference in domestic law to which the international law issue can be said to go; there is nothing here susceptible of challenge in the way of the determination of rights, interests or duties under domestic law to draw the court into the field of international law.[329]

By holding, without more, that the applicant's case did not sound in domestic law, the Divisional Court appeared to give the shortest of shrifts to the argument that the prohibition on the unlawful use of inter-State force, being a rule of customary international law, formed part of the law of England. But the case is complicated by the fact that the relief sought was merely an advisory declaration, there being at that point no decision by the executive to invade Iraq capable of being challenged.

What, however, if a decision had been take to invade Iraq? Would the doctrine of incorporation have grounded an action for judicial review of the decision? The familiar point of departure is that customary international law obliges the UK, not the Crown, to refrain

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[325] See Crown Proceedings Act 1947 (c 44), section 1.
[326] [2002] EWHC 2777 (Admin); (2002) 126 ILR 727.
[327] UN Doc S/RES/1441, 8 November 2002.
[328] That is, not in the lawful exercise of the inherent right to individual or collective self-defence and not, in the alternative, authorised by the United Nations Security Council under article 42 of the United Nations Charter.
[329] 126 ILR 727, 744-5, para 36.

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from the unlawful use of force against another state. In this light, the recognition of a common-law cause of action against the Crown founded on customary international law would be an act of judicial creativity whose appropriateness is to be measured against the three yardsticks previously suggested.

The prohibition on the use of inter-State force is not readily amenable to application by a domestic court. In the words of Baroness Hale in *R (Gentle) v Prime Minister*, '[t]he lawfulness of war is an issue between states, not between individuals or between individuals and the state'.[330] There is no individual right under customary international law to see that a State does not launch an unlawful war. Additionally, the prohibition envisages no specific beneficiaries. Nor does it implicate any specific organ of State: whereas obviously only the courts are capable of causing a State to violate the immunity to which a foreign State is entitled in its courts, the prohibition on the use of force can be violated as much through the conduct of the legislature which votes for the war as through the acts of the executive which conceives and implements it. This militates almost irremediably against the judicial recognition of the prohibition as one of common law. That said, it is, for the sake of argument, not wholly unthinkable that the prohibition could give rise to a common-law rule restraining the Crown from launching an internationally unlawful war. But the argument is killed stone dead by constitutional impediments.[331] First, as held by the Lords in *Jones (Margaret)*, the fact that the adjudication of the common-law rule argued for by reference to customary international law would involve the courts in areas traditionally deemed non-justiciable—in this case, the exercise of the prerogative power to go to war—is a strong argument against its incorporation in the first place. Secondly, any such move by the courts would amount in substance to the creation of a novel administrative-law action for procuring the UK's breach of public international law, and it is difficult to see on what constitutional basis this might be justified. It could not, strictly speaking, be illegality, since only the UK, not the Crown, would act unlawfully by starting an internationally unlawful war.[332] Nor could it be irrationality, since the House of Lords has held, albeit in the treaty context, that it is not irrational for a decision-maker to act in a manner contrary to the UK's international legal obligations.[333]

2. *Human rights obligations and judicial review*

In dicta in *R v Secretary of State for Foreign and Commonwealth Affairs, ex parte Pirbhai*,[334] Woolf J—rejecting an argument based on the doctrine of incorporation, as stated in *Trendtex*, to the effect that it was the court's duty to ascertain for itself the content of the relevant customary international law, viz the requirement to exhaust local remedies, where the Secretary of State had purported to rely on this in declining to espouse a claim by the applicants against Uganda—stated:

> ... I cannot accept [this] argument. In my view, it overlooks the fact that the rule of international law which was being considered in the *Trendtex* case was a rule which had undoubtedly been adopted and incorporated into English law. The principle of sovereign immunity is applied as part of the domestic law. All rules of international law are not so applied. There are rules or principles of international law, for example relating to human rights, which are no part of our domestic law

[330] [2008] UKHL 20; [2008] 2 WLR 879, 899, para 57. See also, similarly, [2008] 2 WLR 879, 890, para 24 (Lord Hope): 'The issue of legality in this area of international law belongs to the area of relations between states. … It is not part of domestic law reviewable here or, under the Convention, in the European Court at Strasbourg.'

[331] In this light, an examination of the third consideration would be otiose.

[332] That said, it would by no means be absurd to argue that the Crown had in substance acted *ultra vires*, given the practical reality of its authorship of the UK's unlawful conduct.

[333] See *R v Secretary of State for the Home Department, Ex parte Brind* [1991] 1 AC 696.

[334] 7 September 1984, QBD (Crown Office List), Woolf J, 129 SJ 756, official transcript from LexisNexis® Butterworths.

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> and the domestic courts cannot apply or interpret them in the same way as they apply and interpret domestic law.[335]

On the other hand, in *In re McKerr*, Lord Steyn wondered aloud and wholly obiter whether customary international human rights law might avail an applicant for judicial review of executive conduct:

> [T]here may be an argument that the right to life has long been recognised in customary international law, which in the absence of a contrary statute has been part of English law since before the 1998 Act came into force. ... The point has not been in issue in the present case. It has not been researched, and it was not the subject of adversarial argument. It may have to be considered in a future case.[336]

As it was, his Lordship acknowledged that it was perhaps unrealistic to suggest that the particular human right at issue in the case 'was already part of customary international law at a time material to [the] proceedings'.[337]

So could a customary international human right be invoked as a common-law right such as to ground an application in the English courts for judicial review of executive conduct? An inquiry into whether it could must again be premised on the understanding that it is the UK, not the Crown, that is bound by international law, so that the provision by the English courts of an administrative-law remedy against the Crown in respect of the UK's violation of a customary international human right would represent a creative act of judicial interposition which may or may not be appropriate, all things considered.

Arguing in favour of the recognition of common-law human rights by reference to customary international human rights law is the fact that we are dealing here with rights vested in individuals by international law itself and opposable as a matter of international law as against States. That is, customary international human rights lend themselves to domestic application without the need for fundamental reconfiguration: all that is needed is to pierce the veil of the State to permit the transfer of the obligation from the UK to the Crown. It is the constitutional implications, however, that give pause.[338] As with the prohibition on the use of force, the courts' restraint of Crown conduct by reference to common-law human rights drawn from customary international law would be the judicial coining of an administrative-law action for procuring a breach of public international law by the UK, an action for which the constitutional underpinnings would be highly uncertain. Moreover, there is an argument that the Human Rights Act (HRA) manifests a parliamentary intention to 'cover the field' in relation to human rights – that is, that by providing in domestic law for the enforcement of some international human rights standards binding on the UK as a matter of international law, Parliament has, by implication, excluded the domestic enforcement of others.[339] This is essentially the same reasoning that dissuaded the court in *Viveash v Becker* from giving effect to a customary international rule on consular immunity, although there the original source of the relevant statutory rule was also customary, not conventional; and an analogous argument persuaded Orr and Lawton LJJ in the Court of Appeal and Lord Widgery CJ and May and Bridge JJ in the Divisional Court in *Thakrar*.[340] That said, the 'covering the field' argument is not watertight, given that a more than *de minimis* logical distinction can be drawn between those international human rights secured to individuals as a function of treaty-law by the

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[335] Consider also the scepticism expressed by Ouseley J in *Chagos Islanders v Attorney General and Her Majesty's British Indian Ocean Territory Commissioner* [2003] EWHC 2222, para 375, in the context of the customary international human right not to be exiled from one's homeland: 'It may be that [counsel for the claimants] has put somewhat too broad an interpretation on *Trendtex* if he regards it as authority for the proposition that international law is enforceable without more by subject against Crown so long as no Act of Parliament is contravened.'

[336] [2004] UKHL 12; [2004] 1 WLR 807, 824, para 52.

[337] [2004] 1 WLR 807, 824, para 52.

[338] Note that the third consideration is neither here nor there in such a case.

[339] See *Anisminic Ltd v Foreign Compensation Commission* [1969] 1 All ER 208.

[340] See [1974] QB 684, 708 (Orr LJ) and 710 (Lawton LJ); [1974] QB 684, 690-2 (Lord Widgery CJ, with whom May and Bridge JJ agreed).

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ECHR and those enuring by virtue of customary international law, so that the enactment of the one is not necessarily to be taken as the exclusion of the other. Also on the other side of the equation is, more generally, the courts' traditional role as the safeguard of individual liberty against overweening executive power and today's heightened judicial concern for human rights, the latter manifest in a stricter standard of review when human rights are in play.

In the final analysis, when it comes to judicial review of executive conduct by reference to common-law human rights derived from customary international law, the constitutional cons possibly outweigh the pros, although it is by no means certain, and it would be rash to rule out such judicial creativity.

3. Human rights/international criminal obligations and actions in tort

In *Chagos Islanders*, Ouseley J in the Queen's Bench Division rejected a claim for damages brought against the Attorney General and Her Majesty's British Indian Ocean Territory Commissioner and based, in reliance on the doctrine of incorporation, on the UK's alleged breach of the customary international human right not to be exiled from one's home State. In *Jones v Saudi Arabia*,[341] the claimants, seeking damages from the Kingdom of Saudi Arabia and certain Saudi officials, asserted the novel tort of 'torture', as distinct from the established torts of assault and battery, seemingly basing their case on the argument run in *Al-Adsani v Government of Kuwait*[342] that torture is prohibited by customary international law and that customary international law is part of the common law. The court in *Al-Adsani* was willing to entertain the submission for the sake of argument; but *Al-Adsani*, like *Jones v Saudi Arabia* itself, turned on and was dismissed on the basis of State immunity, and neither Mantell J in the High Court nor the Court of Appeal went so far as to recognise the tort of torture at common law.[343] The claim in *Al-Adsani* was unspecific as to the precise customary international prohibition in question, but the fact that it was brought against the government of Kuwait suggests that the putative tort was envisaged as a remedy for the breach by the State of Kuwait of the prohibition on torture embodied in customary international human rights law, although it was far from helpful that Mantell J—after referring to the relevant provisions of the Universal Declaration of Human Rights, the International Covenant on Civil and Political Rights, the ECHR, the Declaration on Torture and the Torture Convention, reproducing, *inter alia*, the right not to be subjected to torture in ECHR, article 3—referred to torture as 'an offence against public international law'.[344] Similarly, in *Jones v Saudi Arabia*, the claim against the Kingdom would also seem to have been based on the State of Saudi Arabia's breach of its customary international human rights obligation in respect of torture. The claim against the individual defendants, on the other hand, could either have been derivative of the State's breach of its human rights obligation or premised instead on the violation by the individuals of the customary international criminal prohibition on torture binding on them directly as individuals. It is by no means clear on which argument the claimants were relying. Either way, if the case had not been dismissed on the ground of State immunity, should the claimants' argument for a common-law tort of torture based on customary international law have been accepted? Equally, was Ouseley J right to reject the claim in *Chagos Islanders*?

Take first a claim for damages against the Crown in respect of the UK's breach of a customary international human right. The structural amenability of customary international human rights to domestic application favours a common-law remedy for their breach. As regards the constitutional implications, we must again wonder whether Parliament, through the passage of the HRA, has displaced the common-law jurisdiction of the courts in relation to human rights. But even if one were not to rule out on constitutional grounds the possibility

[341] [2000] 1 AC 147.
[342] See *Al-Adsani v Government of Kuwait* (1995) 103 ILR 420 (Mantell J) and (1996) 107 ILR 536 (CA).
[343] See 103 ILR 420, 427; 107 ILR 536, 540 (Stuart-Smith LJ).
[344] 103 ILR 420, 426-7.

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that a customary international human right could be recognised as a common-law human right, there is no reason why the breach of a common-law human right would give rise to an action in damages, as correctly pointed out by Ouseley J in *Chagos Islanders*.[345] This would be 'no more and no less than a particular example of a tort for unlawful administrative acts', and the House of Lords has made it 'clear for many years that an *ultra vires* act does not of itself give rise to tortious liability'.[346] Moreover, as reiterated by Lord Steyn in *Three Rivers DC v Bank of England (No 3)*, 'there is no overarching principle in English law of liability in tort for "unlawful, intentional and positive acts"'.[347] In short, even if an English court accepted, on the basis of the doctrine of incorporation, that an individual had a human right as a matter of common law, this 'provides no reason for a tort to be created'.[348] In other words, the third of our three considerations bars recovery. Nor can one circumvent this conclusion by relying on the incorporation not of the primary customary international obligation to refrain from torture but of the secondary customary international obligation to make reparation, in this case to pay compensation. As Lord Hoffmann made clear in *Lyons*, there cannot be a secondary obligation of reparation (in that case restitution[349]) at common law for the breach of a primary obligation binding purely as a matter of international law: in his Lordship's words, 'if there is no enforceable primary obligation, how can its breach give rise to an enforceable secondary obligation?'[350]

As for a claim in tort against a foreign State, the fact that the customary international rule in question is an individual right opposable as against the foreign State plays to its transposition into the common law, since such transposition is possible at little cost to the structural logic of the rule. Indeed, in purely conceptual terms,[351] it would be easier to grant a tortious remedy in English law when it is a foreign State that stands in breach of a customary international human right than it would be in relation to the UK. Whereas the Crown is not the same as the United Kingdom and the United Kingdom cannot be sued in the English courts, English law has no trouble conceiving of a foreign State as a notionally unitary legal person. In simple terms, unlike the UK, a foreign State can be sued in the English courts as a State *per se*. But the basic principles of tort law highlighted above again pose very serious obstacles.

Turning to a claim against an individual State official based on the State's customary international human rights obligations, this ought to fail for the same reasons as those already outlined. Reliance instead for the primary obligation on any relevant customary international crime—a prohibition binding as a matter of international law on the individual official, not the State, and (with the exception of aggression) binding as much on a private individual as on a State functionary—would do nothing to assist the claimant.[352] As held for constitutional

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[345] [2003] EWHC 2222, para 379. The appropriate remedy, as made clear by Ouseley J, would be by way of judicial review; and, needless to say, in a case such as the present not involving the British executive, the idea of an English court reviewing the lawfulness, by reference to common-law rules of English administrative law, of the conduct of the executive of a foreign sovereign State—let alone seeking to restrain such conduct—is preposterous.

[346] [2003] EWHC 2222, para 378, citing in support of this well-established proposition of the law of tort *Three Rivers DC v Bank of England (No 3)* [2003] 2 AC 1, 190 (Lord Steyn), citing in turn *X (Minors) v Bedfordshire CC* [1995] 2 AC 633. In *X (Minors)*, Lord Browne-Wilkinson stated at [1995] 2 AC 633, 730: 'The breach of a public law right by itself gives rise to no claim for damages. A claim for damages must be based on a private law cause of action.'

[347] [2003] 2 AC 1, 190, citing *Lonrho Ltd v Shell Petroleum Co Ltd (No 2)* [1982] AC 173, 187.

[348] [2003] EWHC 2222, para 379. The words of Bork J, of the US Court of Appeals for the District of Columbia Circuit, in *Tel-Oren v Libyan Arab Republic*, 726 F 2d 744, 811 (DC Cir 1984) are apposite: 'To say that international law is part of ... common law is to say only that it is nonstatutory ... law to be applied, in appropriate cases, in municipal courts. It is not to say that, like the common law of contract and tort, for example, by itself it affords individuals the right to ask for judicial relief. Thus, the step appellants would have us take—from the phrase "common law" to the implication of a cause of action—is not a simple and automatic one.'

[349] Restitution is only one mode of reparation under customary international law, the others being compensation and satisfaction: see Articles on Responsibility of States for Internationally Wrongful Acts, above n 145, arts 34, 36 and 37. The decision in *Lyons* is equally applicable to the latter two.

[350] [2002] UKHL 44; [2003] 1 AC 976, 995, para 39.

[351] That is, leaving aside the procedural hurdle of State immunity and the further tort-law arguments above.

[352] The same goes in respect of any customary international crime.

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reasons in *Jones (Margaret)*, crimes under customary international law are not crimes under English law, and, even if they were, it is trite English law that a crime does not *ipso facto* constitute a tort. Nor could one attempt to rely, via the doctrine of incorporation, on a secondary obligation under customary international law to make reparation, since, *pace* Stuart-Smith LJ in *Al-Adsani*,[353] individual delictual responsibility is unknown to present international law.

In addition, in all these cases, the recognition by the courts of a cause of action in tort for the violation of a rule of customary international law would be no less than the judicial creation of a new tort, something which has not truly happened since the coining of the unified tort of negligence in *Donoghue v Stephenson*[354] in 1932. The reason for this is essentially constitutional: given its wide-reaching implications, economic and sometimes political, the creation of a novel head of tort is now generally recognised as better left to Parliament, on account of the latter's democratic legitimacy and superior capacity to engage beforehand in the necessary research and consultation.

In sum, a claim in tort, in reliance on the doctrine of incorporation, for the violation of a rule of customary international human rights law or customary international criminal law should be rejected on principle.

It is worth adding that there is nothing to stop a victim suing under the ordinary law of tort in respect of conduct which, on the international plane, would amount to a violation of customary international law. Torture contrary to customary international law, for example, is clearly compensable as the traditional tort of battery. Arbitrary detention contrary to customary international law would constitute the tort of false imprisonment. Certain acts by State officials contrary to customary international law could be actionable as the tort of misfeasance in public office. In such cases, customary international law would be irrelevant to the claim.

Finally, it should be noted by way of postscript that tort actions for violations of customary international law are commonplace in the federal courts of the United States. But the only reason that this step has been taken there is on account of the interposition of legislation, first the Alien Tort Claims Act (ATCA)[355] and then, as specifically regards torture and extrajudicial killing contrary to customary international law, section 2(a) of the Torture Victims Protection Act (TVPA).[356] The former has, since 1789,[357] provided that '[t]he district courts shall have original jurisdiction of any civil action by an alien for a tort only, committed in violation of the law of nations …'. It lay virtually dormant until 1980, when Judge Kaufman of the US Court of Appeals for the Second Circuit held in the landmark case of *Filártiga v Peña-Irala*[358] that it vested the federal courts with original jurisdiction over claims for damages in respect of violations 'of the rights already recognized by international law',[359] in that case over a tort of torture contrary to customary international law. This interpretation, which has given rise to an abundant jurisprudence, only just survived challenge in the Supreme Court in *Sosa v Alvarez-Machain*,[360] which whittled down the availability of ATCA actions to those in respect of a limited range of violations of customary international law; but the Supreme Court nonetheless upheld the idea that claims for damages could be brought in

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[353] See his Lordship's erroneous statement, obiter, that '[i]n international law torture is ... a tort for which the victim should be compensated': (1996) 107 ILR 536, 540.

[354] [1932] AC 562. Even then, it is unclear to what extent Lord Atkin saw himself as creating a new tort.

[355] 28 USC §1350.

[356] Pub L 102-256, 12 March 1992, 106 Stat 73. Section 2(a) of the TVPA explicitly provides for a cause of action in tort. The relevant part of section 2 reads: '(a) Liability.—An individual who, under actual or apparent authority, or color of law, of any foreign nation—(1) subjects an individual to torture shall, in a civil action, be liable for damages to that individual; or (2) subjects an individual to extrajudicial killing shall, in a civil action, be liable for damages to the individual's legal representative, or to any person who may be a claimant in an action for wrongful death.'

[357] The Act was originally part of the first Judiciary Act, ch 20, §9, 1 Stat 73, 77 (1789).

[358] 630 F 2d 876 (2d Cir 1980).

[359] 630 F 2d 876, 887.

[360] 542 US 692 (2004).

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the federal courts under the common law for torts such as 'torture', 'genocide' and the like. The Supreme Court's reasoning is premised on the belief that Blackstone's eighteenth-century offences against the law of nations, namely violations of safe-conducts, infringements of the rights of ambassadors and piracy, were compensable as such in tort. But, with respect, this is simply not true. Insofar as these offences were compensable in tort, they were compensable without reference to the law of nations as ordinary torts such as trespass to the person and trespass to goods, not as the torts of 'violation of a safe-conduct', 'infringement of the rights of an ambassador' and 'piracy'. In this light, the better view is that ATCA was intended to grant the federal courts jurisdiction over garden-variety torts such as trespass to the person and trespass to goods where the impugned conduct amounted to a violation by the United States of its positive duty of protection in respect of the victim.[361] But be that as it may. The point here is simply that the explicit reference in ATCA to 'a tort … committed in violation of the law of nations' has, rightly or wrongly, been taken to vest the US federal courts with power to award damages at common law in respect of violations of customary international law. In short, the express words of the statute have been crucial in influencing how the common law has developed in this regard. The situation is different under English law. That said, the statement by the Supreme Court in *Sosa* that 'a judge deciding in reliance on an international norm will find a substantial element of discretionary judgment in the decision'[362] is as applicable to the English courts as to the American.

V. THE PROBLEM OF PRECEDENT

A central question at issue in *Trendtex* was whether an English court is bound by an earlier, otherwise precedential decision based on a rule of customary international law when the relevant rule of customary international law has itself changed in the interim. There the Court of Appeal was asked to give effect in English law to the doctrine of restrictive State immunity allegedly embodied in contemporary customary international law. The problem was that previous authority of the Court of Appeal, founded on what was said to be the defunct customary international doctrine of absolute State immunity, had laid down that the immunity from the jurisdiction of the English courts enjoyed by a foreign State was absolute.[363] By a 2:1 majority, the Court of Appeal held that it was permitted to apply the new rule of customary international law without waiting for the House of Lords to overrule the previous decisions. Lord Denning MR elaborated:

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[361] See the discussion above at n 145. Similarly, an attentive reading of *Respublica v De Longchamps*, 1 US (1 Dall) 111 (Court of Oyer and Terminer, Philadelphia, 1784) reveals something quite different from what the case is often taken to stand for. The case involved two attacks upon the French Consul-General to the United States. The charges were framed in ordinary terms as 'unlawfully and violently threatening and menacing bodily harm and violence' and 'Assault and Battery' (see 1 US 111, 115), rather than as any violation of the law of nations as such; and the court's reference at the beginning of its judgment to the law of nations was directed towards the three questions put to it by the President and the Supreme Executive Council and reproduced at 1 US 111, 115, in particular the first and second, namely: '1st. Whether [the defendant] could be legally delivered up by Council, according to the claim made by the late Minister of France? 2ndly. If [he] could not be thus legally delivered up, whether [his] offences in violation of the law of nations, being now ascertained and verified according to the laws of th[e] Commonwealth, [he] ought not to be imprisoned, until his most Christian Majesty [the King of France] shall declare, that the reparation is satisfactory?' In short, the crimes in question were ordinary common-law crimes, and their occurrence amounted to a violation of the law of nations in the sense that it amounted to a wrongful failure by the United States to ensure the Consul-General's inviolability. See, in this light, the court's summing up at 1 US 111, 117: 'You then have been guilty of an atrocious violation of the law of nations; you have grossly insulted gentlemen, the peculiar objects of this law … in a most wanton and unprovoked manner: And it is now the interest as well as duty of the government, to animadvert upon your conduct with a becoming severity, such a severity as may tend to reform yourself, to deter others from the commission of the like crime, preserve the honor of the State, and maintain peace with our great and good Ally, and the whole world.'

[362] 542 US 692, 749.

[363] See *Compania Mercantil Argentina v United States Shipping Board* (1924) 131 LT 388. See also, in the context of Admiralty actions in rem, *The Parlement Belge* (1880) 5 PD 197 and *The Porto Alexandre* [1920] P 30. Dicta to the same effect were also to be found in judgments of the House of Lords, namely *The Cristina* [1938] AC 485, 490 (Lord Atkin)(an action in rem) and *Rahimtoola v Nizam of Hyderabad* [1958] AC 379, 394 (Viscount Simonds).

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> [T]he rules of international law, as existing from time to time, do form part of our English law. It follows … that a decision of this court—as to what was the ruling of international law 50 or 60 years ago—is not binding today. International law knows no rule of stare decisis. If this court is satisfied that the rule of international law on a subject has changed from what it was 50 or 60 years ago, it can give effect to that change—and apply the change in our English law—without waiting for the House of Lords to do it.[364]

'After all', his Lordship added, 'we are not considering here the rules of English law on which the House has the final say. We are considering the rules of international law.'[365] Shaw LJ agreed:

> May it not be that the true principle as to the application of international law is that the English courts must at any given time discover what the prevailing international rule is and apply that rule? … [T]he law of nations ... [is] applied in the courts of England. The rule of stare decisis operates to preclude a court from overriding a decision which binds it in regard to a particular rule of (international) law, it does not prevent a court from applying a rule which did not exist when the earlier decision was made if the new rule has had the effect in international law of extinguishing the old rule.[366]

Trendtex settled before the Lords were able to hear and rule on the appeal. In the subsequent case of *I^o^ Congreso del Partido*, Robert Goff J considered himself bound by *Trendtex* on this point, concluding, 'I must in the present case likewise give effect to the rules of international law, irrespective of any previous English decision to the contrary'.[367] In *R v Metropolitan Stipendiary Magistrate, ex parte Pinochet Ugarte (No 1)*, Lord Slynn stated that '[r]ules of customary international law change … and as Lord Denning MR said in *Trendtex Trading Corporation v Central Bank of Nigeria* [1977] QB 529, "we should give effect to those changes and not be bound by any idea of stare decisis in international law"'.[368] In *R v Jones (Margaret)*, the Court of Appeal applied 'the principle which Lord Denning MR affirmed in *Trendtex Trading Corporation v Central Bank of Nigeria* [1977] 2 QB 529, namely that English law reflects the state of international law from time to time, and does not apply the principle of binding precedent to a determination of its content'.[369] The court there held obiter that, although crimes against peace (now known as the crime of aggression) had been tried at Nuremberg, customary international law had changed since then with the result that the crime of aggression was no longer defined with sufficient clarity to enable it to constitute a crime at common law.[370]

Trendtex stands in direct opposition to the Court of Appeal's earlier decision in *Thai-Europe Tapioca Service Limited v Government of Pakistan, Ministry of Food and Agriculture, Directorate of Agricultural Supplies (Imports and Shipping Wing) (The Harmattan)*.[371] There Lawton LJ, after referring to the same prior decisions of the Court of Appeal as were later at issue in *Trendtex*, stated:

> [T]he ordinary rule of stare decisis must follow. … It was submitted on behalf of the plaintiffs that since 1924 the views of jurists all over the world about the immunity of sovereign states which engage in trade have changed; and that in many parts of the world courts have decided that states engaging in trade should lose their sovereign immunity when so doing. We have to concern ourselves with the law of this country. It may be that at some future date the House of Lords will consider the three cases to which I have referred; but they have not done so yet.[372]

Scarman LJ was of the same view:

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[364] [1977] QB 529, 554.
[365] [1977] QB 529, 555.
[366] [1977] QB 529, 579.
[367] [1978] 1 QB 500, 518.
[368] [2000] 1 AC 61, 77.
[369] [2004] EWCA Crim 1981; [2005] QB 259, 273, para 31.
[370] See [2005] QB 259, 277, para 43.
[371] [1975] 1 WLR 1485. See also the earlier case in the Queen's Bench Division of *Swiss Israel Trade Bank v Government of Salta and Banco Provincial de Salta* [1972] 1 Lloyd's Rep 497, 507 (McKenna J).
[372] [1975] 1 WLR 1485, 1493.

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> I think it is important to realise that a rule of international law, once incorporated into our law by decisions of a competent court, is not an inference of fact but a rule of law. It therefore becomes part of our municipal law and the doctrine of stare decisis applies as much to that as to a rule of law with a strictly municipal provenance. This has been stated again and again in the cases to which Mr Kemp drew our attention and it is to be found I think by necessary implication in the speech of Lord Macmillan in *The Cristina* [1938] AC 485, 497 in a passage to which I need not refer. I think therefore that it is not open to this court to apply a new rule or view developing in the international field if it be inconsistent with a rule already incorporated into our law by a decision of the Court of Appeal or the House of Lords.[373]

Lord Denning MR did not address the point. In *Trendtex*, Stephenson LJ, dissenting on this point, followed the approach taken by Lawton and Scarman LJJ in *Thai-Europe Tapioca Service*. In the subsequent case of *The Uganda Co (Holdings) Ltd v The Government of Uganda*, Donaldson J, faced with inconsistent authority from the Court of Appeal in the form of *Thai-Europe Tapioca Service* and *Trendtex*, preferred (as he considered himself free to do) the earlier *Thai-Europe Tapioca Service* on the curious ground that 'a decision which asserts the doctrine of precedent must logically have more weight as a precedent than one which denies or modifies that doctrine'.[374]

It is interesting that in none of these cases did the court mention either the words of Lord Alverstone CJ in *West Rand* that the law of nations forms part of the law of England only to the extent that it is not 'contrary to the principles of her laws as declared by her courts'[375] or those of Lord Atkin in *Chung Chi Cheung* that the English courts 'will treat [customary international law] as incorporated into the domestic law, so far as it is not inconsistent with rules … finally declared by their tribunals'.[376] Perhaps these dicta can be distinguished as referable only to other rules of the common law, rather than to the rule based on customary international law—that is, on allegedly outdated customary international law—actually at issue before the court, although it is by no means clear that they can be. Another explanation may be that at least the Court of Appeal was bound by neither, *West Rand* being a decision of the Divisional Court and *Chung Chi Cheung* of the Privy Council. Be all this, however, as it may.

It has to be said that the reasoning of Lord Denning MR and Shaw LJ in *Trendtex* is far from compelling. The former's argument that international law knows no doctrine of stare decisis is beside the point: the issue is the common-law's doctrine of the same. For its part, Shaw LJ's attempt to show that the common-law doctrine of stare decisis is not even implicated in a case such as *Trendtex* is unconvincing in its failure to grapple with the logical consequences of the fact that the upshot of the incorporation of a rule of customary international law is a rule of common law, and a rule of common law that says 'X', rather than one that says 'customary international law says X' – in other words, in the case of *Trendtex*, a common-law rule to the effect that 'a foreign State is immune from the jurisdiction of the English courts only in respect of *acta jure imperii*', rather than one to the effect that 'customary international law provides that a foreign State is immune from the jurisdiction of the English courts only in respect of *acta jure imperii*'. In the final analysis, it is impossible to fault the words of Scarman LJ in *Thai-Europe Tapioca Service* that an incorporated rule of customary international law 'becomes part of [English] municipal law and the doctrine of stare decisis applies as much to that as to a rule of law with a strictly municipal provenance'.[377] The problem of contrary common-law authority cannot be wished away.

What, then, is the solution to this problem?

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[373] [1975] 1 WLR 1485, 1495.
[374] [1979] 1 Lloyd's Rep 481, 487.
[375] [1905] 2 KB 391, 408.
[376] [1939] AC 160, 167-8.
[377] [1975] 1 WLR 1485, 1495. See also Picciotto, above n 53, 85, para 48 and 103-4, para 63; Mann, above n 23, 123-4.

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There is no reason why the question whether to give effect at common law to a rule of customary international law should in principle be approached any differently in situations where the as-yet-unincorporated customary international rule is a new one which has had the effect of replacing an incorporated predecessor. The point of departure remains that the doctrine of incorporation serves as a standing direction to an English court to craft rules of common law by reference to customary international law but that the court's decision to do so is one the appropriateness of which in any given case depends on a weighing of three factors. The first of these, namely whether the rule lends itself structurally to domestic application, will depend on the content of the rule in question, and so cannot be assessed in the abstract. But the third will have particular resonance in the cases at issue here. The doctrine of precedent is a fundamental principle of the common law. It is no exaggeration to call it quasi-constitutional. It weighs heavily in the balance. Given this, it must be doubted whether it is appropriate to transpose a (new) rule of customary international law into English law where the common-law rule created would fly in the face of binding authority.

An analogy could be drawn with the courts' traditional approach to the law merchant, a customary law established by reference to the practice of merchants which, like the law of nations (of which, indeed, it was described as being part[378]), was considered part of the common law of England. Once a rule of the law merchant had been recognised by a common-law court as part of English law, its existence was subsequently to be established by reference to this prior case-law, rather than by direct reference to the practice of merchants.[379] This was something on which none other than Lord Mansfield CJ was emphatic. In *Edie and Laird v The East India Company*, noting that the content of the rule at issue had already been determined by two judgments of the English courts, he declared, 'But the point of law is here settled: and, when once solemnly settled, no particular usage shall be permitted to weigh against it: this would send everything to sea again.'[380]

There is also an analogy between cases like *Trendtex* and the sort of case at issue in *Kay v Lambeth London Borough Council*.[381] On 25 October 2004, Judge Bush, sitting as a judge of the High Court at Leeds District Registry, held that, despite in the interim the decision of the ECtHR to the contrary in *Connors v United Kingdom*,[382] he was bound by the House of Lords' decision in *Harrow London Borough Council v Qazi*[383] and by the Court of Appeal's decision in *Kay v Lambeth London Borough Council*[384] to rule that the second set of defendants in the case before him could not raise as a defence to an order for possession sought by Leeds City Council a plea that their rights under article 8 of the ECHR, as secured to them by the HRA, would be infringed. The Court of Appeal, also holding itself bound by the Lords' decision in *Qazi*, dismissed the defendants' appeal,[385] but, considering *Qazi* incompatible with the subsequent Strasbourg decision in *Connors*, granted leave to appeal to the House of Lords. It was argued before the Lords that, where an English court was acting pursuant to the mandatory duty imposed on it by section 2 of the HRA to take into account judgments of the ECtHR, the doctrine of precedent should be relaxed in cases of clear inconsistency between an otherwise-binding domestic authority and a subsequent decision of the court in Strasbourg. The two appeals were disposed of on other grounds, but Lord Bingham—with whose reasons on point Lord Nicholls, Lord Hope, Lord Walker, Baroness

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[378] See above at Part II.B, especially n 55.

[379] See *Edie and another v East-India Company* (1761) 2 Burr 1216, 1222 and 1224 (Lord Mansfield CJ), 1224 and 1225 (Denison J), 1225-6 (Foster J) and 1226-8 (Wilmot J). See also *Brandao v Barnett* (1846) 12 Cl & F 787, 805 (Lord Campbell) and 810 (Lord Lyndhurst). See too Lobban, above n 53, 262-3.

[380] *Edie and Laird v The East India Company* (1761) 1 Black W 295, 298. The passage is not found in the alternative report of the same case found at 2 Burr 1216, as cited immediately above n 379.

[381] [2006] UKHL 10; [2006] 2 AC 465.

[382] (2004) 40 EHRR 189.

[383] [2003] UKHL 43; [2004] 1 AC 983.

[384] [2004] EWCA Civ 926; [2005] QB 352. The Court of Appeal in this case saw no inconsistency between *Qazi* and *Connors*.

[385] See *Leeds City Council v Price* [2005] EWCA Civ 289; [2005] 1 WLR 1825.

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Hale and Lord Brown agreed—addressed the precedent issue. After describing the doctrine of precedent as 'a cornerstone of [the English] legal system',[386] his Lordship stated:

> As Lord Hailsham observed … , 'in legal matters, some degree of certainty is at least as valuable a part of justice as perfection'. That degree of certainty is best achieved by adhering, even in the Convention context, to our rules of precedent. It will of course be the duty of judges to review Convention arguments addressed to them, and if they consider a binding precedent to be, or possibly to be, inconsistent with Strasbourg authority, they may express their views and give leave to appeal, as the Court of Appeal did here. Leap-frog appeals may be appropriate. In this way, in my opinion, they discharge their duty under the 1998 Act. But they should follow the binding precedent, as again the Court of Appeal did here.[387]

There is no satisfying reason why the principles applicable to the reception into English law of decisions of the ECtHR should not extend to the incorporation of rules of customary international law. It should be noted, however, that the House of Lords has since refined what it said in *Kay*. In *R (RJM) v Secretary of State for Work and Pensions*,[388] Lord Neuberger—with whom Lords Hope, Rodger, Walker and Mance agreed—emphasised that *Kay* was a situation where the Court of Appeal was forced to choose between a decision of the House of Lords and a subsequent decision of the ECtHR. His Lordship held that it was different where the English decision confronting the Court of Appeal was one of its own,[389] since the Court of Appeal was freer to depart from its own prior rulings than from those of the Lords.[390] Moreover, his Lordship added,

> [t]he principle promulgated in *Young v Bristol Aeroplane Co Ltd* [1944] KB 718 [that the Court of Appeal is bound to follow one of its own decisions unless there is conflicting Court of Appeal authority, unless it is inconsistent with a subsequent decision of the House of Lords or unless it was rendered *per incuriam*] was, of course, laid down at a time when there were no international courts whose decisions had the domestic force which decisions of the ECtHR now have, following the passing of the 1998 Act, and in particular section 2(1)(a). In my judgment, the law in areas such as that of precedent should be free to develop, albeit in a principled and cautious fashion, to take into account such changes. Accordingly, I would hold that, where it concludes that one of its previous decisions is inconsistent with a subsequent decision of the ECtHR, the Court of Appeal should be free (but not obliged) to depart from that decision.[391]

In this light, while the general statements of principle enunciated in *Trendtex* in relation to the doctrine of precedent and customary international law fare poorly in the light of *Kay*, the actual decision in *Trendtex*, involving as it did the Court of Appeal's departure from one of its own previous decisions, may nonetheless, in the light of *RJM*, be reconcilable with it. That said, Lord Neuberger's emphasis in *RJM* on the role played by an international court (there, the ECtHR) with formal powers of authoritative interpretation and application could be taken

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[386] [2006] 2 AC 465, 496, para 42.

[387] [2006] 2 AC 465, 497, para 43. Lord Bingham was, however, willing to make 'one partial exception': [2006] 2 AC 465, 497, para 45. In *D v East Berkshire Community NHS Trust* [2003] EWCA Civ 1151; [2004] QB 558, the Court of Appeal had departed from the decision of the House of Lords in *X (Minors) v Bedfordshire County Council* [1995] 2 AC 663, holding that the latter could not survive the introduction of the HRA, which had undermined the policy considerations on which the House of Lords had largely based its decision. On appeal, the Lords had not criticized the Court of Appeal's 'bold course', had agreed that the policy considerations underpinning *X v Bedfordshire* had been 'very largely eroded', and had accepted that the latter was no longer good law. But there were other considerations, too, which made *X v Bedfordshire* 'a very exceptional case': judgment had been given in 1995, 'well before the 1998 Act', and had made no reference to the ECHR; and, 'importantly', the children whose claim in negligence the Lords had rejected as unarguable had succeeded before the ECtHR in establishing a breach of article 3 of the Convention, 'recovering what was, by Strasbourg standards, very substantial reparation'. 'On these extreme facts', the Court of Appeal had been entitled to hold, as it did, that the Lords' decision in *X v Bedfordshire*, in relation to children, could not survive the HRA. 'But such a course [was] not permissible save where the facts [were] of that extreme character.' See [2006] 2 AC 465, 498, para 45, referring to *Z v United Kingdom* (2001) 34 EHRR 97.

[388] [2008] UKHL 63; [2008] 3 WLR 1023.

[389] [2008] 3 WLR 1023, 1042, paras 63 and 65.

[390] [2008] 3 WLR 1023, 1042, para 65.

[391] [2008] 3 WLR 1023, 1042, para 66.

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to suggest that where, as in *Trendtex*, the putative emergent rule of customary international law is one needing to be ascertained by the Court of Appeal itself without the benefit of a decision of the International Court of Justice, the Court of Appeal may be far less justified, and perhaps not justified at all, in departing from its own authority.

In the final analysis, then, the better view is that the doctrine of precedent ought to apply as much to rules of common law derived from customary international law as to other common-law rules.[392] This does not, it should be emphasised, mean that a rule of common law derived from a rule of customary international law need remain static in the face of a change in the customary international rule. It simply means that it is up to a hierarchically superior court to make any common-law adjustment.

VI. THE DOCTRINE IN WIDER CONTEXT

When understood as really a doctrine of judicial transformation or judicial adoption, whereby the courts, in appropriate cases, are empowered and even directed to fashion rules of common law by reference to rules of customary international law, the doctrine of incorporation reveals itself as really just a particular manifestation of a more general principle of English law that customary international law is, all other things being equal, a legitimate source of common-law decision-making and one to which the courts must endeavour to give effect. Although directed towards the specific end of applying a rule of customary international law as a common-law rule in more or less its own right, the doctrine of incorporation, properly understood, is not fundamentally different from the courts' crafting common-law conflicts rules by reference to the customary international rules on jurisdiction;[393] from the court's use of customary international law to arrive at common-law rules of decision in *De Wütz v Hendricks*, *The Emperor of Austria v Day and Kossuth*, *The Rose Mary* (and, ultimately, *Kuwait Airways*) and *R v Mills*; and so on.[394] In each instance, the courts are authorised and indeed directed to look to customary international law in its quality as customary international law and, insofar as this is otherwise appropriate, to give effect to it by means of the common law. In each instance, customary international law is a source of the common law. The only difference is that in cases where the doctrine of incorporation is invoked, what is asked of the court is to give effect to the customary international rule via a common-law rule in the former's more or less mirror image. In the other cases, the customary international rule is acknowledged and given effect at one further remove.

VII. CONCLUSION

In 1617, George Abbot, Archbishop of Canterbury, declared that, 'as thinges now stand throughout the whole worlde, there is no place so remote, but that the consideration thereof is mediately or immediately of consequence to our affairs here'.[395] Today, when our affairs here are adjudicated in the English courts and when things global are manifest in customary international law, the consequence of consideration thereof is, *pace* His Grace,

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[392] See also Mann, above n 23, 124-5. But *cf* Brierly, above n 5, 33-4 (criticising '[a] rigid adherence to the English doctrine of precedents' in matters of international law); Crawford, above n 294, 361; Hunter, above n 23, 695-6; C Schreuer, 'The Applicability of Stare Decisis to International Law in English Courts' (1978) 25 *Netherlands International Law Review* 234, 238 (based, however, on the mistaken belief that an Act of Parliament, rather than simply a decision of a higher court or the House of Lords' deployment of the 1966 Practice Statement, would be necessary to overrule a precedent).

[393] See above at Part II.A. See also Dickinson, above n 2, 260: 'The law of nations [is] a source, rather than an integral part, of the national system. Indeed, in its modern version, the doctrine is essentially like the modern Anglo-American doctrine underlying the so-called conflict of laws of private international law. It means simply that the national law governing matters of international concern is to be derived, in the absence of a controlling statute, executive decision, or judicial precedent, from … relevant principles of the law of nations …'; and Dickinson, above n 31, 344-5.

[394] See the discussions above at Parts II.A and III.A.4.

[395] J Scott, 'What the Dutch taught us. The late emergence of the modern British State', *Times Literary Supplement*, 16 March 2001, 4.

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more accurately characterised as strictly 'mediate'. The doctrine of incorporation, when more accurately understood as a doctrine of judicial transformation or judicial adoption, provides that customary international law is a source, and not as such a part, of the common law. To the extent that it is made a part, it is through the subtly modifying interposition of an English court. The model is one not of immanence or inexorable necessity but of discerning judicial agency. It is an agency that the judges would do well to exercise in as conscious and transparent a way as possible, by reference to considerations treated as determinative by their predecessors.

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